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Reg No: 2013/029173/07 | VAT: 4070272101

Client : CITY OF TSHWANE METROPOLITAN MUNICIPALITY
BID No : ROC 08 2024-25
Closing date : 26 FEBRUARY 2025
Closing time : 10H00 AM

Description : TENDER FOR THE SUPPLY, DELIVERY AND OFF-LOADING OF
CARTRIDGE FIRE CABLE SPIKING AND HYDRAULIC CABLE SPIKING
EQUIPMENT, ACCESSORIES, AND CONSUMABLES TO BE USED ON THE ELECTRICITY
DISTRIBUTION LV/MV NETWORK FOR A PERIOD OF THREE YEARS AS AND WHEN
REQUIRED

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	2.	Valid Tax Clearance Certificate
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285 Erasmus Avenue,
Raslouw, A.H Centurion
0157



CITY OF TSHWANE METROPOLITAN MUNICIPALITY
REGIONAL OPERATIONS AND COORDINATION
TENDER NUMBER:
ROC 08 2024/25

TENDER DESCRIPTION:	TENDER FOR THE SUPPLY, DELIVERY AND OFF-LOADING OF CARTRIDGE FIRE CABLE SPIKING AND HYDRAULIC CABLE SPIKING EQUIPMENT, ACCESSORIES, AND CONSUMABLES TO BE USED ON THE ELECTRICITY DISTRIBUTION LV/MV NETWORK FOR A PERIOD OF THREE YEARS AS AND WHEN REQUIRED
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NAME OF BIDDER: SITHEMBE TRANSPORTATION AND PROJECTS
CSD NUMBER: MAAA0513988
VENDOR NUMBER (WHERE APPLICABLE)

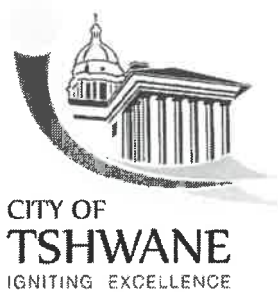
Prepared by:
City of Tshwane Metropolitan Municipality
Tshwane House
320 Madiba Street
Pretoria CBD
0002
Tel: 012 358 9999

BID CLOSING DATE

26 FEBRUARY 2025

Only bidders registered on the central supplier database (CSD) and with a CSD number will be considered for this tender, as this is a requirement from the National Treasury.

"Note: Bidders are required to submit electronic copies of the bid either by memory stick/USB flash drive/CD/DVD together with the hard copy of the Bid/Proposals"



CITY OF TSHWANE METROPOLITAN MUNICIPALITY
DEPARTMENT: REGIONAL OPERATIONS AND COORDINATION

Bids are hereby invited from suppliers for the following bid:

Bid number	Description	Department	Contact person	Compulsory briefing session	Closing date
ROC 08 2024/25	TENDER FOR THE SUPPLY, DELIVERY AND OFF-LOADING OF CARTRIDGE FIRE CABLE SPIKING AND HYDRAULIC CABLE SPIKING EQUIPMENT, ACCESSORIES, AND CONSUMABLES TO BE USED ON THE ELECTRICITY DISTRIBUTION LV/MV NETWORK FOR A PERIOD OF THREE YEARS AS AND WHEN REQUIRED	Regional Operations and Coordination	Technical enquiries: Lizelle G. Veenemans (lizellev@tshwane.gov.za or 012 358 5566)	Not applicable	26 February 2025 at 10:00am

THE DOCUMENT IS DOWNLOADABLE ON THE TSHWANE WEBSITE (www.tshwane.gov.za) and on the E-tender portal (www.etenders.gov.za) .

Each tender shall be enclosed in a sealed envelope that bears the correct identification details and shall be placed in the tender box located at:

“Note: Bidders are required to submit electronic copies of the bid either by memory stick/USB flash drive/CD/DVD together with the hard copy of the Bid/Proposals”

**Tshwane House
 320 Madiba Street
 Pretoria CBD
 0002**

Documents must be deposited in the bid box not later than 10:00am on 26 February 2025

- Technical enquiries: Lizelle G. Veenemans (lizellev@tshwane.gov.za or 012 358 5566)
- Supply chain enquiries: Relebogile Malatswane (RelebogileM@tshwane.gov.za or 012 358 2735)

Bids will remain valid for a period of 90 days after the closing date.

The validity period for the tender after closure is 90 days. The city shall have right and power to extend any tender validity period beyond any initial validity period set and subsequent extensions. SCM shall ensure that an extension of validity is requested in writing from all bidders before the validity expiry date. Extension of validity shall be finalised while the quotations/bids are still valid.

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VERY IMPORTANT NOTICE ON DISQUALIFICATIONS

A bid that does not comply with the peremptory requirements stated hereunder will be regarded as not being an "acceptable bid", and such a bid will be rejected. An "acceptable bid" means any bid which, in all respects, complies with the conditions of the bid and the specifications as set out in the bid documents, including the conditions as specified in the Preferential Procurement Policy Framework Act, 2000 (Act 5 of 2000) and related legislation as published in *Government Gazette* 22549, dated 10 August 2001, in terms of which provision is made for this policy.

1. If any pages have been removed from the bid document and have therefore not been submitted or if a copy of the original bid document has been submitted.
2. If the bid document is completed using a pencil or Tippex corrections were made, or any other colour ink. Only black ink must be used to complete the bid document.
3. The bidder attempts to influence or has in fact influenced the evaluation and/or awarding of the contract.
4. The bid has been submitted after the relevant closing date and time.
5. If any bidder who, during the last five years, has failed to perform satisfactorily on a previous contract with the municipality, municipal entity or any other organ of state after written notice was given to that bidder that performance was unsatisfactory.
6. The accounting officer must ensure that, irrespective of the procurement process followed, no award may be given to a person –
 - (a) who is in the service of the state;
 - i. if that person is not a natural person, of which any director, manager, principal shareholder or stakeholder is a person in the service of the state; or
 - ii. who is an advisor or consultant contracted to the municipality in respect of a contract that would cause a conflict of interest.
7. Bid offers will be rejected if the bidder or any of his/her directors are listed on the Register of Bid Defaulters in terms of the Prevention and Combating of Corrupt Activities Act, 2004 (Act 12 of 2004) as a person prohibited from doing business with the public sector.
8. Bid offers will be rejected if the bidder has abused the City of Tshwane supply chain management system.
9. Failure to complete and sign the certificate of independent determination or disclosure of wrong information.
10. Duly Signed and completed MBD forms (MBD 1, 4, 5, 8 and 9) The person signing the bid documentation must be authorised to sign on behalf of the bidder. Where the signatory is not a Director / Member / Owner / Shareholder of the company, an official letter of authorization or delegation of authority should be submitted with the bid document.
11. All MBD documents fully completed (i.e. no blank spaces) and fully signed, By the authorized personnel.

12. False or incorrect declarations on any of the MBD documents will result in the rejection of the bidder.
13. It is the responsibility of the bidder to disclose in MBD4 any interest in any other related companies or business whether they are bidding for this contract. Failure to disclose this interest will result in the rejection of the bid.
14. Joint Ventures (JV) – (Only applicable when the bidder tender as a joint venture)
 - i. Where the bidder bid as a Joint Ventures (JV), the required or relevant documents under administrative requirements must be provided/submitted for all JV parties. (These include MBD4, MBD5, MBD8, MBD 9, CSD and/ or SARS pin, Confirmation that the bidder's municipal rates and taxes are up to date.)
 - ii. In addition to the above the bidder must submit a Joint Venture (JV) agreement signed by the relevant parties.
 - iii. It is a condition of this bid that the successful bidder will continue with same Joint Venture (JV) for the duration of the contract, unless prior approval is obtained from City of Johannesburg.
 - iv. JV agreement must be complete, relevant and signed by all parties.

Failure to comply with the above will lead to immediate disqualification.



Bidder

CERTIFICATE OF AUTHORITY FOR SIGNATORY

Status of concern submitting tender (delete whichever is not applicable):

COMPANY/PARTNERSHIP/ONE-PERSON BUSINESS/CLOSE CORPORATION/JOINT VENTURE

A. COMPANY

If the bidder is a company, a certified copy of the resolution of the board of directors that is personally signed by the chairperson of the board, authorising the person who signs this bid to do so and to sign any contract resulting from this bid, and any other documents and correspondence in connection with this bid or contract on behalf of the company, must be submitted with this bid.

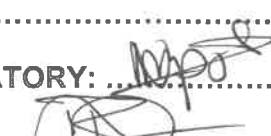
An example is shown below:

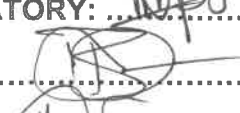
By resolution of the board of directors on 13 JANUARY 2025,
Mr/Ms MUZI VINCENT LUKHELE has been duly
authorised to sign all documents in connection with
Bid Number ROC 08 2024 / 25

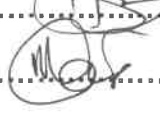
SIGNED ON BEHALF OF THE COMPANY: SITHEMBE TRANSPORTATION AND LOGISTICS

IN HIS/HER CAPACITY AS DIRECTOR

DATE: 13/01/25

SIGNATURE OF SIGNATORY: 

WITNESSES: 1. 

2. 

B. PARTNERSHIP

The following particulars in respect of every partner must be furnished and signed by every partner:

Full name of partner	Residential address	Signature
----------------------	---------------------	-----------

.....		
.....		
.....		

We, the undersigned partners in the business trading as
....., hereby authorise
..... to sign this bid as well as any
contract resulting from the bid and any other documents and correspondence in
connection with this bid or contract on our behalf.

.....
Signature

.....
Signature

.....
Signature

.....
Date

.....
Date

.....
Date

C. ONE-PERSON BUSINESS

I, the undersigned, , hereby
confirm that I am the sole owner of the business trading as
.....

.....
Signature

.....
Date

D. CLOSE CORPORATION

In the case of a close corporation submitting a bid, a certified copy of the founding statement of such corporation shall be included with the bid with a resolution by its members, authorising a member or other official of the corporation to sign the documents and correspondence in connection with this bid or contract on behalf of the company.

An example is shown below:

By resolution of the members at the meeting on 20..... at
....., Mr/Ms, whose
signature appears below, has been duly authorised to sign all documents in
connection with Bid Number

SIGNED ON BEHALF OF THE CLOSE CORPORATION:

IN HIS/HER CAPACITY AS:

DATE: 21/12

SIGNATURE OF SIGNATORY:

WITNESSES: 1.

2.

E. CERTIFICATE OF AUTHORITY FOR JOINT VENTURES

This returnable schedule is to be completed by joint ventures.

We, the undersigned, are submitting this bid offer in joint venture and hereby authorise Mr/Ms , authorised signatory of the company..... , acting in the capacity of the lead partner, to sign all documents in connection with the bid offer and any contract resulting from it on our behalf.

NAME OF FIRM	ADDRESS	DULY AUTHORISED SIGNATORY
Lead partner		Signature: Name: Designation:
		Signature: Name: Designation:
		Signature: Name: Designation:
		Signature: Name: Designation:



REGIONAL OPERATIONS AND COORDINATION DEPARTMENT

TENDER FOR THE SUPPLY, DELIVERY AND OFF-LOADING OF CARTRIDGE FIRE CABLE SPIKING AND HYDRAULIC CABLE SPIKING EQUIPMENT, ACCESSORIES, AND CONSUMABLES TO BE USED ON THE ELECTRICITY DISTRIBUTION NETWORK

**BID NUMBER
(ROC 08 2024.25)**

1. INTRODUCTION AND PURPOSE

Tenderers are called for the supply, delivery and off-loading of cartridge fire cable spiking and hydraulic cable spiking equipment, accessories, and consumables for use on the electricity distribution network as and when required over a three-year period.

2. BACKGROUND

The bid is required to supply cable spiking equipment, accessories, and consumables for the spiking of cables operating at system voltages of up to and including 11kV.

The materials are required to be used in the whole of the City of Tshwane area.

The tender will be awarded per category to one or more successful bidder(s).

3. PROJECT SCOPE

This specification provides for the supply, delivery and off-loading of cartridge fire cable spiking and hydraulic cable spiking equipment, accessories, and consumables.

This specification covers portable cable spiking equipment for use on up to 4 core cables, armoured or unarmoured, operating at system voltages of up to and including 11kV.

The equipment must only be used to confirm that cables are dead before conducting work on the cable circuits to ensure safety.

The Cable Spiking Equipment is a device that is used to force a steel spike into a cable or cut a cable. It is operated remotely from a safe distance and is explosive cartridge-driven or hydraulic-driven. This equipment is designed to prevent any potential explosion resulting from accidentally spiking a live Cable.

Although the cable will be switched OFF, there lies a probability of spiking a LIVE cable. Therefore, the Cable Spiking Equipment shall be able to withstand the temperature and mechanical forces which arise when spiking a live cable.

The minimum life expectancy of the Cable Spiking Equipment covered in this specification is 10 years.

The specification covers the Cable Spiking Equipment, any ancillary clamps and jacks needed for specific cable types and the range of explosive cartridges required to cover the cable types used in City of Tshwane Electricity distribution network.

It is expected of the bidder to offer training in the operation, maintenance and storage of the Cable Spiking Tool and equipment in the whole of the City of Tshwane area. A competence certificate shall be issued once training is completed.

The Service provider must provide a written warranty with each purchase order, that guarantees that each product and workmanship comply with the specifications as set out in the tender document below and will repair or replace defective products, or their parts within the relevant warranty period. This commitment must be submitted with the invoice.

The Service provider must provide a manufacturer's certificate confirming the cable spiking tool is tested and safe for the use of spiking cables, operating at system voltages of up to and including 11kV.

Prospective bidders must have experience in and knowledge of providing cartridge fire cable spiking and hydraulic cable spiking equipment, accessories, and consumables for another organisation, municipality, or organ of state.

CATEGORY A

ITEM 1

CARTRIDGE FIRE CABLE SPIKING TOOL

The Cartridge Fire Cable Spiking Tool assembly should be made of materials that are resistant to corrosion, safe for cable spiking.

The Cable Spiking Tool shall have the following safety features:

- The Cable Spiking Tool shall be operable from a minimum length of 10m.
- shall have a safety catch to ensure that accidental firing of the trigger is prevented.

The Cable Spiking Tool assembly shall be supplied in a kit that includes the following:

- Cable Spiking Tool,
- a 10 m lanyard,
- Cleaning tools,
- A 30 mm wide steel chisel,
- a jacking attachment for removing the chisel from a cable after spiking; and
- A rigid case that provides mechanical protection and complete storage of the Cable Spiking Tool and all its accessories. Space within the case shall be provided for the storage of ancillaries (for example cartridges), assembly spanner (if required) and the user manual. All cases shall have a suitable locking facility (hasp and staple are suitable) to allow a padlock to be applied.

The Cable Spiking Tool assembly should consist of a head, a body containing a 30 mm wide chisel, and a set of split clamps.

The head shall be capable of housing a blank gun cartridge and shall have a safety catch to ensure that accidental firing of the trigger is prevented.

The trigger shall be operable via a lanyard with a minimum length of 10m.

The split clamp shall be adjustable and have fasteners (wing nuts) capable of being tightened by hand. This 'hand tightening' shall be sufficient to ensure that the clamp is fastened around the cable.

Although the cable will be switched OFF, there lies a probability of spiking a LIVE cable. Therefore, the Cable Spiking Tool assembly shall be able to withstand the temperature and mechanical forces which arise when spiking a live cable.

	It shall be possible to easily remove the chisel from the spiked cable with a jacking attachment. It shall be possible to sharpen a damaged chisel and re-use the chisel. Unusable chisels should be replaceable. Bidders that offer cartridge fire Cable Spiking Tool assembly, are compelled to offer the Cable Spiking Tool, cartridges, the 30mm steel chisels and the lanyard. The Cable Spiking Tool shall be indelibly marked with the manufacturer's name or logo, model number and serial number. The Cable Spiking Tool shall have a minimum guarantee period of two years. The Cable Spiking Tool shall be capable of safely spiking any cable with overall diameters in the range of 20 to 150mm which may or may not be energised, with constructions of tape armouring, wire armouring, unarmoured wire screens, Aluminium or Lead sheaths, paper, or polymeric insulation, and with working voltages up to 11kV. Cables may be up to 4 cores. In the case of smaller-diameter cables, it is an acceptable requirement that they be wrapped with Lead sheet or tape to stabilise the cable position in the operating jaws of the device. The bidder shall supply a comprehensive manufacturer's, user's manual, or handbook with each unit. This shall describe all the possible modes of operation of the Tool, selection of optimum settings and the precautions to be taken to ensure safe use of the Tool. The documentation should detail the recommended instructions for maintenance operations to be carried out after every operation and the frequency and support available for servicing and repair. The bidder shall provide a manufacturer's certificate confirming the tool is tested and safe for the use of spiking cables, operating at system voltages of up to and including 11kV. The Tool supplier shall provide full details of the availability and procedure to source replacement parts for the Tool. It is expected of the bidder to offer training to the user in the operation, maintenance, and storage of the Cable Spiking Tool on delivery of a new CARTRIDGE FIRE CABLE SPIKING TOOL. A competence certificate shall be issued once training is completed.
ITEM 2	RED SPIKING BLANK CARTRIDGE COMPATIBLE WITH ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT The cartridges must be compatible with ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT

	Please note that the charge of the cartridges must be RED, and the price submitted must be for a packet of fifty (50) cartridges as a unit. The delivery of cartridges shall only be made by road in suitably packaged and labelled containers to comply fully with any legislation.
ITEM 3	REPLACEMENT CLEANING TOOLS COMPATIBLE WITH ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT A complete set of cleaning tools must be compatible with ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT. The price submitted must be for a complete cleaning kit.
ITEM 4	REPLACEMENT LANYARD COMPATIBLE WITH ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT Replacement lanyard must be compatible with ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT.
ITEM 5	REPLACEMENT 30 MM WIDE CHISEL COMPATIBLE WITH ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT 30 mm wide chisel compatible with ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT. The price submitted must be per chisel.
ITEM 6	REPLACEMENT JACKING ATTACHMENT COMPATIBLE WITH ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT Jacking attachment compatible with ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT. The price submitted must be per unit.
ITEM 7	REPLACEMENT SET OF SPLIT CLAMPS COMPATIBLE WITH ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT Set of split clamps compatible with ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT. The price submitted must be per set.
ITEM 8	REPLACEMENT RIGID CASE A rigid that provides mechanical protection and complete storage of the Cable Spiking Tool and all its accessories. Space within the case shall be provided for the storage of ancillaries (for example cartridges), assembly spanner (if required) and the user manual. All cases shall have a suitable locking facility (hasp and staple are suitable) to allow a padlock to be applied.
ITEM 9	ADDITIONAL CABLE SPIKING TRAINING (FIRE CABLE SPIKING TOOL)

	Provide information, instructions, training, and supervision on the operation of all Spiking Tools and Equipment in use in the City of Tshwane to ensure safe use. • Training shall include. • Safety requirements • Methods of Cable Identification • Safety Precautions before Spiking • Use, maintenance and storage of Cable Spiking Equipment and accessories. • Case studies • Practical exercises • Course review The bidder shall provide training manuals, all practical training material (Cables, blades, chisels, cartridges), Cable Spike Tools and accessories. Training shall be provided throughout the whole of the City of Tshwane area, training should include practical training per individual. Candidates shall be issued with a competence certificate once training is completed. The price submitted must be per person attending training per course.
CATEGORY B	
ITEM 10	HYDRAULIC CABLE SPIKING TOOL The Hydraulic Cable Spiking Tool should be made of materials that are resistant to corrosion, safe for cable spiking. The Cable Spiking Tool shall have the following safety features where applicable: • Cutting failure sensor • Hydraulic over-pressure safety valve • Battery charge status indicator • Prevents the start of cutting if the battery is low. • Bi-directional communication between the transmitter and receiver before the fire signal is sent. • Encoded radio (Single encoding) • The Cable Spiking Tool shall be operable from a minimum length of 10m. • Indication of cutting progress and when completed if blade cutting. The Cable Spiking Tool shall be supplied in a kit that includes: • The Cable Spiking Tool • all essentials to spike a cable (for example blades, chisels, batteries, charger, remote, hydraulic pump, fully insulated non-metallic hose)

- user manual
- cleaning tools
- A rigid case that provides mechanical protection and complete storage of the Cable Spiking Tool and all its accessories and the user manual.

In the event the tool uses batteries, the following shall be included:

- 2 x 24V 3Ah batteries
- 220V fast charger

In the event the Cable Spiking Tool uses a blade, the blade shall be of reinforced heat-treated steel engineered specifically to cut the cable.

In the event the Cable Spiking Tool uses a chisel, the chisel shall be 30mm wide and made from steel.

The Cable Spiking Tool shall have a manual lever for opening and closing the blades.

Although the cable will be switched OFF, there lies a probability of spiking a LIVE cable. Therefore, the spiking Tool shall be able to withstand the temperature and mechanical forces which arise when spiking a live cable.

In the event of spiking a LIVE cable the spiking blade should be replaceable.

Bidders that offer a Hydraulic Cable Spiking Tool are compelled to offer the spiking blades, chisels, hydraulic pumps, remotes, batteries, chargers, and fully insulated non-metallic hoses where applicable.

The Cable Spiking Tool shall be indelibly marked with the manufacturer's name or logo, model number and serial number.

The Cable Spiking Tool shall have a minimum guarantee period of two years.

The Cable Spiking Tool shall be capable of safely spiking any cable with overall diameters in the range of 20 to 150mm which may or may not be energised, with constructions of tape armouring, wire armouring, unarmoured wire screens, Aluminium or Lead sheaths, paper, or polymeric insulation, and with working voltages up to 11kV. Cables may be up to 4 cores. In the case of smaller-diameter cables, it is an acceptable requirement that they be wrapped with Lead sheet or tape to stabilise the cable position in the operating jaws of the device.

The bidder shall supply a comprehensive manufacturer's, user's manual or handbook with each unit. This shall describe all the possible modes of operation of the equipment, selection of optimum settings and the precautions to be taken to ensure safe use of the equipment. The

	documentation should detail the recommended instructions for maintenance operations to be carried out after every operation and the frequency and support available for servicing and repair. The bidder shall provide a manufacturer's certificate, confirming the tool is tested and safe for the use of spiking cables operating at system voltages of up to and including 11kV. The equipment supplier shall provide full details of the availability and procedure to source replacement parts for the equipment. It is expected of the bidder to offer training to the user in the operation, maintenance, and storage of the Cable Spiking Tool on delivery of a new HYDRAULIC CABLE SPIKING TOOL. A competence certificate shall be issued once training is completed.
ITEM 11	REPLACEMENT CLEANING TOOLS COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL A complete set of cleaning tools must be compatible with ITEM 2: HYDRAULIC CABLE SPIKING TOOL. The price submitted must be for a complete cleaning kit.
ITEM 12	REPLACEMENT REMOTE COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL The remote must be compatible with ITEM 2: HYDRAULIC CABLE SPIKING TOOL
ITEM 13	REPLACEMENT PUMP COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL The pump must be compatible with ITEM 2: HYDRAULIC CABLE SPIKING TOOL
ITEM 14	REPLACEMENT 30 MM WIDE CHISEL COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL 30 mm wide chisel compatible with ITEM 2: HYDRAULIC CABLE SPIKING TOOL. The price submitted must be per chisel.
ITEM 15	REPLACEMENT BLADE COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL The blade shall be of reinforced heat-treated steel engineered specifically to cut cable compatible with ITEM 2: HYDRAULIC CABLE SPIKING TOOL. The price submitted must be per blade.
ITEM 16	REPLACEMENT JACKING ATTACHMENT COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL

	Jacking attachment compatible with ITEM 2: HYDRAULIC CABLE SPIKING TOOL . The price submitted must be per unit.
ITEM 17	REPLACEMENT SET OF SPLIT CLAMPS COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL Set of split clamps as per manufacturer's specification compatible with ITEM 2: HYDRAULIC CABLE SPIKING TOOL . The price submitted must be per unit.
ITEM 18	REPLACEMENT FULLY INSULATED NON-METALLIC ELECTRICAL INSULATED HOSE COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL Insulated non-metallic (electrically insulated) hose as per manufacturer's specification compatible of ITEM 2: HYDRAULIC CABLE SPIKING TOOL . The price submitted must be per unit.
ITEM 19	REPLACEMENT BATTERY POWER SUPPLY COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL Battery power supply as per manufacturer specification, compatible with ITEM 2: HYDRAULIC CABLE SPIKING TOOL . The price submitted must be per unit
ITEM 20	REPLACEMENT BATTERY POWER CHARGER COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL Battery power supply as per manufacturer specification, compatible with ITEM 2: HYDRAULIC CABLE SPIKING TOOL . The price submitted must be per unit.
ITEM 21	REPLACEMENT BLADE TOOLS COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL Replaceable Blade tools, compatible with ITEM 2: HYDRAULIC CABLE SPIKING TOOL . The price submitted must be per set.
ITEM 22	REPLACEMENT FLEXIBLE COPPER EARTHING BRAID COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL Flexible copper earthing braid of 2 meters long. Section 70mm ² , compatible with ITEM 2: HYDRAULIC CABLE SPIKING TOOL . The price submitted must be per set.
ITEM 23	REPLACEMENT EARTHING ROD COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL Earthing Rod, compatible with ITEM 2: HYDRAULIC CABLE SPIKING TOOL . The price submitted must be per set.

ITEM 24	REPLACEMENT RIGID CASE COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL A rigid that provides mechanical protection and complete storage of the Cable Spiking Tool and all its accessories. Space within the case shall be provided for the storage of ancillaries (for example cartridges), assembly spanner (if required) and the user manual. All cases shall have a suitable locking facility (hasp and staple are suitable) to allow a padlock to be applied.
ITEM 25	ADDITIONAL CABLE SPIKING TRAINING (HYDRAULIC CABLE SPIKING TOOL) Provide information, instructions, training, and supervision on the operation of all Spiking Tools and Equipment in use in the City of Tshwane to ensure safe use. • Training shall include. • Safety requirements • Methods of Cable Identification • Safety Precautions before Spiking • Use, maintenance and storage of Cable Spiking Equipment and accessories. • Case studies • Practical exercises • Course review The bidder shall provide training manuals, all practical training material (Cables, blades, chisels, cartridges), Cable Spike Tools and accessories. Training shall be provided throughout the whole of the City of Tshwane area, training should include practical training per individual. Candidates shall be issued with a competence certificate once training is completed. The price submitted must be per person attending training per course.
CATEGORY C	
ITEM 26	RED SPIKING BLANK CARTRIDGE COMPATIBLE WITH KARL SCHERMER CABLE SPIKING GUN Red spiking Blank Cartridge compatible with KARL SCHERMER CABLE SPIKING GUN. The cartridge's size must be 10x16 ROT with the bottom end open for the spiking chisel to fit into it. (It must not be crimped) Please note that the charge of the cartridges must be RED, and the price submitted must be for a packet of fifty (50) cartridges as a unit.

	The delivery of cartridges shall only be made by road in suitably packaged and labelled containers to comply fully with any legislation.
CATEGORY D	
ITEM 27	REPLACEMENT CLEANING TOOLS COMPATIBLE WITH KARL SCHERMER CABLE SPIKING GUN A complete set of cleaning tools must be compatible with KARL SCHERMER CABLE SPIKING GUN . The price submitted must be for a complete cleaning kit.
ITEM 28	REPLACEMENT LANYARD COMPATIBLE WITH KARL SCHERMER CABLE SPIKING GUN Replacement lanyard must be compatible with KARL SCHERMER CABLE SPIKING GUN
ITEM 29	REPLACEMENT 30 MM WIDE CHISEL COMPATIBLE WITH KARL SCHERMER CABLE SPIKING GUN 30 mm wide chisel compatible with KARL SCHERMER CABLE SPIKING GUN . The price submitted must be per chisel.
ITEM 30	REPLACEMENT JACKING ATTACHMENT COMPATIBLE WITH KARL SCHERMER CABLE SPIKING GUN Jacking attachment compatible with KARL SCHERMER CABLE SPIKING GUN . The price submitted must be per unit.
ITEM 31	REPLACEMENT SET OF SPLIT CLAMPS COMPATIBLE WITH KARL SCHERMER CABLE SPIKING GUN Set of split clamps compatible with KARL SCHERMER CABLE SPIKING GUN . The price submitted must be per set.
ITEM 32	REPLACEMENT RIGID CASE COMPATIBLE WITH KARL SCHERMER CABLE SPIKING GUN A rigid that provides mechanical protection and complete storage of the Cable Spiking Tool and all its accessories. Space within the case shall be provided for the storage of ancillaries (for example cartridges), assembly spanner (if required) and the user manual. All cases shall have a suitable locking facility (hasp and staple are suitable) to allow a padlock to be applied.
CATEGORY E	
ITEM 33	FLASH PROTECTIVE MAT: 0,7M X 1M Flash protective mat to withstand 11KV flash

3.1 COMPLIANCE TO LAWS AND REGULATIONS

All applicable laws and regulations must be adhered to by the tenderer with reference to the registration of the products, the active ingredients and the safe delivery of the products.

NATIONAL LAWS

The Occupational Health and Safety Act 1993 (Act 85 of 1993) GN 1179 of 28 August 1995.

4 DELIVERABLES

Deliveries of items 1 and 10 must take place within 30 working days of receiving an official purchase order.

Deliveries of all other items must take place within 7 working days of the purchase order.

Deliveries will be made at depots across all 7 Regions as and when required.

Delivery of products should include the off-loading thereof at the supplier's own risk and cost to the designated delivery addresses.

An official purchase order must be issued before any delivery may be made to the Municipality.

5 STAGES OF EVALUATION

This bid will be evaluated in three (3) evaluation stages namely:

- **Stage 1:** Administrative compliance
- **Stage 2:** Mandatory Requirements
- **Stage 3:** Preference Points System

5.1 STAGE 1: ADMINISTRATIVE COMPLIANCE

All the bids will be evaluated against the administrative responsiveness requirements as set out in the list of returnable documents.

Compulsory Returnable Documentation (Submission of these are compulsory)	Submitted (YES or NO)	Checklist (Guide for Bidder and the Bid Evaluation Committee)
a) To enable The City to verify the bidder's tax compliance status, the bidder must provide; • A copy of their Tax Clearance Certificate (TCS); or • Indicate their tax compliance status PIN.	YES	TCS must be in the same business name as the bidding company. TCS must be valid. Tax status must be compliant before the award.
b) A copy of their Central Supplier Database (CSD) registration; or indicate their Master Registration Number / CSD Number;	YES	CSD must be valid. Tax status must be compliant before the award.
c) Confirmation that the bidding company's rates and taxes are up to date: Original or copy of Municipal Account Statement of the Bidder (bidding company) not older than 3 months and account must not be in arrears for more than ninety (90) days; or ,signed lease agreement or In case of bidders located in informal settlement, rural areas or areas where they are not required to pay Rates and Taxes a letter from the local councillor confirming they are operating in that area	YES	Was a Municipal Account Statement or landlord letter provided for the bidding company? The name and / or addresses of the bidder's statement correspond with CIPC document, Address on CSD or Company profile? Are all payment(s) up to date (i.e. not in arrears for more than 90 days?
d) In addition to the above, confirmation that all the bidding company's owners / members / directors / major shareholders rates and taxes are up to date: • Original or copy of Municipal Account Statement of all the South African based owners / members / directors / major shareholders not older than 3 months and the account/s may not be in arrears for	YES	Was a Municipal Account Statement or landlord letter provided for the bidding company? The name and / or addresses of the bidder's statement correspond with CIPC document, Address on CSD or Company profile? Are all

more than ninety (90) days; or a signed lease agreement of owners / members / directors / major shareholders or In case of bidders located in informal settlement, rural areas or areas where they are not required to pay Rates and Taxes a letter from the local councillor confirming they are residing in that area	Yes	payment(s) up to date (i.e. not in arrears for more than 90 days?
e) Duly Signed and completed MBD forms (MBD 1, 4, 8 and 9) The person signing the bid documentation must be authorized to sign on behalf of the bidder. Where the signatory is not a Director / Member / Owner / Shareholder of the company, an official letter of authorization or delegation of authority should be submitted with the bid document. NB: Bidders must ensure that the directors, trustees, managers, principal shareholders, or stakeholders of this company, declare any interest in any other related companies or business, whether or not they are bidding for this contract. <u>See Question 3.14 of MBD 4. Failure to declare interest will result in a disqualification</u>	Yes	All documents fully completed (i.e. no blank spaces)? All documents fully signed? Signature authorized (any director / member / trustee as indicated on the CIPC document, alternatively a delegation of authority would be required? Documents completed in black ink (i.e. no "Tippex" corrections, no pencil, no other color ink, or non-submission of the above , will be considered)?
f) Financial Statements for the most recent three (3) years or financial statements from date of existence for companies less than three years old. NB: The bidder must submit signed audited annual financial statements for the most recent three years, or if established for a shorter period, submit audited annual financial statements from date of establishment. If the bidder is not required by law to prepare signed annual financial statements for auditing purposes, then the bidder must submit proof that the bidder is not required by law to prepare audited financial statements.	Yes	Applicable for tenders above R10m in conjunction with MBD 5) Are Audited financial statements provided (Audited financials must be signed by auditor)? Or proof that the bidder is not required by law to prepare audited financial statements.
g) Joint Ventures (JV) – (Only applicable when the bidder tenders as a joint venture) Where the bidder bids as a joint venture (JV), the required or relevant documents as per (a) to (f) above must be provided for all JV parties. In addition to the above the bidder must submit a Joint Venture (JV) agreement signed by the relevant parties. NB: It is a condition of this bid that the successful bidder will continue with the same Joint Venture (JV) for the duration of the contract unless prior approval is obtained from the City.	NO	If applicable. JV agreement provided? JV agreement complete and relevant? Agreement signed by all parties? All required documents as per (i.e. a to f) must be provided for all partners of the JV.
h) Bidder attended a compulsory briefing session where applicable	NO	A compulsory briefing register must be signed by the bidder.

		Bidders will be disqualified should they fail to attend compulsory briefing session
5) Pricing schedule (All items must be quoted for in pricing schedule and if not, all items are quoted the bidder will be disqualified). Unless the tender is awarded per item or per section where the bidder only quoted the items or sections, they are interested in.	yes	Incomplete pricing schedule results in totals being incomparable. Bidder must be disqualified. Bidder will be disqualified should they make corrections on the price schedule without attaching a signature thereto. Bidder will be disqualified should they use tippex/ correction ink, on the price schedule.

5.2 STAGE 2: MANDATORY REQUIREMENTS

5.2.1 Company Experience

Prospective bidders must have experience in and knowledge of providing cartridge fire cable spiking and hydraulic cable spiking equipment, accessories, and consumables for another organisation, municipality, or organ of state.

The bidder should submit at least one appointment letter with a referral letter on signed valid letterheads from another organization, municipality, or organ of state as proof that they have provided cartridge fire cable spiking and hydraulic cable spiking equipment, accessories, and consumables. The timeframe of when the services were rendered must be clearly indicated and accompanied by contactable references:

5.2.2 Bank rating

Service provider must provide proof of minimum Level C Bank rating from the service provider's financial institution registered with the NCR with the tender. Service providers to provide the bank rating letter on the official bank letter head.

5.3 STAGE 3: PREFERENCE POINTS SYSTEM

The preferential points to be used will be the 80/20 system in terms of the Preferential Procurement Policy Framework Act, 2000 (Act 5 of 2000) Regulations 2017.

- 80 points for price
- 20 points for B-BBEE status (service provider to submit the certified copy of the B-BBEE level rating certificate).

The system comprises of the following elements:

- 80 points for price
- 20 points for specific goals

Specific goals	80/20 preference point system	Proof of specific goals to be submitted
BB-BEE score of companies • Level 1 • Level 2 • Level 3 • Level 4 • Level 5 • Level 6 • Level 7 • Level 8 • Non-compliant	• 8 Points • 7 Points • 6 Points • 5 Points • 4 Points • 3 Points • 2 Points • 1 Point • 0 Points	Valid Certified copy of BBBEE certificate. Sworn Affidavit for B-BBEE qualifying small enterprise or Exempt Micro Enterprises or CIPC BBBEE certificate.
EME and/ or QSE	2 Points	Valid Sworn affidavit for B-BBEE qualifying small enterprise or Exempt Micro Enterprises or CIPC BBBEE certificate
At least 51% of Women-owned companies	2 Points	Certified copy of Identity Document/s and proof of ownership (Sworn affidavit for B-BBEE qualifying small enterprise or Exempt Micro Enterprises, CIPC registration or any other proof of ownership)
At least 51% owned companies by People with disability	2 Points	Medical Certificate with doctor's details (Practice Number, Physical Address, and contact numbers) and proof of ownership (Sworn affidavit for B-BBEE qualifying small enterprise or Exempt Micro Enterprises, CIPC registration or any other proof of ownership)
At least 51% owned companies by Youth	2 Point	Certified copy of Identity Document/s and proof of ownership (Sworn affidavit for B-BBEE qualifying small enterprise or Exempt Micro Enterprises, CIPC registration or any other proof of ownership)
Local Economic Participation • City of Tshwane • Gauteng • National	4 Points 2 Points 1 Point	Municipal Account statement/Lease agreement.

6 VALIDITY PERIOD

The validity period for the tender after closure is 90 days. CoT shall have right and power to extend any tender validity period beyond any initial validity period set and subsequent extensions. SCM shall ensure that an extension of validity is requested in writing from all bidders before the validity expiry date. Extension of validity shall be finalised while the quotations/bids are still valid.

7 PRICING SCHEDULE

GENERAL CONDITIONS

- The City of Tshwane reserves the right to appoint one or more bidder.
- Should the City appoint more than one bidder per category, once the supplier is given an opportunity to supply, the next delivery order will be given to next qualifying supplier.
- The City of Tshwane will award the tender per category.
- A bidder may be appointed to more than one category.
- This is a rate only tender
- Pricing is for evaluation purposes only and does not reflect the value of the tender,
- The price must be tendered per 1 item requested.
- The unit price must include supply, delivery and offloading charges.
- Deliveries of items 1 and 10 must take place within 30 working days of receiving the purchase order.
- Deliveries of all other items must take place within 7 working days of the purchase order.
- Goods must be delivered according to the specifications.
- Invoices can only be submitted once the goods have been received and the delivery note has been signed off.
- A bidder must bid for all items per category to per qualify for the tender.

AWARD

- The City of Tshwane intends to appoint one bidder per category, but a bidder can be appointed for more than one category.
- The tenderer must tender for all items and sub-items per category, failing which the bid for that specific category will be disqualified.

The pricing schedule indicates estimated quantities the City of Tshwane might require for the three years of the tender period. This is however not a commitment by the City of Tshwane to any quantity

	CATEGORY 1: CARTRIDGE FIRE CABLE SPIKING TOOL				
	Material number	Description	Estimated Quantity	Unit Price	Total Price Exl Vat (estimated quantity x unit price)
ITEM 1.1	200000043154	CARTRIDGE FIRE CABLE SPIKING TOOL	14	R114 681,00	R1 605 534,00
ITEM 1.2	200000043155	RED SPIKING BLANK CARTRIDGE COMPATIBLE WITH ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT	100 containers	R14 931,01	R1 493 101,47
ITEM 1.3	200000043156	REPLACEMENT CLEANING TOOLS COMPATIBLE WITH ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT	14	R270,90	R3 792,60
ITEM 1.4	200000043157	REPLACEMENT LANYARD COMPATIBLE WITH ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT	14	R980,40	R13 725,60
ITEM 1.5	200000043158	REPLACEMENT 30 MM WIDE CHISEL COMPATIBLE WITH ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT	84	R8700,24	R730 819,93
ITEM 1.6	200000043159	REPLACEMENT JACKING ATTACHMENT COMPATIBLE WITH ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT	21	R1290,65	R27 103,55
ITEM 1.7	200000043160	REPLACEMENT SET OF SPLIT CLAMPS COMPATIBLE	7	R21 932,37	R153 526,62

		WITH ITEM 1: CARTRIDGE FIRE CABLE SPIKING EQUIPMENT			
ITEM 1.8	200000043161	REPLACEMENT RIGID CASE	2	R13 738,50	R27 477,00
ITEM 1.9		ADDITIONAL CABLE SPIKING TRAINING: ITEM 1: CARTRIDGE FIRE CABLE SPIKING TOOL	7	R22 898,15	R160 287,02
TOTAL (Excl. VAT)					R4 215 367,78
VAT					R632 305,17
TOTAL (Incl. VAT)					R4 847 672,95

		CATEGORY 2: HYDRAULIC CABLE SPIKING TOOL			
ITEM		Description	Estimated Quantity	Unit Price	Total Price Exl Vat (estimated quantity x unit price)
ITEM 2.1	200000043162	HYDRAULIC CABLE SPIKING TOOL	28	R377 273,40	R10 563 655,20
ITEM 2.2	200000043163	REPLACEMENT CLEANING TOOLS COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL	28	R593,40	R16 615,20
ITEM 2.3	200000043164	REPLACEMENT REMOTE COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL	7	R23 310,30	R163 172,10
ITEM 2.4	200000043165	REPLACEMENT PUMP COMPATIBLE WITH ITEM 2: HYDRAULIC	7	R26 187,00	R183 309,00

		CABLE SPIKING TOOL			
ITEM 2.5	200000043166	REPLACEMENT 30 MM WIDE CHISEL COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL	28	R25 232,40	R 706 507,20
ITEM 2.6	200000043167	REPLACEMENT BLADE COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL	28	R25 232,40	R 706 507,20
ITEM 2.7	200000043168	REPLACEMENT JACKING ATTACHMENT COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL	28	R 1419,00	R 39 732,00
ITEM 2.8	200000043169	REPLACEMENT SET OF SPLIT CLAMPS COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL	28	R0,00	R0,00
ITEM 2.9	200000043170	REPLACEMENT FULLY INSULATED NON-METALLIC ELECTRICAL INSULATED HOSE COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL	28	R0,00	R0,00
ITEM 2.10	200000043172	REPLACEMENT BATTERY POWER SUPPLY COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL	28	R10 384,50	R 290 766,00
ITEM 2.11	200000043173	REPLACEMENT BATTERY POWER	7	R5 663,10	R 39 641,70

		CHARGER COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL			
ITEM 2.12	200000043174	REPLACEMENT BLADE TOOLS COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL	28	R20,00	R20,00
ITEM 2.13	200000043175	REPLACEMENT FLEXIBLE COPPER EARTHING BRAID COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL	28	R16 512,00	R462 336,00
ITEM 2.14	200000043176	REPLACEMENT EARTHING ROD COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL	28	R2 193,00	R61 404,00
ITEM 2.15	200000043177	REPLACEMENT RIGID CASE COMPATIBLE WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL	7	R44 247,00	R309 729,00
ITEM 2.16		ADDITIONAL CABLE SPIKING TRAINING: WITH ITEM 2: HYDRAULIC CABLE SPIKING TOOL	7	R3 919,00	R27 993,00
TOTAL (Excl. VAT)					R13 571 367,60
VAT					R 2 035 705,14
TOTAL (Incl. VAT)					R15 607 072,74

CATEGORY 3: RED SPIKING BLANK CARTRIDGE COMPATIBLE WITH CURRENT USED CABLE SPIKING GUN					
ITEM	Material number	Description	Estimated Quantity	Unit Price	Total Price Ex Vat (estimated quantity x unit price)
ITEM 3.1	200000043178	RED SPIKING BLANK CARTRIDGE COMPATIBLE WITH KARL SCHERMER CABLE SPIKING GUN	100 containers	R14 925,30	R1 492 530,00
TOTAL (Excl. VAT)					R1 492 530,00
VAT					R 223 829,00
TOTAL (Incl. VAT)					R1 716 409,50

CATEGORY 4: REPLACEMENT COMPONENTS FOR CURRENT USE CABLE SPIKING GUN					
ITEM	Material number	Description	Estimated Quantity	Unit Price	Total Price Exl Vat (estimated quantity x unit price)
ITEM 4.1	200000043179	REPLACEMENT CLEANING TOOLS COMPATIBLE WITH KARL SCHERMER CABLE SPIKING GUN	14	R283,80	R3 973,20
ITEM 4.2	200000043180	REPLACEMENT LANYARD COMPATIBLE WITH KARL SCHERMER CABLE SPIKING GUN	14	R1026,84	R14 375,76
ITEM 4.3	200000043181	REPLACEMENT 30 MM WIDE CHISEL COMPATIBLE WITH KARL SCHERMER	21	R9223,50	R193 693,50

		CABLE SPIKING GUN			
ITEM 4.4	200000043182	REPLACEMENT JACKING ATTACHMENT COMPATIBLE WITH KARL SCHERMER CABLE SPIKING GUN	14	R1 626,05	R22 764,63
ITEM 4.5	200000043183	REPLACEMENT SET OF SPLIT CLAMPS COMPATIBLE WITH KARL SCHERMER CABLE SPIKING GUN	14	R23 259,99	R325 639,86
ITEM 4.6	200000043184	REPLACEMENT RIGID CASE COMPATIBLE WITH KARL SCHERMER CABLE SPIKING GUN	14	R14 533,14	R203 463,96
TOTAL (Excl. VAT)					R763 910,91
VAT					R114 586,64
TOTAL (Incl. VAT)					R878 497,55

CATEGORY 5					
ITEM	Material number	Description	Estimated Quantity	Unit Price	Total Price Ex Vat (estimated quantity x unit price)
ITEM 5	200000043185	FLASH PROTECTIVE MAT: 0,7M X 1M	28	R2 567,10	R71 878,80
TOTAL (Excl. VAT)					R71 878,80
VAT					R10 781,82
TOTAL (Incl. VAT)					R82 660,62

Pricing schedule summary

No	Category	Total price inclusive of VAT
1	CATEGORY 1: CARTRIDGE FIRE CABLE SPIKING TOOL	R 4 847 672,95
2	CATEGORY 2: HYDRAULIC CABLE SPIKING TOOL	R 15 607 072,74
3	CATEGORY 3: RED SPIKING BLANK CARTRIDGE COMPATIBLE WITH CURRENT USED CABLE SPIKING GUN	R 1 716 409,50
4	CATEGORY 4: REPLACEMENT COMPONENTS FOR CURRENT USE CABLE SPIKING GUN	R 878 497,55
5	CATEGORY 5	R 82 660,62
TOTAL BID PRICE TRANSFER TO MBD 1		R 23 132 313,35

NOTE:

Tenderer(s) shall tender for all the items in the Category. If an item in sub-category, is not tendered/priced, the tender will not be considered.

8 MARKET ANALYSIS

The City of Tshwane reserves the right to conduct a market analysis. Should the City exercise this option, where a service provider offers a price that is deemed not to be viable to supply goods or services as required, written confirmation will be made with the service provider to determine if it will be able to deliver on the price. If a service provider confirms that it cannot, the service provider will be disqualified based on being non-responsive. If the service provider confirms that it can deliver, a tight contract to mitigate the risk of non-performance will be entered into with the service provider. Further action on failures by the supplier to deliver will be handled in terms of the contract, including performance warnings and listing on the database of restricted suppliers.

The City of Tshwane further reserves the right to negotiate a market-related price with the service provider that scored the most points. If the service provider does not agree to a market-related price, the City reserves the right to negotiate a market-related price

with the service provider that scored the second-most points. If the service provider that scored the second-most points does not agree to a market-related price, the City will negotiate a market-related price with the service provider that scored the third-most points. If a market-related price is not agreed, the City reserves the right to cancel the tender.

9 SERVICE LEVEL AGREEMENTS

The successful bidders must enter into a Service level agreement with the Municipality upon appointment for this tender.

PART A INVITATION TO BID

YOU ARE HEREBY INVITED TO BID FOR REQUIREMENTS OF THE CITY OF TSHWANE MUNICIPALITY					
BID NUMBER:	ROC 08 2024/25	CLOSING DATE:	26 February 2025	CLOSING TIME:	10:00am
DESCRIPTION	TENDER FOR THE SUPPLY, DELIVERY AND OFF-LOADING OF CARTRIDGE FIRE CABLE SPIKING AND HYDRAULIC CABLE SPIKING EQUIPMENT, ACCESSORIES, AND CONSUMABLES TO BE USED ON THE ELECTRICITY DISTRIBUTION NETWORK				
THE SUCCESSFUL BIDDER WILL BE REQUIRED TO FILL IN AND SIGN A WRITTEN CONTRACT FORM (MBD7).					
BID RESPONSE DOCUMENTS MAY BE DEPOSITED IN THE BID BOX SITUATED AT (STREET ADDRESS)					
Tshwane House					
Supply Chain Management					
320 Madiba Street					
Pretoria CBD					
0001					
SUPPLIER INFORMATION					
NAME OF BIDDER	SITHEMBE TRANSPORTATION AND PROJECTS				
POSTAL ADDRESS	285 ERASMUS AVENUE, PASIDUW AH · 0157				
STREET ADDRESS	285 ERASMUS AVENUE, PASIDUW AH, CENTURION				
TELEPHONE NUMBER	CODE	012	NUMBER	880 3155	
CELLPHONE NUMBER	073 124 1535				
FACSIMILE NUMBER	CODE	NA	NUMBER	NA	
E-MAIL ADDRESS	TENDERS@SITHEMBE.CO.ZA				
VAT REGISTRATION NUMBER	4070272101				
TAX COMPLIANCE STATUS	TCS PIN:	FS235219OR	CSD No:	MAAA057	
B-BBEE STATUS LEVEL VERIFICATION CERTIFICATE [TICK APPLICABLE BOX]	☒ Yes ☐ No		B-BBEE STATUS LEVEL SWORN AFFIDAVIT ☐ Yes ☒ No		
[A B-BBEE STATUS LEVEL VERIFICATION CERTIFICATE/ SWORN AFFIDAVIT (FOR EMES & QSEs) MUST BE SUBMITTED IN ORDER TO QUALIFY FOR PREFERENCE POINTS FOR B-BBEE]					
ARE YOU THE ACCREDITED REPRESENTATIVE IN SOUTH AFRICA FOR THE GOODS /SERVICES /WORKS OFFERED?	☒ Yes ☐ No [IF YES ENCLOSE PROOF]		ARE YOU A FOREIGN BASED SUPPLIER FOR THE GOODS /SERVICES /WORKS	☒ Yes ☐ No [IF YES, ANSWER PART B:3]	

		OFFERED?	
TOTAL NUMBER OF ITEMS OFFERED	ALL ITEMS	TOTAL BID PRICE	R23 132 313,35
SIGNATURE OF BIDDER	 <i>[Signature]</i>	DATE	13/01/26
CAPACITY UNDER WHICH THIS BID IS SIGNED	DIRECTOR		
BIDDING PROCEDURE ENQUIRIES MAY BE DIRECTED TO:		TECHNICAL INFORMATION MAY BE DIRECTED TO:	
DEPARTMENT	Supply Chain Management	DEPARTMENT	Regional Operations and Coordination
CONTACT PERSON	Relebogile Malatswane	CONTACT PERSON	Lizelle G. Veenemans
TELEPHONE NUMBER	012 358 2735	TELEPHONE NUMBER	012 358 5566
EMAIL ADDRESS	RelebogileM@tshwane.gov.za	EMAIL ADDRESS	lizellev@tshwane.gov.za

PART B TERMS AND CONDITIONS FOR BIDDING

1. BID SUBMISSION	
1.1	BIDS MUST BE DELIVERED BY THE STIPULATED TIME TO THE CORRECT ADDRESS. LATE BIDS WILL NOT BE ACCEPTED FOR CONSIDERATION.
1.2	ALL BIDS MUST BE SUBMITTED ON THE OFFICIAL FORMS PROVIDED—(NOT TO BE RE-TYPED) OR ONLINE
1.3	THIS BID IS SUBJECT TO THE PREFERENTIAL PROCUREMENT POLICY FRAMEWORK ACT AND THE PREFERENTIAL PROCUREMENT REGULATIONS, 2022, THE GENERAL CONDITIONS OF CONTRACT (GCC) AND, IF APPLICABLE, ANY OTHER SPECIAL CONDITIONS OF CONTRACT.
2. TAX COMPLIANCE REQUIREMENTS	
2.1	BIDDERS MUST ENSURE COMPLIANCE WITH THEIR TAX OBLIGATIONS.
2.2	BIDDERS ARE REQUIRED TO SUBMIT THEIR UNIQUE PERSONAL IDENTIFICATION NUMBER (PIN) ISSUED BY SARS TO ENABLE THE ORGAN OF STATE TO VIEW THE TAXPAYER'S PROFILE AND TAX STATUS.
2.3	APPLICATION FOR THE TAX COMPLIANCE STATUS (TCS) CERTIFICATE OR PIN MAY ALSO BE MADE VIA E-FILING. IN ORDER TO USE THIS PROVISION, TAXPAYERS WILL NEED TO REGISTER WITH SARS AS E-FILERS THROUGH THE WEBSITE WWW.SARS.GOV.ZA.
2.4	FOREIGN SUPPLIERS MUST COMPLETE THE PRE-AWARD QUESTIONNAIRE IN PART B:3.
2.5	BIDDERS MAY ALSO SUBMIT A PRINTED TCS CERTIFICATE TOGETHER WITH THE BID.
2.6	IN BIDS WHERE CONSORTIA / JOINT VENTURES / SUB-CONTRACTORS ARE INVOLVED, EACH PARTY MUST SUBMIT A SEPARATE TCS CERTIFICATE / PIN / CSD NUMBER.
2.7	WHERE NO TCS IS AVAILABLE BUT THE BIDDER IS REGISTERED ON THE CENTRAL SUPPLIER DATABASE (CSD), A CSD NUMBER MUST BE PROVIDED.
3. QUESTIONNAIRE TO BIDDING FOREIGN SUPPLIERS	
3.1	IS THE ENTITY A RESIDENT OF THE REPUBLIC OF SOUTH AFRICA (RSA)? YES ☐ NO ☐
3.2	DOES THE ENTITY HAVE A BRANCH IN THE RSA? YES ☐ NO ☐
3.3	DOES THE ENTITY HAVE A PERMANENT ESTABLISHMENT IN THE RSA? YES ☒ NO ☐
3.4	DOES THE ENTITY HAVE ANY SOURCE OF INCOME IN THE RSA? YES ☐ NO ☐

3.5 IS THE ENTITY LIABLE IN THE RSA FOR ANY FORM OF TAXATION? YES ☐ NO ☐

IF THE ANSWER IS "NO" TO ALL OF THE ABOVE, THEN IT IS NOT A REQUIREMENT TO REGISTER FOR A TAX COMPLIANCE STATUS SYSTEM PIN CODE FROM THE SOUTH AFRICAN REVENUE SERVICE (SARS) AND IF NOT REGISTER AS PER 2.3 ABOVE.

NB: FAILURE TO PROVIDE ANY OF THE ABOVE PARTICULARS MAY RENDER THE BID INVALID. NO BIDS WILL BE CONSIDERED FROM PERSONS IN THE SERVICE OF THE STATE.

SIGNATURE OF BIDDER:

.....

CAPACITY UNDER WHICH THIS BID IS SIGNED:

.....DIRECTOR.....

DATE:

.....13/01/25.....



MBD 3.1

PRICING SCHEDULE: FIRM PRICES (PURCHASES)

NOTE: ONLY FIRM PRICES WILL BE ACCEPTED. NON-FIRM PRICES (INCLUDING PRICES SUBJECT TO RATES OF EXCHANGE VARIATIONS) WILL NOT BE CONSIDERED

IN CASES WHERE DIFFERENT DELIVERY POINTS INFLUENCE THE PRICING, A SEPARATE PRICING SCHEDULE MUST BE SUBMITTED FOR EACH DELIVERY POINT

Name of Bidder: SITHENBE TRANSPORTATION AND LOGISTICS Bid Number: POC.08.2024.25
Closing Time: 10H00 Closing Date: 26/02/25

OFFER TO BE VALID FOR 90 DAYS FROM THE CLOSING DATE OF BID.

ITEM NO.	QUANTITY	DESCRIPTION	BID PRICE IN RSA CURRENCY **(ALL APPLICABLE TAXES INCLUDED)
----------	----------	-------------	--

- Required by: CITY OF TSHWANE
- At: PRETORIA
- Brand and Model: AS SPECIFICATIONS
- Country of Origin: SOUTH AFRICA
- Does the offer comply with the specification(s)? *YES/NO
- If not to specification, indicate deviation(s) N/A
- Period required for delivery: 3 YEARS
*Delivery: Firm/Not firm
- Delivery basis: AS AND WHEN REQUIRED

Note: All delivery costs must be included in the bid price, for delivery at the prescribed destination.

** "all applicable taxes" includes value- added tax, pay as you earn, income tax, unemployment insurance fund contributions and skills development levies.

* Delete if not applicable

PRICING SCHEDULE: NON-FIRM PRICES (PURCHASES)

NOTE: PRICE ADJUSTMENTS WILL BE ALLOWED AT THE PERIODS AND TIMES SPECIFIED IN THE BIDDING DOCUMENTS.

IN CASES WHERE DIFFERENT DELIVERY POINTS INFLUENCE THE PRICING, A SEPARATE PRICING SCHEDULE MUST BE SUBMITTED FOR EACH DELIVERY POINT

Name of Bidder	Bid number
Closing Time	Closing Date

OFFER TO BE VALID FOR 90 DAYS FROM THE CLOSING DATE OF BID.

ITEM NO.	QUANTITY	DESCRIPTION	BID PRICE IN RSA CURRENCY **(ALL APPLICABLE TAXES INCLUDED)
----------	----------	-------------	--

- Required by:
- At:
- Brand and model
- Country of origin
- Does the offer comply with the specification(s)? *YES/NO
- If not to specification, indicate deviation(s)
- Period required for delivery
- Delivery: *Firm/Not firm
- ** "all applicable taxes" includes value-added tax, pay as you earn, income tax, unemployment insurance fund contributions and skills development levies.
- * Delete if not applicable

PRICE ADJUSTMENTS

A. NON-FIRM PRICES SUBJECT TO ESCALATION

1. IN CASES OF PERIOD CONTRACTS, NON FIRM PRICES WILL BE ADJUSTED (LOADED) WITH THE ASSESSED CONTRACT PRICE ADJUSTMENTS IMPLICIT IN NON FIRM PRICES WHEN CALCULATING THE COMPARATIVE PRICES
2. IN THIS CATEGORY PRICE ESCALATIONS WILL ONLY BE CONSIDERED IN TERMS OF THE FOLLOWING FORMULA:

$$Pa = (1-V)Pt \left(D1 \frac{R1t}{R1o} + D2 \frac{R2t}{R2o} + D3 \frac{R3t}{R3o} + D4 \frac{R4t}{R4o} \right) + VPt$$

Where:

- Pa = The new escalated price to be calculated.
- (1-V) Pt = 85% of the original bid price. **Note that Pt must always be the original bid price and not an escalated price.**
- D1, D2.. = Each factor of the bid price eg. labour, transport, clothing, footwear, etc. The total of the various factors D1,D2...etc. must add up to 100%.
- R1t, R2t..... = Index figure obtained from new index (depends on the number of factors used).
- R1o, R2o = Index figure at time of bidding.
- VPt = 15% of the original bid price. This portion of the bid price remains firm i.e. it is not subject to any price escalations.

3. The following index/indices must be used to calculate your bid price:

Index..... Dated..... Index..... Dated..... Index..... Dated.....
 Index..... Dated..... Index..... Dated..... Index..... Dated.....

4. FURNISH A BREAKDOWN OF YOUR PRICE IN TERMS OF ABOVE-MENTIONED FORMULA. THE TOTAL OF THE VARIOUS FACTORS MUST ADD UP TO 100%.

FACTOR (D1, D2 etc. eg. Labour, transport etc.)	PERCENTAGE OF BID PRICE



B. PRICES SUBJECT TO RATE OF EXCHANGE VARIATIONS

- Please furnish full particulars of your financial institution, state the currencies used in the conversion of the prices of the items to South African currency, which portion of the price is subject to rate of exchange variations and the amounts remitted abroad.

PARTICULARS OF FINANCIAL INSTITUTION	ITEM NO	PRICE	CURRENCY	RATE	PORTION OF PRICE SUBJECT TO ROE	AMOUNT IN FOREIGN CURRENCY REMITTED ABROAD
				ZAR=		
				ZAR=		
				ZAR=		
				ZAR=		
				ZAR=		
				ZAR=		

- Adjustments for rate of exchange variations during the contract period will be calculated by using the average monthly exchange rates as issued by your commercial bank for the periods indicated hereunder: (Proof from bank required)

AVERAGE MONTHLY EXCHANGE RATES FOR THE PERIOD:	DATE DOCUMENTATION MUST BE SUBMITTED TO THIS OFFICE	DATE FROM WHICH NEW CALCULATED PRICES WILL BECOME EFFECTIVE	DATE UNTIL WHICH NEW CALCULATED PRICE WILL BE EFFECTIVE

ADJUSTMENT PERIODS	DATE FROM WHICH NEW CALCULATED PRICES WILL BECOME EFFECTIVE
1 st Adjustment	After 12 calendar months
2 nd Adjustment	After 24 calendar months

NB: Unless prior approval has been obtained from Supply Chain Management, no adjustment in contract prices will be made

DECLARATION OF INTEREST

1. No bid will be accepted from persons in the service of the state¹.
2. Any person, having a kinship with persons in the service of the state, including a blood relationship, may make an offer or offers in terms of this invitation to bid. In view of possible allegations of favouritism, should the resulting bid, or part thereof, be awarded to persons connected with or related to persons in service of the state, it is required that the bidder or their authorised representative declare their position in relation to the evaluating/adjudicating authority.
3. **In order to give effect to the above, the following questionnaire must be completed and submitted with the bid.**
 - 3.1 Full Name of bidder or his or her representative: MUZI VINCENT LUKHELE
 - 3.2 Identity Number: 8702125373087
 - 3.3 Position occupied in the Company (director, trustee, shareholder²): DIRECTOR
 - 3.4 Company Registration Number: 2013/029173/07
 - 3.5 Tax Reference Number: 9745624156
 - 3.6 VAT Registration Number: 4070272101
 - 3.7 The names of all directors / trustees / shareholders members, their individual identity numbers and state employee numbers must be indicated in paragraph 4 below.
 - 3.8 Are you presently in the service of the state? YES / ☒ NO
 - 3.8.1 If yes, furnish particulars. Hla

¹ MSCM Regulations: "In the service of the state" means to be –

- (a) a member of –
 - (i) any municipal council;
 - (ii) any provincial legislature; or
 - (iii) the national Assembly or the national Council of provinces;
- (b) a member of the board of directors of any municipal entity;
- (c) an official of any municipality or municipal entity;
- (d) an employee of any national or provincial department, national or provincial public entity or constitutional institution within the meaning of the Public Finance Management Act, 1999 (Act No.1 of 1999);
- (e) a member of the accounting authority of any national or provincial public entity; or
- (f) an employee of Parliament or a provincial legislature.

² Shareholder" means a person who owns shares in the company and is actively involved in the management of the company or business and exercises control over the company.

3.9 Have you been in the service of the state for the past twelve months? YES/NO

3.9.1 If yes, furnish particulars.

3.10 Do you have any relationship (family, friend, other) with persons in the service of the state and who may be involved with the evaluation and or adjudication of this bid? YES/NO

3.10.1 If yes, furnish particulars.

3.11 Are you, aware of any relationship (family, friend, other) between any other bidder and any persons in the service of the state who may be involved with the evaluation and or adjudication of this bid? YES/NO

3.11.1 If yes, furnish particulars.

3.12 Are any of the company's directors, trustees, managers, principle shareholders or stakeholders in service of the state? YES/NO

3.12.1 If yes, furnish particulars.

3.13 Are any spouse, child or parent of the company's directors trustees, managers, principle shareholders or stakeholders in service of the state? YES/NO

3.13.1 If yes, furnish particulars.

3.14 Do you or any of the directors, trustees, managers, principle shareholders, or stakeholders of this company have any interest in any other related companies or business whether or not they are bidding for this contract. YES/NO

3.14.1 If yes, furnish particulars:



4. Full details of directors / trustees / members / shareholders.

Full Name	Identity Number	State Employee Number
MUZI VINCENT LUKHELE	8702126873087111	



 Signature

13 / 01 / 26

 Date

DIRECTOR

 Capacity

SITHEMBE TRANSPORTATION AND PROJECTS

 Name of Bidder



MBD 5

DECLARATION FOR PROCUREMENT ABOVE R10 MILLION (ALL APPLICABLE TAXES INCLUDED)

For all procurement expected to exceed R10 million (all applicable taxes included), bidders must complete the following questionnaire:

1 Are you by law required to prepare annual financial statements for auditing? **YES / NO**

1.1 If yes, submit audited annual financial statements for the past three years or since the date of establishment if established during the past three years.

SEE ATTACHED

2 Do you have any outstanding undisputed commitments for municipal services towards any municipality for more than three months or any other service provider in respect of which payment is overdue for more than 30 days?

***YES (NO)**

2.1 If no, this serves to certify that the bidder has no undisputed commitments for municipal services towards any municipality for more than three months or other service provider in respect of which payment is overdue for more than 30 days.

***YES / (NO)**

2.2 If yes, provide particulars.

N/A

3 Has any contract been awarded to you by an organ of state during the past five years, including particulars of any material non-compliance or dispute concerning the execution of such contract?

***YES / (NO)**

3.1 If yes, furnish particulars

mla

4.1 Will any portion of goods or services be sourced from outside the Republic, and, if so, what portion and whether any portion of payment from the municipality / municipal entity is expected to be transferred out of the Republic?

*YES / (NO)

4.1 If yes, furnish particulars

mla

CERTIFICATION

I, THE UNDERSIGNED (NAME)
CERTIFY THAT THE INFORMATION FURNISHED ON THIS DECLARATION FORM
IS CORRECT. I ACCEPT THAT THE STATE MAY ACT AGAINST ME SHOULD THIS
DECLARATION PROVE TO BE FALSE.


Signature

13/01/25

Date

DIRECTOR
Position

SITHEMBE TRANSPORTATION AND PROJECTS
Name of Bidder

PREFERENCE POINTS CLAIM FORM IN TERMS OF THE PREFERENTIAL PROCUREMENT REGULATIONS 2022

This preference form must form part of all tenders invited. It contains general information and serves as a claim form for preference points for specific goals.

NB: BEFORE COMPLETING THIS FORM, TENDERERS MUST STUDY THE GENERAL CONDITIONS, DEFINITIONS AND DIRECTIVES APPLICABLE IN RESPECT OF THE TENDER AND PREFERENTIAL PROCUREMENT REGULATIONS, 2022

1. GENERAL CONDITIONS

1.1 The following preference point systems are applicable to invitations to tender:

- the 80/20 system for requirements with a Rand value of up to R50 000 000 (all applicable taxes included); and
- the 90/10 system for requirements with a Rand value above R50 000 000 (all applicable taxes included).

1.2 **To be completed by the organ of state**

(delete whichever is not applicable for this tender).

- a) The applicable preference point system for this tender is the 80/20 preference point system.

1.3 Points for this tender (even in the case of a tender for income-generating contracts) shall be awarded for:

- (a) Price; and
(b) Specific Goals.

1.4 **To be completed by the organ of state:**

The maximum points for this tender are allocated as follows:

	Points
PRICE	80
SPECIFIC GOALS	20
TOTAL POINTS FOR PRICE AND SPECIFIC GOALS	100

1.5 Failure on the part of a tenderer to submit proof or documentation required in terms of this tender to claim points for specific goals with the tender, will be interpreted to mean that preference points for specific goals are not claimed.

1.6 The organ of state reserves the right to require of a tenderer, either before a tender is adjudicated or at any time subsequently, to substantiate any claim in regard to preferences, in any manner required by the organ of state.

2. DEFINITIONS

- (a) **“tender”** means a written offer in the form determined by an organ of state in response to an invitation to provide goods or services through price quotations, competitive tendering process or any other method envisaged in legislation;
- (b) **“price”** means an amount of money tendered for goods or services, and includes all applicable taxes less all unconditional discounts;
- (c) **“rand value”** means the total estimated value of a contract in Rand, calculated at the time of bid invitation, and includes all applicable taxes;
- (d) **“tender for income-generating contracts”** means a written offer in the form determined by an organ of state in response to an invitation for the origination of income-generating contracts through any method envisaged in legislation that will result in a legal agreement between the organ of state and a third party that produces revenue for the organ of state, and includes, but is not limited to, leasing and disposal of assets and concession contracts, excluding direct sales and disposal of assets through public auctions; and
- (e) **“the Act”** means the Preferential Procurement Policy Framework Act, 2000 (Act No. 5 of 2000).

3. FORMULAE FOR PROCUREMENT OF GOODS AND SERVICES

3.1. POINTS AWARDED FOR PRICE

3.1.1 THE 80/20 OR 90/10 PREFERENCE POINT SYSTEMS

A maximum of 80 or 90 points is allocated for price on the following basis:

$$\begin{array}{ccc} 80/20 & \text{or} & 90/10 \\ P_s = 80 \left(1 - \frac{P_t - P_{min}}{P_{min}} \right) & \text{or} & P_s = 90 \left(1 - \frac{P_t - P_{min}}{P_{min}} \right) \end{array}$$

Where

P_s = Points scored for price of tender under consideration

P_t = Price of tender under consideration

P_{min} = Price of lowest acceptable tender

3.2. FORMULAE FOR DISPOSAL OR LEASING OF STATE ASSETS AND INCOME GENERATING PROCUREMENT

3.2.1. POINTS AWARDED FOR PRICE

A maximum of 80 or 90 points is allocated for price on the following basis:

$$\begin{array}{ccc} 80/20 & \text{or} & 90/10 \\ P_s = 80 \left(1 + \frac{P_t - P_{max}}{P_{max}} \right) & \text{or} & P_s = 90 \left(1 + \frac{P_t - P_{max}}{P_{max}} \right) \end{array}$$

Where

- Ps = Points scored for price of tender under consideration
 Pt = Price of tender under consideration
 Pmax = Price of highest acceptable tender

4. POINTS AWARDED FOR SPECIFIC GOALS

- 4.1. In terms of Regulation 4(2); 5(2); 6(2) and 7(2) of the Preferential Procurement Regulations, preference points must be awarded for specific goals stated in the tender. For the purposes of this tender the tenderer will be allocated points based on the goals stated in table 1 below as may be supported by proof/ documentation stated in the conditions of this tender:
- 4.2. In cases where organs of state intend to use Regulation 3(2) of the Regulations, which states that, if it is unclear whether the 80/20 or 90/10 preference point system applies, an organ of state must, in the tender documents, stipulate in the case of—
- (a) an invitation for tender for income-generating contracts, that either the 80/20 or 90/10 preference point system will apply and that the highest acceptable tender will be used to determine the applicable preference point system; or
 - (b) any other invitation for tender, that either the 80/20 or 90/10 preference point system will apply and that the lowest acceptable tender will be used to determine the applicable preference point system,
- then the organ of state must indicate the points allocated for specific goals for both the 90/10 and 80/20 preference point system.

Table 1: Specific goals for the tender and points claimed are indicated per the table below.

(Note to organs of state: Where either the 90/10 or 80/20 preference point system is applicable, corresponding points must also be indicated as such.

Note to tenderers: The tenderer must indicate how they claim points for each preference point system.)

Specific goals	80/20 preference point system	Number of points claimed (80/20 system) (To be completed by the tenderer)
BB-BEE score of companies • Level 1 • Level 2 • Level 3 • Level 4 • Level 5 • Level 6 • Level 7 • Level 8 • Non-compliant	• 8 Points • 7 Points • 6 Points • 5 Points • 4 Points • 3 Points • 2 Points • 1 Point • 0 Points	08
EME and/ or QSE	2 Points	02
At least 51% of Women-owned companies	2 Points	1
At least 51% owned companies by People with disability	2 Points	1

At least 51% owned companies by Youth	2 Point	
Local Economic Participation • City of Tshwane • Gauteng • National	4 Points 2 Points 1 Point	04

N.B For points to be allocated as per above the tenderers will be required to submit proof of documentation as evidence for claims made. Any tenderer that does not submit evidence as stated in the bid document to claim applicable points will be allocated zero point

DECLARATION WITH REGARD TO COMPANY/FIRM

4.3. Name of company/firm. SITHEMBE TRANSPORTATION AND PROJECTS

4.4. Company registration number: 2013/029173/07

4.5. TYPE OF COMPANY/ FIRM

- ☐ Partnership/Joint Venture / Consortium
☐ One-person business/sole propriety
☐ Close corporation
☐ Public Company
☐ Personal Liability Company
☒ (Pty) Limited
☐ Non-Profit Company
☐ State Owned Company
[TICK APPLICABLE BOX]

4.6. I, the undersigned, who is duly authorised to do so on behalf of the company/firm, certify that the points claimed, based on the specific goals as advised in the tender, qualifies the company/ firm for the preference(s) shown and I acknowledge that:

- i) The information furnished is true and correct;
- ii) The preference points claimed are in accordance with the General Conditions as indicated in paragraph 1 of this form;
- iii) In the event of a contract being awarded as a result of points claimed as shown in paragraphs 1.4 and 4.2, the contractor may be required to furnish documentary proof to the satisfaction of the organ of state that the claims are correct;
- iv) If the specific goals have been claimed or obtained on a fraudulent basis or any of the conditions of contract have not been fulfilled, the organ of state may, in addition to any other remedy it may have –
 - (a) disqualify the person from the tendering process;
 - (b) recover costs, losses or damages it has incurred or suffered as a result of that person's conduct;

- (c) cancel the contract and claim any damages which it has suffered as a result of having to make less favourable arrangements due to such cancellation;
- (d) recommend that the tenderer or contractor, its shareholders and directors, or only the shareholders and directors who acted on a fraudulent basis, be restricted from obtaining business from any organ of state for a period not exceeding 10 years, after the *audi alteram partem* (hear the other side) rule has been applied; and
- (e) forward the matter for criminal prosecution, if deemed necessary.

	
SIGNATURE(S) OF TENDERER(S)	
SURNAME AND NAME:	MUZI VINCENT LUKHELE
DATE:	13/01/25
ADDRESS:	285 ERASMUS AVENUE, RASLOUW-AH CENTURION 0157

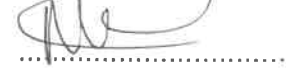
CONTRACT FORM: PURCHASE OF GOODS/WORKS

THIS FORM MUST BE FILLED IN DUPLICATE BY BOTH THE SUCCESSFUL BIDDER (PART 1) AND THE PURCHASER (PART 2). BOTH FORMS MUST BE SIGNED IN THE ORIGINAL SO THAT THE SUCCESSFUL BIDDER AND THE PURCHASER WOULD BE IN POSSESSION OF ORIGINALLY SIGNED CONTRACTS FOR THEIR RESPECTIVE RECORDS.

PART 1 (TO BE FILLED IN BY THE BIDDER)

1. I hereby undertake to supply all or any of the goods and/or works described in the attached bidding documents to **CITY OF TSHWANE MUNICIPALITY** in accordance with the requirements and specifications stipulated in bid number **ROC 08 2024/25** at the price/s quoted. My offer/s remain binding upon me and open for acceptance by the purchaser during the validity period indicated and calculated from the closing time of bid.
2. The following documents shall be deemed to form and be read and construed as part of this agreement:
 - (i) Bidding documents, viz
 - Invitation to bid;
 - Tax clearance certificate;
 - Pricing schedule(s);
 - Technical Specification(s);
 - Preference claims for specific goals in terms of the Preferential Procurement Regulations 2022;
 - Declaration of interest;
 - Declaration of bidder's past SCM practices;
 - Certificate of Independent Bid Determination;
 - Special Conditions of Contract;
 - (ii) General Conditions of Contract; and
 - (iii) Other (specify)
3. I confirm that I have satisfied myself as to the correctness and validity of my bid; that the price(s) and rate(s) quoted cover all the goods and/or works specified in the bidding documents; that the price(s) and rate(s) cover all my obligations and I accept that any mistakes regarding price(s) and rate(s) and calculations will be at my own risk.
4. I accept full responsibility for the proper execution and fulfilment of all obligations and conditions devolving on me under this agreement as the principal liable for the due fulfillment of this contract.
5. I declare that I have no participation in any collusive practices with any bidder or any other person regarding this or any other bid.
6. I confirm that I am duly authorised to sign this contract.

NAME (PRINT) MUZI VINCENT LUKHLE
 CAPACITY DIRECTOR
 SIGNATURE SITHA BE TRANSPORTATION AND PROJECTS
 NAME OF FIRM MBT
 DATE 13/01/2025

WITNESSES	
1.	
2.	
DATE: <u>13/01/2025</u>	

CONTRACT FORM: PURCHASE OF GOODS/WORKS

PART 2 (TO BE FILLED IN BY THE PURCHASER)

1. I in my capacity as accept your bid under reference number dated for the supply of goods/works indicated hereunder and/or further specified in the annexure(s).
2. An official order indicating delivery instructions is forthcoming.
3. I undertake to make payment for the goods/works delivered in accordance with the terms and conditions of the contract, within 30 (thirty) days after receipt of an invoice accompanied by the delivery note.

ITEM NO.	PRICE (ALL APPLICABLE TAXES INCLUDED)	BRAND	DELIVERY PERIOD	B-BBEE STATUS LEVEL OF CONTRIBUTION

4. I confirm that I am duly authorized to sign this contract.

SIGNED AT ON.....

NAME (PRINT)

SIGNATURE

OFFICIAL STAMP

WITNESSES

1.

2.

DATE:

MBD 8

DECLARATION OF BIDDER'S PAST SUPPLY CHAIN MANAGEMENT PRACTICES

- 1 This Municipal Bidding Document must form part of all bids invited.
- 2 It serves as a declaration to be used by municipalities and municipal entities in ensuring that when goods and services are being procured, all reasonable steps are taken to combat the abuse of the supply chain management system.
- 3 The bid of any bidder may be rejected if that bidder, or any of its directors have:
 - a. abused the municipality's / municipal entity's supply chain management system or committed any improper conduct in relation to such system;
 - b. been convicted for fraud or corruption during the past five years;
 - c. willfully neglected, reneged on or failed to comply with any government, municipal or other public sector contract during the past five years; or
 - d. been listed in the Register for Tender Defaulters in terms of section 29 of the Prevention and Combating of Corrupt Activities Act (No 12 of 2004).
- 4 In order to give effect to the above, the following questionnaire must be completed and submitted with the bid.

Item	Question	Yes	No
4.1	Is the bidder or any of its directors listed on the National Treasury's Database of Restricted Suppliers as companies or persons prohibited from doing business with the public sector? (Companies or persons who are listed on this Database were informed in writing of this restriction by the Accounting Officer/Authority of the institution that imposed the restriction after the <i>audi alteram partem</i> rule was applied). The Database of Restricted Suppliers now resides on the National Treasury's website(www.treasury.gov.za) and can be accessed by clicking on its link at the bottom of the home page.	Yes ☐	No ☒
4.1.1	If so, furnish particulars: r/Δ		
4.2	Is the bidder or any of its directors listed on the Register for Tender Defaulters in terms of section 29 of the Prevention and Combating of Corrupt Activities Act (No 12 of 2004)? The Register for Tender Defaulters can be accessed on the National Treasury's website (www.treasury.gov.za) by clicking on its link at the bottom of the home page.	Yes ☐	No ☒

4.2.1	If so, furnish particulars: N/A		
4.3	Was the bidder or any of its directors convicted by a court of law (including a court of law outside the Republic of South Africa) for fraud or corruption during the past five years?	Yes ☐	No ☒
4.3.1	If so, furnish particulars: N/A		
4.4	Does the bidder or any of its directors owe any municipal rates and taxes or municipal charges to the municipality / municipal entity, or to any other municipality / municipal entity, that is in arrears for more than three months?	Yes ☐	No ☒
4.4.1	If so, furnish particulars: N/A		
4.5	Was any contract between the bidder and the municipality / municipal entity or any other organ of state terminated during the past five years on account of failure to perform on or comply with the contract?	Yes ☐	No ☒
4.7.1	If so, furnish particulars: N/A		

CERTIFICATION

I, THE UNDERSIGNED (FULL NAME) MUTI VINCENT LUKHELE
CERTIFY THAT THE INFORMATION FURNISHED ON THIS DECLARATION FORM
TRUE AND CORRECT.

I ACCEPT THAT, IN ADDITION TO CANCELLATION OF A CONTRACT, ACTION
MAY BE TAKEN AGAINST ME SHOULD THIS DECLARATION PROVE TO BE
FALSE.


.....
Signature

13 / 01 / 25
.....
Date

CERTIFICATE OF INDEPENDENT BID DETERMINATION

- 1 This Municipal Bidding Document (MBD) must form part of all bids¹ invited.
- 2 Section 4 (1) (b) (iii) of the Competition Act No. 89 of 1998, as amended, prohibits an agreement between, or concerted practice by, firms, or a decision by an association of firms, if it is between parties in a horizontal relationship and if it involves collusive bidding (or bid rigging).² Collusive bidding is a *pe se* prohibition meaning that it cannot be justified under any grounds.
- 3 Municipal Supply Regulation 38 (1) prescribes that a supply chain management policy must provide measures for the combating of abuse of the supply chain management system, and must enable the accounting officer, among others, to:
 - a. take all reasonable steps to prevent such abuse;
 - b. reject the bid of any bidder if that bidder or any of its directors has abused the supply chain management system of the municipality or municipal entity or has committed any improper conduct in relation to such system; and
 - c. cancel a contract awarded to a person if the person committed any corrupt or fraudulent act during the bidding process or the execution of the contract.
- 4 This MBD serves as a certificate of declaration that would be used by institutions to ensure that, when bids are considered, reasonable steps are taken to prevent any form of bid-rigging.
- 5 In order to give effect to the above, the attached Certificate of Bid Determination (MBD 9) must be completed and submitted with the bid:

¹ Includes price quotations, advertised competitive bids, limited bids and proposals.

² Bid rigging (or collusive bidding) occurs when businesses, that would otherwise be expected to compete, secretly conspire to raise prices or lower the quality of goods and / or services for purchasers who wish to acquire goods and / or services through a bidding process. Bid rigging is, therefore, an agreement between competitors not to compete.

CERTIFICATE OF INDEPENDENT BID DETERMINATION

I, the undersigned, in submitting the accompanying bid: **ROC 08 2024/25**

TENDER FOR THE SUPPLY, DELIVERY AND OFF-LOADING OF CARTRIDGE FIRE CABLE SPIKING AND HYDRAULIC CABLE SPIKING EQUIPMENT, ACCESSORIES, AND CONSUMABLES TO BE USED ON THE ELECTRICITY DISTRIBUTION NETWORK

in response to the invitation for the bid made by:

CITY OF TSHWANE MUNICIPALITY

do hereby make the following statements that I certify to be true and complete in every respect:

I certify, on behalf of: SITHEMBE TRANSPORTATION AND PROJECTS that:
(Name of Bidder)

1. I have read and I understand the contents of this Certificate;
2. I understand that the accompanying bid will be disqualified if this Certificate is found not to be true and complete in every respect;
3. I am authorized by the bidder to sign this Certificate, and to submit the accompanying bid, on behalf of the bidder;
4. Each person whose signature appears on the accompanying bid has been authorized by the bidder to determine the terms of, and to sign, the bid, on behalf of the bidder;
5. For the purposes of this Certificate and the accompanying bid, I understand that the word "competitor" shall include any individual or organization, other than the bidder, whether or not affiliated with the bidder, who:
 - (a) has been requested to submit a bid in response to this bid invitation;
 - (b) could potentially submit a bid in response to this bid invitation, based on their qualifications, abilities or experience; and
 - (c) provides the same goods and services as the bidder and/or is in the same line of business as the bidder
6. The bidder has arrived at the accompanying bid independently from, and without consultation, communication, agreement or arrangement with any competitor. However communication between partners in a joint venture or consortium³ will not be construed as collusive bidding.

³ Joint venture or consortium means an association of persons for the purpose of combining their expertise, property, capital, efforts, skill and knowledge in an activity for the execution of a contract.

7. In particular, without limiting the generality of paragraphs 6 above, there has been no consultation, communication, agreement or arrangement with any competitor regarding:
- (a) prices;
 - (b) geographical area where product or service will be rendered (market allocation)
 - (c) methods, factors or formulas used to calculate prices;
 - (d) the intention or decision to submit or not to submit, a bid;
 - (e) the submission of a bid which does not meet the specifications and conditions of the bid; or
 - (f) bidding with the intention not to win the bid.
8. In addition, there have been no consultations, communications, agreements or arrangements with any competitor regarding the quality, quantity, specifications and conditions or delivery particulars of the products or services to which this bid invitation relates.
9. The terms of the accompanying bid have not been, and will not be, disclosed by the bidder, directly or indirectly, to any competitor, prior to the date and time of the official bid opening or of the awarding of the contract.
10. I am aware that, in addition and without prejudice to any other remedy provided to combat any restrictive practices related to bids and contracts, bids that are suspicious will be reported to the Competition Commission for investigation and possible imposition of administrative penalties in terms of section 59 of the Competition Act No 89 of 1998 and or may be reported to the National Prosecuting Authority (NPA) for criminal investigation and or may be restricted from conducting business with the public sector for a period not exceeding ten (10) years in terms of the Prevention and Combating of Corrupt Activities Act No 12 of 2004 or any other applicable legislation.


Signature

13/01/25
Date

DIRECTOR
Position

SITHEMBETRA TRANSPORTATION AND PROJECTS
Name of Bidder

THE NATIONAL TREASURY

Republic of South Africa



GOVERNMENT PROCUREMENT

GENERAL CONDITIONS OF CONTRACT

July 2010

GOVERNMENT PROCUREMENT

GENERAL CONDITIONS OF CONTRACT

July 2010

NOTES

The purpose of this document is to:

- (i) Draw special attention to certain general conditions applicable to government bids, contracts and orders; and
- (ii) To ensure that clients be familiar with regard to the rights and obligations of all parties involved in doing business with government.

In this document words in the singular also mean in the plural and vice versa and words in the masculine also mean in the feminine and neuter.

- The General Conditions of Contract will form part of all bid documents and may not be amended.
- Special Conditions of Contract (SCC) relevant to a specific bid, should be compiled separately for every bid (if applicable) and will supplement the General Conditions of Contract. Whenever there is a conflict, the provisions in the SCC shall prevail.

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General Conditions of Contract

1. Definitions

1. The following terms shall be interpreted as indicated:
 - 1.1 "Closing time" means the date and hour specified in the bidding documents for the receipt of bids.
 - 1.2 "Contract" means the written agreement entered into between the purchaser and the supplier, as recorded in the contract form signed by the parties, including all attachments and appendices thereto and all documents incorporated by reference therein.
 - 1.3 "Contract price" means the price payable to the supplier under the contract for the full and proper performance of his contractual obligations.
 - 1.4 "Corrupt practice" means the offering, giving, receiving, or soliciting of anything of value to influence the action of a public official in the procurement process or in contract execution.
 - 1.5 "Countervailing duties" are imposed in cases where an enterprise abroad is subsidized by its government and encouraged to market its products internationally.
 - 1.6 "Country of origin" means the place where the goods were mined, grown or produced or from which the services are supplied. Goods are produced when, through manufacturing, processing or substantial and major assembly of components, a commercially recognized new product results that is substantially different in basic characteristics or in purpose or utility from its components.
 - 1.7 "Day" means calendar day.
 - 1.8 "Delivery" means delivery in compliance of the conditions of the contract or order.
 - 1.9 "Delivery ex stock" means immediate delivery directly from stock actually on hand.
 - 1.10 "Delivery into consignees store or to his site" means delivered and unloaded in the specified store or depot or on the specified site in compliance with the conditions of the contract or order, the supplier bearing all risks and charges involved until the supplies are so delivered and a valid receipt is obtained.
 - 1.11 "Dumping" occurs when a private enterprise abroad markets its goods on own initiative in the RSA at lower prices than that of the country of origin and which have the potential to harm the local industries in the RSA.
 - 1.12 "Force majeure" means an event beyond the control of the supplier and not involving the supplier's fault or negligence and not foreseeable. Such events may include, but is not restricted to, acts of the purchaser in its sovereign capacity, wars or revolutions, fires, floods, epidemics, quarantine restrictions and freight embargoes.
 - 1.13 "Fraudulent practice" means a misrepresentation of facts in order to influence a procurement process or the execution of a contract to the detriment of any bidder, and includes collusive practice among bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive the bidder of the benefits of free and open competition.

- 1.14 "GCC" means the General Conditions of Contract.
 - 1.15 "Goods" means all of the equipment, machinery, and/or other materials that the supplier is required to supply to the purchaser under the contract.
 - 1.16 "Imported content" means that portion of the bidding price represented by the cost of components, parts or materials which have been or are still to be imported (whether by the supplier or his subcontractors) and which costs are inclusive of the costs abroad, plus freight and other direct importation costs such as landing costs, dock dues, import duty, sales duty or other similar tax or duty at the South African place of entry as well as transportation and handling charges to the factory in the Republic where the supplies covered by the bid will be manufactured.
 - 1.17 "Local content" means that portion of the bidding price which is not included in the imported content provided that local manufacture does take place.
 - 1.18 "Manufacture" means the production of products in a factory using labour, materials, components and machinery and includes other related value-adding activities.
 - 1.19 "Order" means an official written order issued for the supply of goods or works or the rendering of a service.
 - 1.20 "Project site," where applicable, means the place indicated in bidding documents.
 - 1.21 "Purchaser" means the organization purchasing the goods.
 - 1.22 "Republic" means the Republic of South Africa.
 - 1.23 "SCC" means the Special Conditions of Contract.
 - 1.24 "Services" means those functional services ancillary to the supply of the goods, such as transportation and any other incidental services, such as installation, commissioning, provision of technical assistance, training, catering, gardening, security, maintenance and other such obligations of the supplier covered under the contract.
 - 1.25 "Written" or "in writing" means handwritten in ink or any form of electronic or mechanical writing.
- 1. Application**
- 2.1 These general conditions are applicable to all bids, contracts and orders including bids for functional and professional services, sales, hiring, letting and the granting or acquiring of rights, but excluding immovable property, unless otherwise indicated in the bidding documents.
 - 2.2 Where applicable, special conditions of contract are also laid down to cover specific supplies, services or works.
 - 2.3 Where such special conditions of contract are in conflict with these general conditions, the special conditions shall apply.
- 3. General**
- 3.1 Unless otherwise indicated in the bidding documents, the purchaser shall not be liable for any expense incurred in the preparation and submission of a bid.
Where applicable a non-refundable fee for documents may be charged.

	3.2	With certain exceptions, invitations to bid are only published in the Government Tender Bulletin. The Government Tender Bulletin may be obtained directly from the Government Printer, Private Bag X85, Pretoria 0001, or accessed electronically from www.treasury.gov.za
4. Standards	4.1	The goods supplied shall conform to the standards mentioned in the bidding documents and specifications.
5. Use of contract documents and information inspection.	5.1	The supplier shall not, without the purchaser's prior written consent, disclose the contract, or any provision thereof, or any specification, plan, drawing, pattern, sample, or information furnished by or on behalf of the purchaser in connection therewith, to any person other than a person employed by the supplier in the performance of the contract. Disclosure to any such employed person shall be made in confidence and shall extend only so far as may be necessary for purposes of such performance.
	5.2	The supplier shall not, without the purchaser's prior written consent, make use of any document or information mentioned in GCC clause 5.1 except for purposes of performing the contract.
	5.3	Any document, other than the contract itself mentioned in GCC clause 5.1 shall remain the property of the purchaser and shall be returned (all copies) to the purchaser on completion of the supplier's performance under the contract if so required by the purchaser.
	5.4	The supplier shall permit the purchaser to inspect the supplier's records relating to the performance of the supplier and to have them audited by auditors appointed by the purchaser, if so required by the purchaser.
6. Patent rights	6.1	The supplier shall indemnify the purchaser against all third-party claims of infringement of patent, trademark, or industrial design rights arising from use of the goods or any part thereof by the purchaser.
7. Performance security	7.1	Within thirty (30) days of receipt of the notification of contract award, the successful bidder shall furnish to the purchaser the performance security of the amount specified in SCC.
	7.2	The proceeds of the performance security shall be payable to the purchaser as compensation for any loss resulting from the supplier's failure to complete his obligations under the contract.
	7.3	The performance security shall be denominated in the currency of the contract, or in a freely convertible currency acceptable to the purchaser and shall be in one of the following forms: (a) a bank guarantee or an irrevocable letter of credit issued by a reputable bank located in the purchaser's country or abroad, acceptable to the purchaser, in the form provided in the bidding documents or another form acceptable to the purchaser; or (b) a cashier's or certified cheque
	7.4	The performance security will be discharged by the purchaser and returned to the supplier not later than thirty (30) days following the date of completion of the supplier's performance obligations under the contract, including any warranty obligations, unless otherwise specified in SCC.
8. Inspections, tests and analyses	8.1	All pre-bidding testing will be for the account of the bidder.

- 8.2 If it is a bid condition that supplies to be produced or services to be rendered should at any stage during production or execution or on completion be subject to inspection, the premises of the bidder or contractor shall be open, at all reasonable hours, for inspection by a representative of the Department or an organization acting on behalf of the Department.
- 8.3 If there are no inspection requirements indicated in the bidding documents and no mention is made in the contract, but during the contract period it is decided that inspections shall be carried out, the purchaser shall itself make the necessary arrangements, including payment arrangements with the testing authority concerned.
- 8.4 If the inspections, tests and analyses referred to in clauses 8.2 and 8.3 show the supplies to be in accordance with the contract requirements, the cost of the inspections, tests and analyses shall be defrayed by the purchaser.
- 8.5 Where the supplies or services referred to in clauses 8.2 and 8.3 do not comply with the contract requirements, irrespective of whether such supplies or services are accepted or not, the cost in connection with these inspections, tests or analyses shall be defrayed by the supplier.
- 8.6 Supplies and services which are referred to in clauses 8.2 and 8.3 and which do not comply with the contract requirements may be rejected.
- 8.7 Any contract supplies may on or after delivery be inspected, tested or analyzed and may be rejected if found not to comply with the requirements of the contract. Such rejected supplies shall be held at the cost and risk of the supplier who shall, when called upon, remove them immediately at his own cost and forthwith substitute them with supplies which do comply with the requirements of the contract. Failing such removal the rejected supplies shall be returned at the suppliers cost and risk. Should the supplier fail to provide the substitute supplies forthwith, the purchaser may, without giving the supplier further opportunity to substitute the rejected supplies, purchase such supplies as may be necessary at the expense of the supplier.
- 8.8 The provisions of clauses 8.4 to 8.7 shall not prejudice the right of the purchaser to cancel the contract on account of a breach of the conditions thereof, or to act in terms of Clause 23 of GCC.

9. Packing

- 9.1 The supplier shall provide such packing of the goods as is required to prevent their damage or deterioration during transit to their final destination, as indicated in the contract. The packing shall be sufficient to withstand, without limitation, rough handling during transit and exposure to extreme temperatures, salt and precipitation during transit, and open storage. Packing, case size and weights shall take into consideration, where appropriate, the remoteness of the goods' final destination and the absence of heavy handling facilities at all points in transit.
- 9.2 The packing, marking, and documentation within and outside the packages shall comply strictly with such special requirements as shall be expressly provided for in the contract, including additional requirements, if any, specified in SCC, and in any subsequent instructions ordered by the purchaser.

10. Delivery and documents

- 10.1 Delivery of the goods shall be made by the supplier in accordance with the terms specified in the contract. The details of shipping and/or other documents to be furnished by the supplier are specified in SCC.
- 10.2 Documents to be submitted by the supplier are specified in SCC.

11. Insurance	11.1	The goods supplied under the contract shall be fully insured in a freely convertible currency against loss or damage incidental to manufacture or acquisition, transportation, storage and delivery in the manner specified in the SCC.
12. Transportation	12.1	Should a price other than an all-inclusive delivered price be required, this shall be specified in the SCC.
13. Incidental services, services	13.1	The supplier may be required to provide any or all of the following services, including additional services, if any, specified in SCC: (a) performance or supervision of on-site assembly and/or commissioning of the supplied goods; (b) furnishing of tools required for assembly and/or maintenance of the supplied goods; (c) furnishing of a detailed operations and maintenance manual for each appropriate unit of the supplied goods; (d) performance or supervision or maintenance and/or repair of the supplied goods, for a period of time agreed by the parties, provided that this service shall not relieve the supplier of any warranty obligations under this contract; and (e) training of the purchaser's personnel, at the supplier's plant and/or on-site, in assembly, start-up, operation, maintenance, and/or repair of the supplied goods.
	13.2	Prices charged by the supplier for incidental services, if not included in the contract price for the goods, shall be agreed upon in advance by the parties and shall not exceed the prevailing rates charged to other parties by the supplier for similar services.
14. Spare parts	14.1	As specified in SCC, the supplier may be required to provide any or all of the following materials, notifications, and information pertaining to spare parts manufactured or distributed by the supplier: (a) such spare parts as the purchaser may elect to purchase from the supplier, provided that this election shall not relieve the supplier of any warranty obligations under the contract; and (b) in the event of termination of production of the spare parts: (i) Advance notification to the purchaser of the pending termination, in sufficient time to permit the purchaser to procure needed requirements; and (ii) following such termination, furnishing at no cost to the purchaser, the blueprints, drawings, and specifications of the spare parts, if requested.
15. Warranty	15.1	The supplier warrants that the goods supplied under the contract are new, unused, of the most recent or current models, and that they incorporate all recent improvements in design and materials unless provided otherwise in the contract. The supplier further warrants that all goods supplied under this contract shall have no defect, arising from design, materials, or workmanship (except when the design and/or material is required by the purchaser's specifications) or from any act or omission of the supplier, that may develop under normal use of the supplied goods in the conditions prevailing in the country of final destination.
	15.2	This warranty shall remain valid for twelve (12) months after the goods, or any portion thereof as the case may be, have been delivered to and accepted at the

final destination indicated in the contract, or for eighteen (18) months after the date of shipment from the port or place of loading in the source country, whichever period concludes earlier, unless specified otherwise in SCC.

- 15.3 The purchaser shall promptly notify the supplier in writing of any claims arising under this warranty.
- 15.4 Upon receipt of such notice, the supplier shall, within the period specified in SCC and with all reasonable speed, repair or replace the defective goods or parts thereof, without costs to the purchaser.
- 15.5 If the supplier, having been notified, fails to remedy the defect(s) within the period specified in SCC, the purchaser may proceed to take such remedial action as may be necessary, at the supplier's risk and expense and without prejudice to any other rights which the purchaser may have against the supplier under the contract.
- 16. Payment**
 - 16.1 The method and conditions of payment to be made to the supplier under this contract shall be specified in SCC.
 - 16.2 The supplier shall furnish the purchaser with an invoice accompanied by a copy of the delivery note and upon fulfillment of other obligations stipulated in the contract.
 - 16.3 Payments shall be made promptly by the purchaser, but in no case later than thirty (30) days after submission of an invoice or claim by the supplier.
 - 16.4 Payment will be made in Rand unless otherwise stipulated in SCC.
- 17. Prices**
 - 17.1 Prices charged by the supplier for goods delivered and services performed under the contract shall not vary from the prices quoted by the supplier in his bid, with the exception of any price adjustments authorized in SCC or in the purchaser's request for bid validity extension, as the case may be.
- 18. Contract**
 - 18.1 No variation in or modification of the terms of the contract shall be made **amendments** except by written amendment signed by the parties concerned.
- 19. Assignment**
 - 19.1 The supplier shall not assign, in whole or in part, its obligations to perform under the contract, except with the purchaser's prior written consent.
- 20. Subcontracts**
 - 20.1 The supplier shall notify the purchaser in writing of all subcontracts awarded under this contracts if not already specified in the bid. Such notification, in the original bid or later, shall not relieve the supplier from any liability or obligation under the contract.
- 21. Delays in the supplier's performance**
 - 21.1 Delivery of the goods and performance of services shall be made by the supplier in accordance with the time schedule prescribed by the purchaser in the contract.
 - 21.2 If at any time during performance of the contract, the supplier or its subcontractor(s) should encounter conditions impeding timely delivery of the goods and performance of services, the supplier shall promptly notify the purchaser in writing of the fact of the delay, its likely duration and its cause(s). As soon as practicable after receipt of the supplier's notice, the purchaser shall evaluate the situation and may at his discretion extend the supplier's time for performance, with or without the imposition of penalties, in which case the extension shall be ratified by the parties by amendment of contract.

- 21.3 No provision in a contract shall be deemed to prohibit the obtaining of supplies or services from a national department, provincial department, or a local authority.
- 21.4 The right is reserved to procure outside of the contract small quantities or to have minor essential services executed if an emergency arises, the supplier's point of supply is not situated at or near the place where the supplies are required, or the supplier's services are not readily available.
- 21.5 Except as provided under GCC Clause 25, a delay by the supplier in the performance of its delivery obligations shall render the supplier liable to the imposition of penalties, pursuant to GCC Clause 22, unless an extension of time is agreed upon pursuant to GCC Clause 21.2 without the application of penalties.
- 21.6 Upon any delay beyond the delivery period in the case of a supplies contract, the purchaser shall, without canceling the contract, be entitled to purchase supplies of a similar quality and up to the same quantity in substitution of the goods not supplied in conformity with the contract and to return any goods delivered later at the supplier's expense and risk, or to cancel the contract and buy such goods as may be required to complete the contract and without prejudice to his other rights, be entitled to claim damages from the supplier.
- 22. Penalties**
- 22.1 Subject to GCC Clause 25, if the supplier fails to deliver any or all of the goods or to perform the services within the period(s) specified in the contract, the purchaser shall, without prejudice to its other remedies under the contract, deduct from the contract price, as a penalty, a sum calculated on the delivered price of the delayed goods or unperformed services using the current prime interest rate calculated for each day of the delay until actual delivery or performance. The purchaser may also consider termination of the contract pursuant to GCC Clause 23.
- 23. Termination for default**
- 23.1 The purchaser, without prejudice to any other remedy for breach of contract, by written notice of default sent to the supplier, may terminate this contract in whole or in part:
- (a) if the supplier fails to deliver any or all of the goods within the period(s) specified in the contract, or within any extension thereof granted by the purchaser pursuant to GCC Clause 21.2;
 - (b) if the Supplier fails to perform any other obligation(s) under the contract; or
 - (c) if the supplier, in the judgment of the purchaser, has engaged in corrupt or fraudulent practices in competing for or in executing the contract.
- 23.2 In the event the purchaser terminates the contract in whole or in part, the purchaser may procure, upon such terms and in such manner as it deems appropriate, goods, works or services similar to those undelivered, and the supplier shall be liable to the purchaser for any excess costs for such similar goods, works or services. However, the supplier shall continue performance of the contract to the extent not terminated.
- 23.3 Where the purchaser terminates the contract in whole or in part, the purchaser may decide to impose a restriction penalty on the supplier by prohibiting such supplier from doing business with the public sector for a period not exceeding 10 years.
- 23.4 If a purchaser intends imposing a restriction on a supplier or any person associated with the supplier, the supplier will be allowed a time period of not more than fourteen (14) days to provide reasons why the envisaged restriction should not be imposed. Should the supplier fail to respond within the stipulated

fourteen (14) days the purchaser may regard the intended penalty as not objected against and may impose it on the supplier.

23.5 Any restriction imposed on any person by the Accounting Officer / Authority will, at the discretion of the Accounting Officer / Authority, also be applicable to any other enterprise or any partner, manager, director or other person who wholly or partly exercises or exercised or may exercise control over the enterprise of the first-mentioned person, and with which enterprise or person the first-mentioned person, is or was in the opinion of the Accounting Officer / Authority actively associated.

23.6 If a restriction is imposed, the purchaser must, within five (5) working days of such imposition, furnish the National Treasury, with the following information:

- (i) the name and address of the supplier and / or person restricted by the purchaser;
- (ii) the date of commencement of the restriction
- (iii) the period of restriction; and
- (iv) the reasons for the restriction.

These details will be loaded in the National Treasury's central database of suppliers or persons prohibited from doing business with the public sector.

23.7 If a court of law convicts a person of an offence as contemplated in sections 12 or 13 of the Prevention and Combating of Corrupt Activities Act, No. 12 of 2004, the court may also rule that such person's name be endorsed on the Register for Tender Defaulters. When a person's name has been endorsed on the Register, the person will be prohibited from doing business with the public sector for a period not less than five years and not more than 10 years. The National Treasury is empowered to determine the period of restriction and each case will be dealt with on its own merits. According to section 32 of the Act the Register must be open to the public. The Register can be perused on the National Treasury website.

24. Anti-dumping and countervailing duties and rights

24.1 When, after the date of bid, provisional payments are required, or antidumping or countervailing duties are imposed, or the amount of a provisional payment or anti-dumping or countervailing right is increased in respect of any dumped or subsidized import, the State is not liable for any amount so required or imposed, or for the amount of any such increase. When, after the said date, such a provisional payment is no longer required or any such anti-dumping or countervailing right is abolished, or where the amount of such provisional payment or any such right is reduced, any such favourable difference shall on demand be paid forthwith by the contractor to the State or the State may deduct such amounts from moneys (if any) which may otherwise be due to the contractor in regard to supplies or services which he delivered or rendered, or is to deliver or render in terms of the contract or any other contract or any other amount which may be due to him

25. Force Majeure

25.1 Notwithstanding the provisions of GCC Clauses 22 and 23, the supplier shall not be liable for forfeiture of its performance security, damages, or termination for default if and to the extent that his delay in performance or other failure to perform his obligations under the contract is the result of an event of force majeure.

25.2 If a force majeure situation arises, the supplier shall promptly notify the purchaser in writing of such condition and the cause thereof. Unless otherwise directed by the purchaser in writing, the supplier shall continue to perform its obligations under the contract as far as is reasonably practical, and shall seek all

		reasonable alternative means for performance not prevented by the force majeure event.
26. Termination for insolvency	26.1	The purchaser may at any time terminate the contract by giving written notice to the supplier if the supplier becomes bankrupt or otherwise insolvent. In this event, termination will be without compensation to the supplier, provided that such termination will not prejudice or affect any right of action or remedy which has accrued or will accrue thereafter to the purchaser.
27. Settlement of Disputes	27.1	If any dispute or difference of any kind whatsoever arises between the purchaser and the supplier in connection with or arising out of the contract, the parties shall make every effort to resolve amicably such dispute or difference by mutual consultation.
	27.2	If, after thirty (30) days, the parties have failed to resolve their dispute or difference by such mutual consultation, then either the purchaser or the supplier may give notice to the other party of his intention to commence with mediation. No mediation in respect of this matter may be commenced unless such notice is given to the other party.
	27.3	Should it not be possible to settle a dispute by means of mediation, it may be settled in a South African court of law.
	27.4	Mediation proceedings shall be conducted in accordance with the rules of procedure specified in the SCC.
	27.5	Notwithstanding any reference to mediation and/or court proceedings herein, (a) the parties shall continue to perform their respective obligations under the contract unless they otherwise agree; and (b) the purchaser shall pay the supplier any monies due the supplier.
28. Limitation of liability	28.1	Except in cases of criminal negligence or willful misconduct, and in the case of infringement pursuant to Clause 6; the supplier shall not be liable to the purchaser, whether in contract, tort, or otherwise, for any indirect or consequential loss or damage, loss of use, loss of production, or loss of profits or interest costs, provided that this exclusion shall not apply to any obligation of the supplier to pay penalties and/or damages to the purchaser; and the aggregate liability of the supplier to the purchaser, whether under the contract, in tort or otherwise, shall not exceed the total contract price, provided that this limitation shall not apply to the cost of repairing or replacing defective equipment.
29. Governing language	29.1	The contract shall be written in English. All correspondence and other documents pertaining to the contract that is exchanged by the parties shall also be written in English.
30. Applicable law	30.1	The contract shall be interpreted in accordance with South African laws, unless otherwise specified in SCC.
31. Notices	31.1	Every written acceptance of a bid shall be posted to the supplier concerned by registered or certified mail and any other notice to him shall be posted by ordinary mail to the address furnished in his bid or to the address notified later by him in writing and such posting shall be deemed to be proper service of such notice

- 31.2 The time mentioned in the contract documents for performing any act after such aforesaid notice has been given, shall be reckoned from the date of posting of such notice.
- 32. Taxes and duties**
- 32.1 A foreign supplier shall be entirely responsible for all taxes, stamp duties, license fees, and other such levies imposed outside the purchaser's country.
- 32.2 A local supplier shall be entirely responsible for all taxes, duties, license fees, etc., incurred until delivery of the contracted goods to the purchaser.
- 32.3 No contract shall be concluded with any bidder whose tax matters are not in order. Prior to the award of a bid the Department must be in possession of a tax clearance certificate, submitted by the bidder. This certificate must be an original issued by the South African Revenue Services.
- 33. National Industrial Participation (NIP) Programme**
- 33.1 The NIP Programme administered by the Department of Trade and Industry shall be applicable to all contracts that are subject to the NIP obligation
- 34. Prohibition of Restrictive practices**
- 34.1 In terms of section 4 (1) (b) (iii) of the Competition Act No. 89 of 1998, as amended, an agreement between, or concerted practice by, firms, or a decision by an association of firms, is prohibited if it is between parties in a horizontal relationship and if a bidder (s) is / are or a contractor(s) was / were involved in collusive bidding (or bid rigging).
- 34.2 If a bidder(s) or contractor(s), based on reasonable grounds or evidence obtained by the purchaser, has / have engaged in the restrictive practice referred to above, the purchaser may refer the matter to the Competition Commission for investigation and possible imposition of administrative penalties as contemplated in the Competition Act No. 89 of 1998.
- 34.3 If a bidder(s) or contractor(s), has / have been found guilty by the Competition Commission of the restrictive practice referred to above, the purchaser may, in addition and without prejudice to any other remedy provided for, invalidate the bid(s) for such item(s) offered, and / or terminate the contract in whole or part, and / or restrict the bidder(s) or contractor(s) from conducting business with the public sector for a period not exceeding ten (10) years and / or claim damages from the bidder(s) or contractor(s) concerned.

Js General Conditions of Contract (revised July 2010)

SERVICE LEVEL AGREEMENT

entered into between

THE CITY OF TSHWANE METROPOLITAN MUNICIPALITY

(Hereafter referred to as the “**City**”)

Herein Represented by the Johann Mettler

In his capacity as: City Manager

(Duly authorised hereto)

AND

Name of Company)

Registration Number:

(Hereinafter referred to as the “**Service Provider**”)

Herein Represented by:

In his/her capacity as:

(Duly authorised hereto)

SERVICE LEVEL AGREEMENT

entered into between

THE CITY OF TSHWANE METROPOLITAN MUNICIPALITY

A municipality as described in section 2 of the Local Government: Municipal Systems Act, 2000 and as contemplated in section 155 of the Constitution of the Republic of South Africa, 1996 as a category A municipality, or the Assignee, if applicable, herein represented by Phuti Moloto in his capacity as Acting Group Head: Regional Operations and Coordination duly authorised thereto under and by virtue of a resolution passed on 26 January 2012, and who by his signature hereto warrants that he is properly authorised to sign this Agreement.

(Herein referred to as the "CITY")

AND

(Name of Company)

Registration Number: _____

Herein represented by _____, in his/ her capacity as _____ duly authorised thereto under and by virtue of a resolution of the Board passed on _____, a copy of which is annexed as Annexure "A", and who by his signature hereto warrants that he/ she is properly authorised to sign this Agreement

(Herein referred to as the "SERVICE PROVIDER")

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ANNEXURE "A" BOARD RESOLUTION

RECORDAL:

WHEREAS the City requires the supply, delivery and off-loading of cartridge fire cable spiking and hydraulic cable spiking equipment, accessories, and consumables for use on the electricity distribution network as and when required over a three (3) -year period.

AND WHEREAS the City wishes to appoint the Service Provider;

AND WHEREAS the Service Provider wishes to provide such Goods and Services;

AND WHEREAS the Service Provider has indicated that it has the necessary expertise, skills and capabilities to provide the Goods and Services;

NOW THEREFORE the Parties have agreed to enter into this Agreement, in terms of which the Service Provider shall provide the Goods and Services in the Service Areas and/or Delivery Area and provide after sales support thereof, to the City in accordance with the terms and subject to the conditions of this Agreement:

DEFINITIONS

Unless otherwise expressly stated, or the context otherwise requires, the words and expressions listed below shall, when used in this Agreement, including this introduction, bear the meanings ascribed to them:

“Agreement” means this Service Level Agreement and shall include any annexures and/or schedules and/or attachments and/or appendices and/or any addenda hereto or incorporated herein by reference, as amended from time to time;

“Business Day” means any day from Monday to Friday excluding Public Holidays as defined in the Public Holidays Act 36 of 1994 (“Public Holidays Act”) as amended from time to time;

“Business Week” means five consecutive Business Days, excluding Public Holidays as defined in the Public Holidays Act;

“City” means the City of Tshwane Metropolitan Municipality, a metropolitan municipality established in terms of section 12 of the Local Government: Municipal Structures Act 117 of 1998;

“Contact Persons” means persons identified by the Parties as persons who are responsible for the execution of the Agreement and whose names are set out in clause 28 and who can be substituted in writing from time to time;

“Contract Price” shall mean the amount reflected as the Contract Price in clause 0 below,

“Contract Period” means the Contract Period as reflected in the Appointment Letter to be issued by the City,

“Effective Date” means the date on the Appointment Letter to be issued by the City,

“Intellectual Property” means Patents, Designs, Know-How, Copyright and Trade Marks and all rights having equivalent or similar effect which may exist anywhere in the world, introduced and required by either Party to give effect to their obligations under this Agreement, owned in whole or in part by, or licensed to either Party prior to the Commencement Date or developed after the Commencement Date,

and includes all further additions and improvements to the Intellectual Property, otherwise pursuant to this Agreement;

“Month” means a calendar month;

“Parties” means City and Service Provider and “Party” means either of them as the context requires;

“Services” means the Goods and Services to be provided by the Service Provider to the City as detailed in clause 8 below;

“Service Provider” means

**(Name of Company),
a company duly incorporated in accordance with the company laws
of the Republic of South Africa with company registration number:**

**“Signature Date” means the date of signature of this Agreement by the
Party signing last;**

**“Subcontract” means any contract or Agreement or proposed contract
between the Service Provider and any third party whereby that third
party agrees to provide to the Service Provider the Goods and
Services or any part thereof;**

**“Subcontractor” means the third party with whom the Service Provider
enters into a Subcontract;**

**“Tax Invoice” means the document as required by section 20 of the Value
Added Tax Act 89 of 1991, as amended from time to time; and**

**“VAT” means Value Added Tax as defined in terms of the Value Added
Tax Act of 1991.**

INTERPRETATION

Headings and sub-headings are inserted for information purposes only and shall not be used in the interpretation of this Agreement.

Unless the context clearly indicates a contrary intention, any word connoting:

any singular shall be deemed to include a reference to the plural and vice versa;

any one gender shall be deemed to include a reference to the other two genders;
and

a natural person shall be deemed to include a reference to a legal or juristic person.

The expiry or termination of this Agreement shall not affect provisions of this Agreement which expressly provide that they will operate after any such expiry or termination of this Agreement. Provisions of necessity shall continue to have been effective after such expiry or termination of this Agreement, notwithstanding that the clauses themselves do not expressly provide for this.

The rule of interpretation that a written Agreement shall be interpreted against the Party responsible for the drafting or preparation of that Agreement shall not apply.

Where figures are referred to in numerals and in words and there is any conflict between the two, the words shall prevail.

Any reference to any legislation is a reference to such legislation as at the Signature Date and as amended or re-enacted, from time to time.

If any provision in a definition is a substantive provision conferring any rights or imposing any obligations on any Party, then notwithstanding that, it is only in this interpretation clause, effect shall be given to it as if it were a substantive provision in this Agreement.

APPOINTMENT

The City hereby appoints the Service Provider, who accepts such appointment, to provide the Goods and Services as set out in the Scope

of the tender and in accordance with the terms and subject to the conditions of this Agreement.

PURPOSE OF THE AGREEMENT

The Purpose of this Agreement is to:

formalise and regulate the working relationship between the Parties;

set out the roles and responsibilities of the Parties; and

define process and procedures to be followed by the Parties.

RELATIONSHIP

Nothing in this Agreement shall constitute, or be deemed to constitute a partnership or joint venture between the Parties. Furthermore the Service Provider acknowledges and agrees that its status under this Agreement is that of an independent Service Provider and its status shall in no way be deemed to be that of an agent or employee of the City, for any purpose whatsoever, and the Service Provider shall have no authority or power to bind the City or to contract in the name of the City, or create a liability against the City in any way or for any purpose.

DURATION

This Agreement shall commence on the Effective Date and shall subsist for a period of 3 (three) years, as and when required, unless terminated earlier pursuant to clause 25 below

CONTACT PERSON

The work to be performed by the Service Provider hereunder will be supervised by the City's Contact Person referred to in clause 28 below.

The Parties shall notify each other, in writing from time to time, of the details of their nominated Contact Person.

The Contact Persons shall liaise and update each other on the progress of the Goods and Services provided/ rendered and shall endeavour to resolve and remedy any problems or disputes that may arise in relation to the Goods and Services.

Either Party may substitute a Contact Person at its discretion provided that each Party shall give the other Party reasonable notice of such substitution and will provide replacement employees of equivalent ability.

Without derogating from the foregoing, should either Party replace a Contact Person for any reason whatsoever, it shall ensure, to the greatest extent possible in the circumstances, that the suitable

period of hand-over and overlap takes place, at its cost, between the new and the encumbered Contact Person.

SCOPE OF GENERAL GOODS AND SERVICES

The Service Provider shall, for the duration of this Agreement, provide the Goods and Services as specified in the Scope of the Tender, set out in the tender document.

PRICE AND PAYMENT

The City shall pay to the Service Provider the Contract Price as per the items in the Appointment Letter to be issued by the City.

All payments under this Agreement shall be made by electronic fund transfer or other forms of payment as the Parties may agree from time to time, upon receipt of valid and undisputed Tax Invoices and month-end statements together with the supporting documentation from the Service Provider, once the undisputed Tax Invoices or such portion of the Tax Invoices which are undisputed become due and payable.

All amounts and other sums payable in terms of this Agreement and Schedules hereto will be stipulated exclusive of VAT, unless expressly stated otherwise.

Unless otherwise provided in the Schedules, valid Tax Invoices shall be submitted together with a month-end statement. Payment against such month-end statement shall be made by The City within 30 (thirty) days after the date of receipt by The City of the Service Provider's statement together with the relevant valid and undisputed Tax Invoice(s) and supporting documentation, but in any event not later than 90 (ninety) days of receipt of such statement.

There shall be no interest levied on a Tax Invoice that is in dispute between the Parties.

The City shall pay the amount reflected on a Tax Invoice once the City's Contact Person has verified that the Goods and Services set out in

a schedule have been rendered and the Tax Invoice amount has been approved by the City.

All Tax Invoices shall be addressed to the City' Contact Person.

All payments shall be transferred, by the City to the Service Provider electronically into the Service Provider's bank account, the details of which are set out below:

Bank: _____

Account type: _____

Account No: _____

Branch No: _____

Failure to comply with the clauses above may result in late payment of the total amount of an invoice by the City to the Service Provider. The City shall not be liable for any costs or damages suffered by the Service Provider as a result of such late payment.

SERVICE LEVELS

The Service Provider recognises that the City has entered into this Agreement relying specifically on the Service Provider's representations regarding service levels including, *inter alia*:

capacity allocations in accordance with the Goods and Service to be provided;
and

all work to be performed and Goods and Services rendered under this Agreement shall comply with industry norms and best practice acceptable within the relevant Goods and Services industry and shall be executed by the Service Provider to the total satisfaction of the City.

The Service Provider shall provide suitably qualified and trained employees to provide the Goods and Services to the City in terms of this Agreement, and shall allocate, in its discretion employee resources in accordance with the technical skill and knowledge required, provided that any exercise of such discretion by the Service Provider shall not negatively impact on the provision of the Goods and Services by the Service Provider to the City, and shall allocate employees with the technical skill and knowledge onsite at

the City at all times during normal working hours, if the City so requires.

Amongst others, the Service Provider shall comply with and provide the Goods and Services as set out in clause 8 above.

WITHHOLDING OF PERFORMANCE

The Service Provider may not under any circumstances, including, without limitation, non-payment by the City, withhold any Goods or Services from the City during the currency of this Agreement, unless it validly terminates this Agreement in terms of clause 24 below.

PENALTY

Should the Service Provider fail to comply with its obligations in terms of this Agreement, the City may:

exercise its rights in terms of clause 24 below; alternatively

impose a penalty on the Service Provider as stated hereunder in clause 12.4 below and/ or clause 12.5 below.

An election of any of the above by the City shall not mean that the City has waived any other rights which the City might have in law.

Should the City elect to impose a penalty on the Service Provider, the City shall provide the Service Provider with a written notice requiring the Service Provider to remedy the default within 7 (seven) days from the date of delivery of the notice.

Should the Service Provider fail to remedy the default within 14 (Fourteen) working days after receiving the notice, then the City shall be entitled, without prejudice to any alternative or additional right of action or remedy available to the City and without further notice, impose a penalty, which penalty shall be a deduction of 10% of the undelivered Goods items and/ or failure to render Service items (installation, servicing, spare parts, and repair/ maintenance work) within the time agreed with the project manager/ Deputy Director; and for the avoidance of doubt, the penalty amount shall be 10% of the monies due for payment to the Service Provider for these

undelivered Goods items and/ or failure to render Service items, in terms of clause 0 above.

Should there be a dispute as to whether the failure to deliver was caused by the City or was the Service Provider's fault such dispute shall be dealt with in accordance to clause 26 below.

ACCESS

The City shall allow the Service Provider reasonable access to its premises, provided that:

access is related to the Goods and Services to be provided by the Service Provider;
and

the Service Provider adheres to all rules, regulations and instructions applicable at the City's premises.

The Service Provider is required to notify the City monthly of employees who are to provide Goods and Services at the Service Areas.

The City shall grant the Service Provider and/or its employees, referred in clause 0 above, to access to its premises to perform its obligations in terms of this Agreement.

The Service Provider and its employees shall at all times when entering the premises and/or Service Areas of the City comply with all rules, laws, regulations and policies of the City.

INSPECTION

The City may at any time inspect the Service Levels of the Service Provider in terms of this Agreement.

If the City is, at any time, dissatisfied with the service levels then the Service Provider shall, within 7 (seven) days, notify the Service Provider in writing of the failure or default.

The Service Provider shall immediately upon receipt of written demand by the City, remedy such failure or default, within 7 (seven) Business Days from the date of receipt of the notice, free of charge.

Should the Service Provider fail to remedy the failure or default referred to above then the City shall have the right to impose penalties as

provided for in clause 12 above or invoke the provisions of clauses and/or clause 0 below.

To enable the City to determine whether the Goods and Services rendered in terms of this Agreement are being complied with the Service Provider shall:

provide the City with such information as it may reasonably require;

allow the City to inspect and take copies of any records of the Service Provider relating to the Goods and Services, including all hardware, software, data, information, visuals, procedures, event logs, transaction logs, audit trails, books, records, contracts and correspondence; and

allow the City or its authorised representatives to conduct interviews with any of the Service Provider's employees, subject to reasonable notice being given to the Service Provider.

Service Provider to Provide Reasonable Assistance

Where any information is required for inspection in terms of this clause and the information is kept in a computer, the Service Provider shall give the City reasonable assistance required to facilitate inspection and obtain copies of the information in a visible and legible form or to inspect and check the operation of any computer and any associated apparatus or material that is or has been in use in connection with the keeping of the information.

Any information required to be provided to the City pursuant to this clause 14 shall be provided by the Service Provider, as the case may be in such form (including a form otherwise than in writing) as the City may reasonably specify.

The cost of any inspection contemplated in terms of this clause 14 shall be for the account of the City unless any material irregularity or failure on the part of the Service Provider is determined by the City in the course of such inspection.

The inspection contemplated in this Agreement will be conducted:

during normal business hours; and

save where the circumstances justify it, on reasonable notice to the Service Provider; with the minimum interference in the provision of the Goods and Services and the Service Provider's other operations.

SERVICE PROVIDER'S WARRANTIES AND INDEMNITIES

Service Warranties

The Service Provider warrants that in relation to Goods and Services provided in terms of this Agreement:

- it has full capacity and authority to enter into and perform this Agreement, and that this Agreement is executed by duly authorised representatives of the Service Provider;*
- it possesses or has access to the requisite knowledge, skill and experience to provide the Goods and Services in an expert manner;*
- it will discharge its obligations under this Agreement and any annexure, appendix or Schedule hereto with all due skill, care and diligence;*
- that all Goods delivered, work performed, and Services rendered under this Agreement shall comply with prevailing practice, standards and specifications within the industry;*
- it will be solely responsible for the payment of remuneration and associated benefits, if any, of its Personnel and for withholding and remitting income tax for its Personnel in conformance with any applicable laws and regulations;*
- that the use or possession by the City of any Materials will not subject the City to any claim for infringement of any Intellectual Property Rights of any third party;*
- it will act promptly and diligence and in a skilful manner and in accordance with the practices and professional standards of operations while delivering Goods and performing Services or similar to the Services;*
- that its Goods and Services will in all aspects comply with industry norms and best practice to the satisfaction of the City with regard to materials and workmanship;*
- it will use and adopt any standards, processes and procedures required under this Agreement;*
- that it warrant that it shall employ suitably qualified and trained employees to provide the Services and/or Goods to the City and it shall allocate employees in accordance with the technical skill and knowledge required;*
- it is free from any defects in material and workmanship;*

it will maintain and cause to be maintained the highest standard of workmanship and care in undertaking the delivery of Goods and Services;

it will maintain and cause to be maintained the highest standard of care and diligence in providing the Goods and Services, maintenance and support; and

it will ensure that all applicable laws are observed;

Indemnity

The Service Provider hereby indemnifies the City against any claim which may be brought against the City by the Service Provider's personnel or a third party arising from the execution of this Agreement alternatively which arises against the City as a result of the Service Provider's breach of any of the provisions of this Agreement, provided that the City shall notify the Service Provider in writing within a reasonable time, and in any event not less than 14 (fourteen) Business days of the City becoming aware of any such claim to enable the Service Provider to take steps to contest it and shall provide the Service Provider with such reasonable assistance as may be necessary to enable the Service Provider to defend the claim to the extent only that it is in a position to render such assistance. The Service Provider may, within 5 (five) Business Days of receipt of written notice from the City aforesaid, elect in writing to contest such a claim in the name of the City and shall be entitled to control the proceedings in regard thereto, provided that the Service Provider indemnifies the City against all and any costs (including attorney and own client costs) which may be incurred by or awarded against the City as a consequence of the defence of the claim.

THE SERVICE PROVIDER'S PERSONNEL

Liability for Criminal Acts of Employees

The Service Provider shall be liable to the City for any loss that the City or any third party may suffer as a result of any theft, fraud or other criminal act of any employee of the Service Provider which arises within the course and scope of such employees' employment with the Service Provider.

Character of Employees

Due to the confidential nature of certain aspects of the Goods Services and the position of trust which the Service Provider's employees will fulfil, the Service Provider hereby undertakes to use its best commercial endeavours to ensure that it only assigns to the City employees who are fit and proper persons and who display the highest standards of personal integrity and honesty and who have not, to their knowledge, been convicted of any crime.

The Service Provider shall, at its own cost, conduct all reasonable background checks into members of its employees prior to utilizing same to provide the Goods and Services in terms of this Agreement.

The City shall conduct all reasonable background checks into the Service Provider's employees from time to time, where it deems it necessary to do so.

STATUTORY AND EMPLOYMENT ISSUES

The Service Provider shall comply with all employment legislation

The Service Provider warrants that it has full knowledge of all relevant statutory, collective and other stipulations applicable to the relationship with its personnel and its relationship with the City. This includes, but is not limited to, the Labour Relations Act, the Basic Conditions of Employment Act, 1977, the Employment Equity Act, 1998 and any other applicable employment legislation currently in force.

The Service Provider warrants further that it is not and will not in future be in contravention of any of the provisions of any such legislation and in the event of such contravention, the Service Provider shall immediately take all steps to remedy such contravention. If the City advises the Service Provider of any contravention of such legislation in writing, the Service Provider shall, within 10 (ten) days after receipt of such notice, take all steps necessary to remedy such contravention and shall keep the City informed regarding the steps taken and the implementation and the result thereof.

No employment

The Service Provider warrants that none of its personnel shall be regarded as employees of the City. The Service Provider shall assist to defend and bear all costs in the event that the City is required to defend a claim, whether civil or employment related, instituted against it by the Service Provider's personnel should the City defend the matter, the Service Provider hereby indemnifies the City against all and any costs (including attorney and own client costs) which may be incurred by or awarded against the City as a consequence of the defence of the claim.

Occupational Health and Safety Act, 1993

The Service Provider shall be responsible for ensuring compliance with all the provisions of the Occupational Health and Safety Act, 1993 and it indemnifies the City against any claim which may arise in respect of such Act by its personnel against the City.

SUB-CONTRACTING

The Service Provider may not Subcontract the whole of or any portion of the Goods and Services in terms of this Agreement to any third party without the prior written consent of the City.

In the event the Service Provider wishes to Subcontract the whole of or any portion of the Goods and Services in terms of this Agreement, it shall apply to the City in writing for consent to do so.

In its application, the Service Provider shall give the name of the Subcontractor, the Subcontractor's obligations, the proposed date of commencement of the Subcontract which shall include the fees payable to the Subcontractor, and a report of the background security check on the Subcontractor's suitability, financial and otherwise.

The City may, in its sole and absolute discretion refuse consent to Subcontract. In the event the City approves the Subcontracting of the whole of or any portion of the Goods and Services in terms of this Agreement, then:

the Service Provider shall ensure that the Subcontractor's B-BBEE level is equal or better than that of the Service Provider, their price is competitive and they have the capacity to provide the Goods and Service;

such Subcontracting shall not absolve the Service Provider from responsibility for achieving the Service Levels or complying with its obligations in terms of this Agreement and the Service Provider hereby indemnifies and holds the City harmless against any loss, harm or damage which the City may suffer as a result of such Subcontracting;

the Service Provider shall at all times remain the sole point of contact for the City in respect of the acquisition of Goods and Services by the City; and

no such Subcontracting shall have any effect on the Contract Price and charges payable by the City to the Service Provider in terms of this Agreement.

CONFIDENTIALITY

The Service Provider acknowledge that all information relating to the City confidential business and technical information, data, documents or other information necessary or useful for the carrying on by the City of its business which shall include, but shall not be limited to operating procedures, quality control procedures, approximate operation personnel requirements, descriptions and trade names and trademarks, know how, techniques, technology, information relating to clients, customers, suppliers, relevant authorities, copyright, trade secrets and all goodwill relating to the business and any other intellectual property rights, technical data and documents in whole or in part, used by the City in respect of its business; ("Confidential Information"), shall remain confidential

and shall not be made known unless the City has given written consent to do so.

The information provided by the City in the context of this Agreement is Confidential Information and the Service Provider shall take all reasonable measures to keep the information confidential and will only use the information for the purpose for which it was provided.

The Service Provider undertakes to not disclose any such Confidential Information. However, there will be no obligation of confidentiality or restriction on use where:

the information is publicly available, or becomes publicly available otherwise than by action of the receiving Party; or

the information was already known to the receiving Party (as evidenced by its written records) prior to its receipt under this or any previous agreement between the Parties or their affiliates; or

The information was received from a third Party not in breach of an obligation of confidentiality.

INTELLECTUAL PROPERTY RIGHTS

All Intellectual Property Rights of the Service Provider and/or third party vest in the Service Provider and/or third party, as appropriate.

All rights in the City name and logo remain the absolute property of the City.

The Service Provider warrants that no aspect of the Services provided in terms thereof will infringe any Patent, Design, Copyright, Trade Mark or trade secret or other proprietary right of any third party.

The Service Provider shall promptly notify the City, in writing, of any infringement or apparent or threatened infringement or any circumstances which may potentially give rise to an infringement, or any actions, claims or demands in relation to any Intellectual Property Rights.

In the event the City becomes aware of any such infringement, the Service Provider shall, at its cost, defend the City against any claim that the Goods and Services infringe on any such third party's Intellectual Property Rights, provided that the City gives notice to the Service Provider of such claim and the Service Provider controls the defence thereof. The Service Provider further indemnifies the City against, and undertakes that it will pay all costs, damages and attorney fees, if any, finally awarded against the City in any action which is attributable to such claim and will

reimburse the City with all costs reasonably incurred by the City in connection with any such action.

Should any claim be made against the City by any third party in terms of clause 0 above, the City shall give the Service Provider written notice thereof within 3 (three) days of becoming aware of such claim to enable the Service Provider to take steps to contest it.

Should any third party succeed in its claim for the infringement of any third party proprietary rights, the Service Provider shall, at its discretion and within 30 (thirty) days of the Goods and Services having been found to infringe, at its own cost:

obtain for the City the right to continue using the subject of infringement or the parts thereof which constitute the infringement; or

replace the subject of infringement or the parts thereof which constitute the infringement with another goods or service which does not infringe and which is materially similar to the subject of infringement; or

alter the subject of infringement in such a way as to render it non-infringing while still in all respects operating in substantially the same manner as the subject of infringement; or

withdraw the subject of infringement.

FORCE MAJEURE

For the purposes hereof, Force Majeure shall mean civil strife, riots, insurrection, sabotage, national emergency, acts of war of public enemy, rationing of supplies, flood, storm, fire or any other like forces of nature beyond the reasonable control of the party claiming Force Majeure and comprehended in the terms thereof.

If Force Majeure causes delays in or failure or partial failure of performance by a Party of all or any of its obligations hereunder, this Agreement shall be suspended for the period agreed in writing between the Parties.

In the event of circumstances arising which the other Party believes that it constitutes a Force Majeure ("the Affected Party") then such Affected Party shall send, within 5 (five) days from the interrupting circumstances, a written notice of the interrupting circumstances specifying the nature and date of commencement of the interrupting event to the other Party. The Parties shall agree, in writing, to suspend the implementation of this Agreement for a specific period ("Agreed Period").

In the event that both Parties reasonably believe that the Affected Party shall be unable to continue to perform its obligations after the

Agreed Period, then either Party shall be entitled to terminate this Agreement without further notice to the other Party.

The Party whose performance is interrupted by the interrupting circumstances shall be entitled, provided that such party shall give notice to that effect with a written notice of the interrupting circumstances as provided above, to extend the period of this Agreement by a period equal to the time that its performance is so prevented.

CESSION

The Service Provider shall not be entitled to cede or assign or transfer in any other way and/or alienate its rights and obligations in terms of this Agreement without the prior written consent of the City.

CHANGE OF CONTROL / CIRCUMSTANCE

The Service Provider shall notify the City, in writing, of any change in the Service Provider's shareholding or membership or any change in the Service Provider's subsidiary companies or holding or its affiliates (such change shall be considered a material change in the constitution and identity of the Service Provider. The City may terminate this Agreement upon becoming aware of such material change.

The Parties agree that should there be a change as envisaged in clause 0 above, the Service Provider will no longer exist and a new third party/entity shall have been constituted. In this regard, such third party shall not be entitled to inherit any of the Service Provider's rights and obligations in terms of this Agreement, which will only be transferred to the new entity in writing by the City following the City's satisfaction and approval in writing of such new entity.

The Service Provider shall further notify the City of any material changes or circumstance which might have led the City to appoint the Service Provider to Provide the Goods and Services. In the event that any material change or circumstance occurs and the Service Provider fails to inform the City of such a change or circumstance, the Service Provider shall be deemed to have breached a material term of this Agreement and the City shall be entitled to cancel the Agreement on 1 (one) month's prior notice.

BREACH

Subject to clause 23.3 above, should either Party commit a breach of any term of this Agreement ("the Defaulting Party") then the affected party ("Aggrieved Party") shall be entitled to inform the Defaulting Party in writing to remedy such failure or default within 5 (five) Business Days and should the Defaulting Party fail to remedy the breach within 5 (five) Business Days after receipt of the notice the

so Aggrieved Party shall be entitled, without prejudice to any of its rights under this Agreement or law to:

immediately terminate this Agreement without giving written notice and claim damages (which shall include legal costs on an attorney/client scale); or

request specific performance and claim damages (which shall include legal costs on an attorney/client scale); or

impose penalties as provided for in clause 12 above.

EARLY TERMINATION

The City shall have the right to terminate this Agreement by giving 30 (thirty) days' notice in writing to the Service Provider of its intention to terminate the Agreement.

DISPUTES

Save for clause 24 above or any other clause in this Agreement which provides for its own remedy, should any dispute arise between the Parties in respect of or pursuant to this Agreement, including, without limiting the generality of the foregoing, any dispute relating to:

the interpretation of the Agreement;

the performance of any of the terms of the Agreement;

any of the parties' rights and obligations;

any procedure to be followed;

the termination or cancellation or breach of this Agreement; or

the rectification or repudiation of this Agreement; then any Party may give the other Party written notice of such dispute, in which event the provisions below shall apply.

Within 7 (seven) days of the declaration of such dispute, the Parties representatives or their nominated persons shall meet in the spirit of goodwill and endeavour to resolve the dispute, failing which (and without prejudice to any other alternative dispute resolution to which the Parties may agree, either prior to or concurrently with arbitration) the provisions of this clause 26 above shall apply.

If the Parties are unable to resolve the dispute within 14 (fourteen) days of the notice of the dispute (or such longer period as they may have agreed to in writing), then either Party may, on written notice to the other Party, require that the dispute be submitted to and decided by

arbitration, in terms of the Arbitration Act, 42 of 1965 of South Africa ("the Arbitration Act").

The arbitration shall be held under the provisions of the Arbitration Act provided that the arbitration shall be:

at any place which the Parties agree, in writing, to be mutually convenient; and

in accordance with such formalities and/or procedures as may be settled by the arbitrator and may be held in an informal and summary manner, on the basis that it shall not be necessary to observe or carry out the usual formalities of procedure, pleadings and/or discovery or respect rules of evidence.

If the arbitration is:

a legal matter, then the arbitrator shall be a practicing advocate or a practicing attorney of not less than 10 (ten) years' standing;

an accounting matter, then the arbitrator shall be a practicing chartered accountant of not less than 10 (ten) years' standing; and

any other matter, then the arbitrator shall be any independent person agreed upon between the Parties.

Should the Parties fail to agree on an arbitrator within 14 (fourteen) days after the arbitration has been demanded, then the arbitrator shall be nominated at the request of either of the Parties, by the president for the time being of the Legal Practice Council of South Africa (Former Law Society of the Northern Province).

Should the Parties fail to agree whether the dispute is of a legal, accounting or other nature within 7 (seven) days after the

arbitration has been demanded, then it shall be deemed to be a dispute of a legal nature.

The arbitrator may:

investigate or cause to be investigated any matter, fact or thing which he considers necessary or desirable in connection with the dispute and for that purpose, shall have the widest powers of investigating all documents and records of any Party having a bearing on the dispute;

interview and question under oath the parties of any of their representatives;

decide the dispute according to what he considers just and equitable in the circumstances; and

make such award, including an award for specific performance, damages or otherwise, as he in his discretion may deem fit and appropriate. The arbitration shall be held as quickly as possible after it is requested, with a view to it being completed within 30 (thirty) days after it has been so requested.

The arbitrator's decision and award shall be in writing with reasons and shall be final and binding upon the Parties.

The arbitrators award may, on application by either Party to a court of competent jurisdiction and after due notice is given to the other Party, be made an order of court.

Notwithstanding the provisions of clauses 26.1, 26.2, 26.3, 26.4, 26.5, 26.6 and 26.7 above, in the event of either Party having a claim against the other Party for a liquidated amount or an amount which arises from a liquid documents, or for an interdict or other urgent relief, then the other Party having such a claim shall be entitled to institute action therefore in a court of law rather than in terms of the above clauses, notwithstanding the fact that the other Party may dispute the claim.

The provisions of this clause 26 are severable from the rest of this Agreement and shall remain in effect even where this Agreement is terminated or cancelled for any reason.

LAWS AND JURISDICTION

This Agreement shall be governed by and interpreted according to the Law of the Republic of South Africa.

Each Party submits to the exclusive jurisdiction of the South African courts in respect of any matter arising from or in connection with this Agreement including its termination. Each Party further

consents to the jurisdiction of the High Court of South Africa (North Gauteng High Court (Pretoria)).

NOTICES AND COMMUNICATIONS

The Parties choose as their respective *domicilium citandi et executandi* (hereinafter referred to as the "*domicilium*") and for the delivery of any notices arising out of the Agreement or its termination or cancellation, whether in respect of court process, notices or other documents or communications of whatsoever nature (including the exercise of any option), the address set out below:

THE CITY:

Office of the City Manager
Tshwane House
2nd Floor, Block D
320 Madiba Street
Pretoria, 0001
P O Box 440
Pretoria, 0001
Attention: Tshepiso Khoza
Telephone: 012 358 3347
Email: TshepisoN@tshwane.gov.za

THE SERVICE PROVIDER:

Street Address: _____

Postal Address: _____

Attention: _____

Cell phone: _____

Telephone: _____

Fax: _____

Email: _____

Each Party shall be entitled from time to time, by written notice to the other Party, to vary its *domicilium* to any other address which is not a Post Office Box or a Poste Restante.

Any notice given and any payment made by any Party to another Party (hereinafter referred to as “the addressee”) which:

is delivered by hand during normal business hours of the addressee at the addressee’s *domicilium*, shall be deemed, until the contrary is proved by the addressee, to have been received by the addressee at the time of delivery;

is posted by prepaid registered post to the addressee at the addressee’s *domicilium* shall be deemed, until the contrary is proved by the addressee, to have been received on the 7th (seventh) day after the date of posting; or

is sent by email or facsimile machine shall be deemed, until the contrary is proven by the addressee, to have been received within 1 (one) hour of transmission where it is transmitted during business hours of the receiving instrument and at noon on the following business day (excluding Saturdays) where it is transmitted outside such business hours.

Any notice or communication required or permitted in terms of this Agreement shall be valid and effective only if in Writing but it shall be competent to give notice by facsimile.

Notwithstanding anything to the contrary in this Agreement a notice or communication actually received by one Party shall be an adequate

notice or communication notwithstanding that it was not sent to or delivered at the chosen *domicilium citandi et executandi*.

GENERAL AND MISCELLANEOUS

SOLE RECORD OF AGREEMENT

This Agreement constitutes the sole record of the Agreement between the Parties with regard to the subject matter hereof. No Party shall be bound by any express or implied term, representation, warranty, promise or the like not recorded herein.

NO AMENDMENT EXCEPT IN WRITING

No addition to, variation of, or agreed cancellation of, this Agreement shall be of any force or effect unless in writing and signed by or on behalf of the Parties. Any alleged waiver of this requirement must itself be reduced to writing and signed by the relevant Party to be of any effect.

WAIVERS

No relaxation or indulgence which any Party may grant to any other shall constitute a waiver of the rights of that Party and shall not preclude that party from exercising any rights which may have arisen in the past or which might arise in future.

SURVIVAL OF OBLIGATIONS

Any provision of this Agreement which contemplates performance or observance subsequent to any termination or expiration of this Agreement shall survive any termination or expiration of this Agreement and continue in full force and effect.

APPROVALS AND CONSENTS

An approval or consent given by a Party under this Agreement shall only be valid if in writing and shall not relieve the other Party from responsibility for complying with the requirements of this Agreement nor shall it be construed as a waiver of any rights under this Agreement except as and to the extent otherwise expressly provided in such approval or consent, or elsewhere in this Agreement. Any alleged waiver of the requirement that the approval or consent must be in writing must itself be reduced to writing and signed by the relevant Party to be of any effect.

EXECUTION

This Agreement may be executed in several counterparts, which shall each be deemed an original, but all of which shall constitute one

and the same instrument. A facsimile shall constitute a valid counterpart for all purposes hereunder.

The signatories to this Agreement by their signature warrant their authority to enter into this Agreement and the capacity of their principal, if signing in a representative capacity, to enter into this Agreement.

Signed at _____ on this _____ day of _____
20__

For and on behalf of

THE CITY OF TSHWANE

METROPOLITAN MUNICIPALITY

Duly represented by: Phuti Moloto

In his capacity as: Acting Group Head: Region Operations and Coordination

Witnesses

1. _____

2. _____

Signed at _____ on this _____ day of _____
20__

For and on behalf of

(Name of Company)

Duly represented by: _____

In his/ her capacity as: _____

and duly authorised thereto.

Witnesses

1. _____

2. _____

ANNEXURE "A"

RESOLUTION OF THE BOARD

Resolution by the Board of Directors of _____
made at a meeting held at _____ on _____ 20____.

NOTED: THAT _____ (Company Name)

intends to enter into an Agreement with the City of Tshwane Metropolitan Municipality in terms of which _____
(Company Name) shall supply, deliver and off-load cartridge fire cable spiking and hydraulic cable spiking equipment, accessories, and consumables for use on the electricity distribution network as and when required over a three (3) year period.

on the terms and subject to the conditions, for the duration of this Agreement, provide the Services and/or Goods as specified in the Project Scope, set out in the tender document.

RESOLVED:

THAT _____ (Name of Company),
approves and enters into the Agreement on the terms and subject to the conditions of the Agreement to which this resolution is attached.

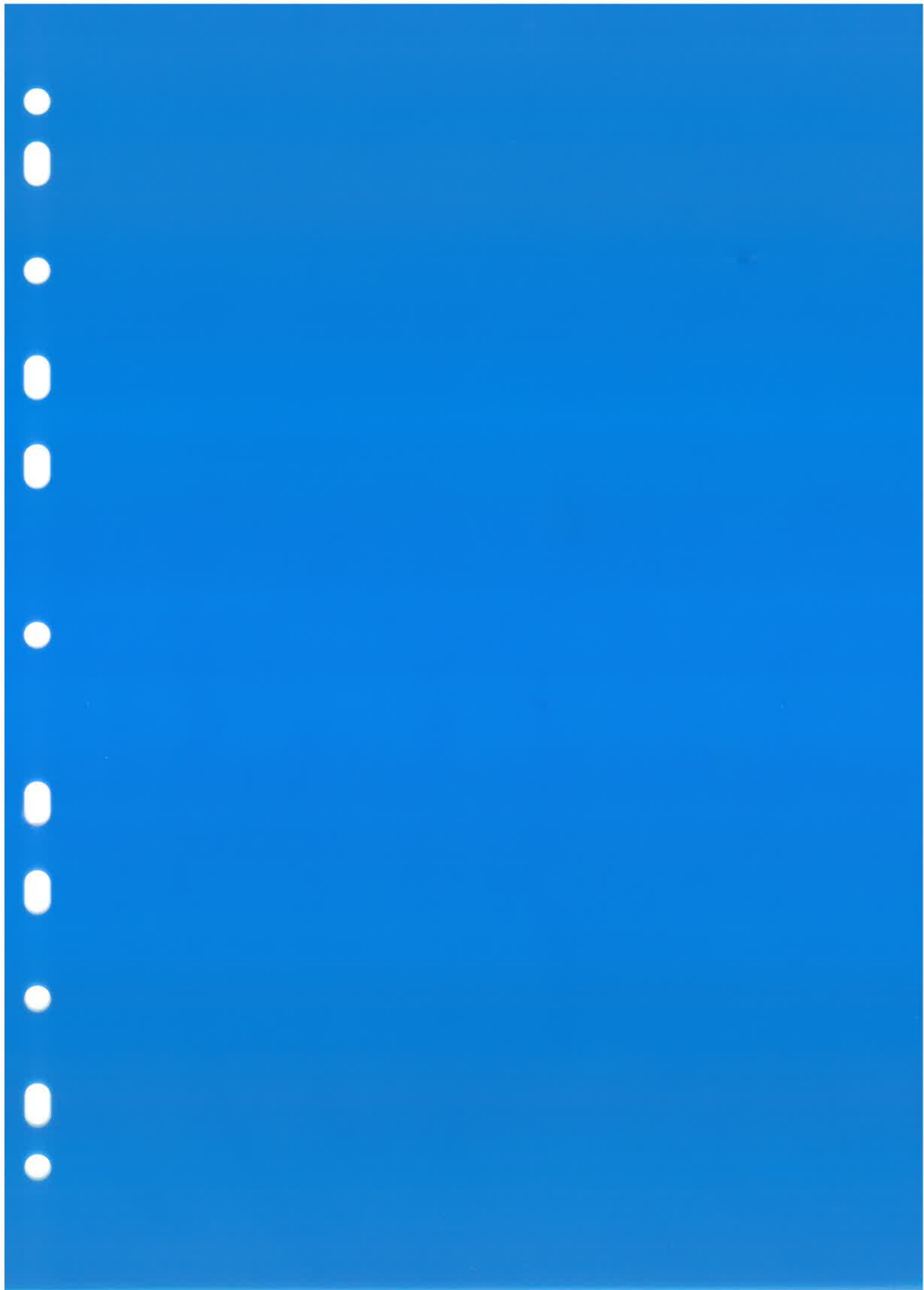
THAT _____,

in his/her capacity as a _____,

of _____ (Name of Company),
be and is hereby authorised to negotiate, settle and sign the Agreement attached hereto, and to sign all documentation and do all things necessary to give effect to the aforesaid resolutions on behalf of
_____ (Name of Company).

Read and Confirmed

Chairman/Company Secretary





285 Erasmus Avenue, Raslouw, A.H Centurion 0157
(012) 880 3155 | (073) 124 1535
info@sithembe.co.za | www.sithembe.co.za
Reg No: 2013/029173/07 | VAT: 4070272101

CERTIFICATE OF AUTHORITY FOR SIGNATORY

24/02/2025

Resolution of the Board of Directors

Subject: Authorization for Sanele Mpofu to Sign Documents on Behalf of the Director

The undersigned, being the duly appointed and authorized Directors of **Sithembe Transportation and Projects**, hereby resolve and grant authority to **Miss Sanele Mpofu** the Manager of the Company, to act on behalf of **Mr Muzi Vincent Lukhele**, the Director of the Company, in relation to the signing of all documents in connection with the tender.

DESCRIPTION : TENDER FOR THE SUPPLY, DELIVERY AND OFF-LOADING OF CARTRIDGE FIRE CABLE SPIKING AND HYDRAULIC CABLE SPIKING EQUIPMENT, ACCESSORIES ,AND CONSUMABLES TO BE USED ON THE ELECTRICITY DISTRIBUTION LV/MV NETWORK FOR A PERIOD OF THREE YEARS AS AND WHEN REQUIRED

BID NO : ROC 08 2024-25

Authorized Manager: Miss Sanele Mpofu
Position: Manager

The undersigned, being the Director of **Sithembe Transportation and Projects** acknowledge and approve the aforementioned authority granted to **Miss Sanele Mpofu**.

Signed: 

Muzi Vincent Lukhele
Director
Sithembe Transportation and Projects
Date: 24/02/2025





South African Revenue Service

TAX COMPLIANCE STATUS

PIN Issued

Enquiries should be addressed to SARS:

Contact Details

SARS
Alberton
1528

Contact Centre Tel: 0800 00 7277
SARS website: www.sars.gov.za

SITHEMBE TRANSPORTATION AND
PROJECTS
2
3138 HOUSE
THATCHFIELD
RUA VISTA
0157

Details

Taxpayer Reference Number: 9745624156

Always quote this reference
number when contacting SARS

Issue Date:

2024/09/30

Dear Taxpayer

TAX COMPLIANCE STATUS PIN ISSUED

The South African Revenue Service (SARS) has issued your tax compliance status (TCS) PIN as indicated below:

TCS Details:	
Taxpayer Name	Sithembe Transportation And Projects (Pty) Ltd
Trading Name	SITHEMBE TRANSPORT AND PROJECTS PTY LTD
Taxpayer Reference Number(s)	IT - 9745624156 Vat - 4070272101 PAYE - 7330792567
Purpose of Request	Good Standing
Request Reference Number	0030623251GS3009241432056
PIN	EF52G37219
PIN Expiry Date	30/09/2025

You may authorise a third party to view your TCS by providing them the PIN. The PIN only allows the third party access to your TCS. All your other tax information remains secure.

Your TCS displayed is based on your compliance as at the date and time the PIN is used.

You may cancel this PIN at any time before the expiry date reflected above. Once cancelled, a third party will not be able to verify your TCS.

SARS reserves the right to cancel the TCS application and associated PIN in the event that it was issued in error or provided on the basis of fraud, misrepresentation or non-disclosure of material facts.

More details regarding our channels, office hours, services, tailored information regarding tax as well as a comprehensive FAQ repository are available on the SARS website: www.sars.gov.za.

We value your support and contribution to our country's economy and prosperity. We strive to ensure that you clearly understand what is expected from you, as well as what your rights as a taxpayer are.

Sincerely

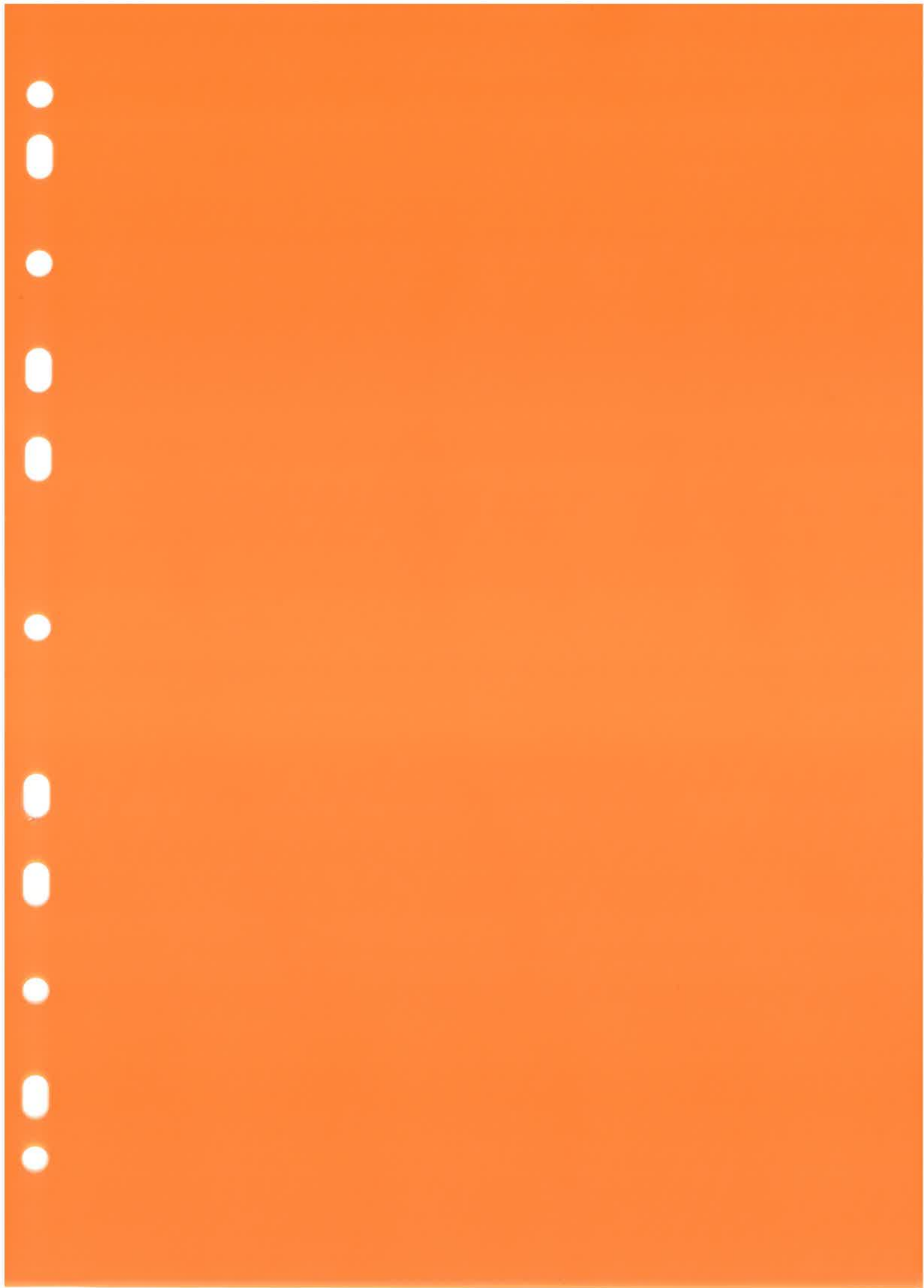
ISSUED ON BEHALF OF THE COMMISSIONER FOR THE SOUTH AFRICAN REVENUE SERVICE



2024-09-30 2022.03.00 TCR00_RO

Name: SITHEMBE TRANSPORTATION
Tax reference No: 9745624156
Form ID: TCR00
Content Version: v2022.03.00
Timestamp: 23726544
Year: 2024
Page of Page: 01/01
Template version: v2022.00.01

Page: 01/01





CSD REGISTRATION REPORT

SUPPLIER IDENTIFICATION

Supplier number	MAAA0573988	Total annual turnover	More than R10 million and less than R50 million
Is supplier active?	Yes	Financial year start date	20 Feb 2013 00:00:00:000
Supplier type	CIPC Company	Registration date	20 Feb 2013 00:00:00:000
Supplier sub-type	Private Company (Pty)(Ltd)	Created by	info@sithembe.co.za
Legal name	SITHEMBE TRANSPORTATION AND PROJECTS	Created date	05 Feb 2018 13:47:05:000
Identification type	South African Company/Close Corporation Registration Number	Edit by	csd.reverifybatch@treasury.gov.za
Government breakdown	Private Companies (Pty) (Ltd)	Edit date	03 Feb 2025 10:05:36:503
Business status	In Business	Restricted Supplier	No
Country of origin	South Africa	Restricted Director	No
South African company/CC registration number	2013/029173/07	Government Employee	No
Have Bank Account	Yes		

SUPPLIER INDUSTRY CLASSIFICATION INFORMATION

INDUSTRY CLASSIFICATION 1

Main group	Other service activities	Core industry	Other personal service activities
Division	Other personal service activities	% share of annual turnover	100.00

SUPPLIER CONTACT INFORMATION

CONTACT 1

Contact type	Administration, Bid Office	Telephone number	012 880 3155
Is this your preferred Contact?	Yes	Cellphone number	073 124 1535
Name(s)	muzi vincent	Fax number	086 603 7935
Surname	lukhele	Website address	www.sithembe.co.za
Identification type	South African Identification Number	Do you want this contact to also be a CSD user ?	Yes
Prefer communication via cellphone	Yes	Created by	info@sithembe.co.za
Prefer communication via email	Yes	Created date	05 Feb 2018 13:47:06:297





CSD REGISTRATION REPORT

Prefer communication via sms	Yes	Edit by	info@sithembe.co.za
Prefer communication via telephone	Yes	Edit date	09 Jul 2021 17:13:59:357
Email address	muzi.lukhele@sithembe.co.za		

SUPPLIER ADDRESS INFORMATION

ADDRESS 1

Is this a preferred address?	No	Postal code	0157
Address line 1	3138B Thatchfield Hills	Ward Number	77
Address line 2	Rua Vista, Centurion	Country	South Africa
Suburb	Rua Vista	This address S/A postal	Yes
Province	Gauteng	Created by	info@sithembe.co.za
Municipality	City of Tshwane	Created date	05 Feb 2018 13:47:06:283
City	Centurion	Edit by	info@sithembe.co.za
		Edit date	24 Jan 2025 08:26:14:640

ADDRESS 2

Is this a preferred address?	No	Postal code	1023
Address line 1	Stand No 337	Ward Number	7
Address line 2	Somaroboro-E, Tweefontein	Country	South Africa
Suburb	Zithabiseni SP	Created by	info@sithembe.co.za
Province	Mpumalanga	Created date	19 Oct 2019 11:23:12:047
Municipality	Thembisile	Edit by	info@sithembe.co.za
City	Zithabiseni	Edit date	19 Nov 2024 15:31:34:913

ADDRESS 3

Is this a preferred address?	No	Postal code	0157
Address line 1	285 Erasmus Avenue	Ward Number	70
Address line 2	Raslou AH, Centurion	Country	South Africa
Suburb	Wierda Park	This address S/A postal	Yes
Province	Gauteng	Created by	info@sithembe.co.za
Municipality	City of Tshwane	Created date	14 Jul 2023 10:37:14:920
City	Centurion	Edit by	info@sithembe.co.za
		Edit date	24 Jan 2025 08:26:14:710





CSD REGISTRATION REPORT

ADDRESS 4

Is this a preferred address?	No	Postal code	0152
Address line 1	3138B CRANE STREET	Ward Number	64
Address line 2	THATCHFIELD HILLS RAU-VISTA EXT 13	Country	South Africa
Suburb	Thatchfield	Created by	csd.reverifybatch@treasury.gov.za
Province	Gauteng	Created date	12 Dec 2024 01:20:29:423
Municipality	City of Tshwane	Edit by	info@sithembe.co.za
City	Centurion	Edit date	24 Jan 2025 08:26:14:800

ADDRESS 5

Is this a preferred address?	No	Postal code	0152
Address line 1	3138B CRANE STREET	Ward Number	64
Address line 2	THATCHFIELD HILLS RAU-VISTA EXT 13	Country	South Africa
Suburb	Thatchfield	Created by	csd.reverifybatch@treasury.gov.za
Province	Gauteng	Created date	12 Dec 2024 01:20:29:440
Municipality	City of Tshwane	Edit by	info@sithembe.co.za
City	Centurion	Edit date	29 Jan 2025 15:58:02:057

ADDRESS 6

Is this a preferred address?	No	Postal code	4126
Address line 1	19 Elizabeth Avenue	Ward Number	97
Address line 2	Illovo Beach, Kingsburgh	Country	South Africa
Suburb	Illovo Beach	This address S/A postal	Yes
Province	KwaZulu-Natal	Created by	info@sithembe.co.za
Municipality	eThekwini	Created date	03 Feb 2025 09:39:50:560
City	Kingsburgh	Edit by	info@sithembe.co.za
		Edit date	03 Feb 2025 09:39:50:560

ADDRESS 7

Is this a preferred address?	Yes	Created by	csd.reverifybatch@treasury.gov.za
Address line 1	3138B CRANE STREET	Created date	03 Feb 2025 10:05:36:697
Address line 2	THATCHFIELD HILLS RAU-VISTA EXT 13	Edit by	csd.reverifybatch@treasury.gov.za





CSD REGISTRATION REPORT

Province	Gauteng	Edit date	03 Feb 2025 10:05:36:697
Postal code	0152		
Country	South Africa		
ADDRESS 8			
Is this a preferred address?	No	Created by	csd.reverifibatch@treasury.gov.za
Address line 1	3138B CRANE STREET	Created date	03 Feb 2025 10:05:36:697
Address line 2	THATCHFIELD HILLS RAU-VISTA EXT 13	Edit by	csd.reverifibatch@treasury.gov.za
Province	Gauteng	Edit date	03 Feb 2025 10:05:36:697
Postal code	0152		
Country	South Africa		

SUPPLIER BANK ACCOUNT

BANK ACCOUNT 1

Account type	Current Accounts	Active start date	12 Sep 2022 13:06:20:000
Bank	STANDARD BANK OF SOUTH AFRICA	Created by	info@sithembe.co.za
Branch number	051001	Created date	09 Mar 2023 14:32:50:000
Branch name	STANDARD BANK SOUTH AFRICA	Edit by	info@sithembe.co.za
Account number	411437577	Edit date	09 Mar 2023 14:34:03:617
Account holder	SITHEMBE TRANSPORTATION AND PROJECTS PTY LTD	Bank Verification Status	Verification Succeeded
Is this a preferred account?	Yes	Foreign Bank Account	No
		Is the identifier linked at the bank	Yes
		Is this a Shared Funding Account	No
		Funding Partner(s)	

BANK ACCOUNT 2

Is this a preferred account?	No
Edit date	12 Sep 2022 13:06:28:020
Bank Verification Status	Bank account deactivation processed
Foreign Bank Account	No





CSD REGISTRATION REPORT

Is the identifier linked at the bank

Yes

Is this a Shared Funding Account

No

BANK ACCOUNT 3

Account type

Current Accounts

Bank

FIRST NATIONAL BANK

Branch number

250655

Branch name

BRANCH 560

Account number

62797340727

Account holder

SITHEMBE TRANSPORTATION
AND PROJECTS PTY LTD

Is this a preferred account?

No

Active start date

25 Mar 2019 11:26:30:000

Created by

info@sithembe.co.za

Created date

12 Sep 2022 13:05:07:000

Edit by

csd.safetynetbatchdownload@treasury.gov.za

Edit date

13 Sep 2022 17:00:15:693

Bank Verification Status

Verification Succeeded

Foreign Bank Account

No

Is the identifier linked at the bank

Yes

Is this a Shared Funding Account

No

Funding Partner(s)

BANK ACCOUNT 4

Is this a preferred account?

No

Edit date

01 Oct 2024 10:03:00:697

Bank Verification Status

Verification Failed

Foreign Bank Account

No

Bank Verification Response

Incorrect Company Name/
Surname

Response date

01 Oct 2024 10:03:00:697

Business days since last update

89

Is the identifier linked at the bank

Yes

Is this a Shared Funding Account

No

Funding Partner(s)





CSD REGISTRATION REPORT

TAX INFORMATION

Income tax number	9745624156	Overall Tax Status	Tax Compliant
VAT number	4070272101	Tax compliance status pin provided	Yes
Is this supplier a VAT vendor?	Yes	Created by	info@sithembe.co.za
PAYE number	7330792567	Created date	05 Feb 2018 13:47:08:330
Are you Registered with SARS?	Yes	Edit by	csd.reverifybatch@treasury.gov.za
Last validation date	03 Feb 2025 09:59:00:000	Edit date	30 Jan 2025 07:28:13:000
Would you like to receive notifications?	Yes		

B-BBEE INFORMATION

Are you an empowering supplier	No	Accept and understand the content of the affidavit	Yes
% Owned by black people	100.00	Commissioner of Oath	Maleka MA
% Owned by black people who are women	0.00	Date affidavit signed by commissioner of oath	08 Oct 2024 00:00:00:000
% Owned by black people who are youth	100.00	Affidavit expiry date	07 Oct 2025 00:00:00:000
% Owned by black people with disabilities	0.00	Created by	info@sithembe.co.za
% Owned by black who are unemployed	0.00	Created date	05 Feb 2018 13:47:08:657
% Owned by black people who are military veteran	0.00	Edit by	info@sithembe.co.za
% Owned by black people living in rural or underdeveloped areas	0.00	Edit date	19 Nov 2024 15:31:36:477
Status	Active	Verification Status	Manual Verification Required

OWNERSHIP INFORMATION

CSD can only verify the youth category of persons for South African citizens. It is the responsibility of an organ of state supply chain practitioner to obtain supporting documentation to verify the ownership information of this supplier.

Owner s name and surname Legal name	Owner s Identification number	RSA Citizen	Ethnic group	Gender	Ownership %	Youth	Disabled	Military	Rural	Township
MUZI VINCENT LUKHELE	8702125373087	Yes	Black African	Male	100.00%	No	No	No		
Total					100.00%					





CSD REGISTRATION REPORT

CATEGORY OF PERSONS BASED ON OWNERSHIP

Owned by black people	100.00%
Owned by people	100.00%

DIRECTORS /MEMBERS / OWNERS INFORMATION

DIRECTOR/MEMBER

1

Director type	Director, Owner	Owner person with disabilities	No
Director status	Active	Owner military veteran	No
Name(s)	MUZI VINCENT	Created by	info@sithembe.co.za
Surname	LUKHELE	Created date	30 Jan 2018 16:45:17:000
Country	South Africa	Edit by	info@sithembe.co.za
Identification type	South African Identification Number	Edit date	19 Nov 2024 15:31:23:000
South African identification number	8702125373087	Restricted Director	No
Appointment date	20 Feb 2013 00:00:00:000	Restriction Last Verification Date	03 Feb 2025 10:05:38:277
Email address	SITHEMBE.PROJECT@YAHOO.CO.ZA	Government Employee	No
Cellphone number	0731241535	Government Employee Last Verification Date	03 Feb 2025 10:05:38:807
Owner	Yes	SA Identification number Verified	Yes
Ownership %	100.00%	SA identification number verification date	03 Feb 2025 10:03:34:527
Owner's ethnic group	Black African	Ownership verification status	Verified by CIPC
Owner's gender	Male	Ownership last verification date	01 Jan 1900 00:00:00:000
Owner youth	No	Companies involved in	MAAA0869802;

Tips and Frequently Asked Questions (FAQ)





CSD REGISTRATION REPORT

Identifier

CSD cannot electronically verify the identity of a supplier other than a South African Individual / Sole Proprietor (through Home Affairs) or a company registered at the Companies and Intellectual Property Commission (CIPC). For this reason, a disclaimer is displayed for supply chain practitioners to obtain supporting documentation to verify the identity and legitimacy of a supplier in these cases.

Bank

For help on how to resolve bank failures click here: [I received an email stating the bank information I captured on the CSD was sent for bank account validation and could not be validated. The response received from the bank contains an error message.](#)

The various possible error messages received from the bank are highSemiBolded in red. Search for the applicable message and follow the detailed steps associated with that error message.

Tax

Tax Compliance Status

For help on how to deal with tax status differences between CSD and the tax clearance certificate click here: [What should a supplier do if the tax status on CSD difference from the tax clearance certificate?](#)

Tax Compliance Expiry Date

For help on how to deal with tax status differences between CSD and the tax clearance certificate click here: [How does CSD determine the tax compliance expiry date?](#)

CIPC

Should the director/member information reflected on the CIPC registration report differs to that reflected on CSD for help click here: [The active Directors/Members are not being populated on the CSD Directors/Members screen as they appear at CIPC. how can I rectify this?](#)

State Employee

For more information pertaining to government employment status click here: [Will there be verification done to identify if a supplier is a government employee?](#)

BBBEE

CSD does not automatically verify all certificate information with the various accreditation bodies. Organs of State are required, where not automatically verified by CSD, to manually verify this information with the applicable accreditation body as per current policies and procedures. Expired certificate information do not reflect on the report.

RESTRICTION

Restricted Supplier – A supplier is restricted by using the identification number of the entity e.g. CIPC registration -, trust -, Social Development non-profit -, South African ID -, Foreign company registration number or ID number. If there is more than one CSD Supplier profile registered on CSD with the same entity identification number, all those related supplier profiles will be restricted.

Restricted Director – A director/owner is an individual person and is restricted by using the South African ID or Foreign ID number. If a director belongs to different companies and has been restricted, the director will reflect as restricted in all companies where identification number is detected.

Restricted Suppliers & Directors are listed on CSD under Help – [Am I restricted?](#)

The CSD does not automatically verify foreign company registration number, international securities Identification number, foreign identification numbers, foreign passport numbers, work permit numbers, foreign bank accounts, B-BBEE, demographic and accreditation information. Organs of State are required to manually verify this information with the applicable verification institutions as per their current policies and procedures.





CSD REGISTRATION REPORT

Print Date: 2/3/2025 10:08:05 AM





STANDARD BANK**MENLYN PARK****31 Jan 2025****2345**

Date: 31 January 2025

To Whom it May Concern

Confirmation of Standard Bank Account

This letter serves to confirm that the below customer holds a valid bank account with Standard Bank.

Account details:Account holder: **SITHEMBE TRANSPORTATION AND PROJECTS PTY LTD**ID/Reg Number: **2013/029173/07**Account type: **CURRENT**Account number: **41 143 757 7**Branch: **MENLYN PARK**Branch code: **002345**SWIFT code: **SBZAJJ**Date account opened: **11 May 2022**

This letter is given without responsibility and does not give rise to any obligations or liability on the part of the bank and/or its officials.

Yours Sincerely

Standard Bank of South Africa**The Standard Bank of South Africa Limited (Reg. No. 1962/000738/06) Authorised financial services provider and registered credit provider (NCRCP15)****Directors:** N Nyembezi (Chairman) AKL Fihla* (Chief Executive Officer) LL Bam PLH Cook A Daehnke* OA David-Borha1 GJ Fraser-Moleketi GMB Kennealy BJ Kruger Li Li2 JH Maree NNA Matyumza ML Oduor-Otieno3 Fenglin Tian2 SK Tshabalala***Company Secretary:** K Froneman - 2024/09/02

*Executive Director 1Nigerian 2Chinese 3Kenyan

The Standard Bank of South Africa Limited (Reg. No. 1962/000738/06. Authorised financial service provider. VAT Reg No. 4100105461 Registered credit provider (NCRCP15). We subscribe to the Code of Banking Association South Africa and, for unresolved disputes, support resolution through the Ombudsman for Banking Services

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD
Incorporated in the Republic of South Africa
(Registration number : 2013/029173/07)

FINANCIAL STATEMENTS
for the year ended 28 February 2024

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

FINANCIAL STATEMENTS

for the year ended 28 February 2024

Company's INFORMATION

Registration number:	(Registration number : 2013/029173/07)
Registered address:	3138B CRANE STREET THATCHFIELD HILLS CENTURION 00157
Postal address:	3138B CRANE STREET THATCHFIELD HILLS CENTURION 0157
Directors':	MV LUKHELE
Accountants	F MORATHI CHARTERED ACCOUNTANTS
Bankers:	FNB

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SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD**STATEMENT OF DIRECTORS' RESPONSIBILITIES
for the year ended 28 February 2024**

The directors' are responsible for the preparation, integrity and fair presentation of the financial statements of SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD. The financial statements presented on pages 3 to 20 have been prepared in accordance with International Financial Reporting Standards (IFRS's).

The directors' are also responsible for the company's system of internal financial control. These are designed to provide reasonable, but not absolute, assurance as to the reliability of the financial statements.

The going concern basis has been adopted in preparing the financial statements. The directors' have no reason to believe that the company will not be a going concern in the foreseeable future based on forecasts and available cash resources.

The financial statements have been prepared by the independent accountants, F Morathi Chartered Accountantss, which was given unrestricted access to all financial records and related data, including minutes of all meetings of directors and the board of directors'.

The independent accounting report of F Morathi Chartered Accountantss is presented on page 2.

The financial statements were approved by the Directors on 13 March 2024 and are signed on its behalf.



MV LUKHELE
Director

**INDEPENDENT AUDITOR'S REPORT TO THE DIRECTORS OF SITHEMBE
TRANSPORTATION AND PROJECTS (PTY) LTD**

Report on the Audit of the Financial Statements

Opinion

We have audited the financial statements of **SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD** which comprise the statement of financial position as at 28 February 2024, the statements of financial performance, statement of changes in equity, the statements of cash flows for the year then ended and notes to the financial statements, including a summary of significant accounting policies.

In our opinion, the accompanying financial statements present fairly, in all material respects the financial position of **SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD** as at 28 February 2024 and of its financial performance and its cash flows for the year then ended in accordance with international Financial Reporting Standards (IFRSs)

Basic Opinion

We conducted our audit in accordance with International Standards on Auditing (ISAs). Our responsibilities under those standards are further described in the Auditor's Responsibilities for the Audit of the Financial Statements section of our report. We are independent of the company in accordance with the ethical requirements that are relevant to our audit of the financial statements and we have fulfilled our other ethical responsibilities in accordance with these requirements. We believe that the audit evidence we have obtained is sufficient and appropriate to provide a basis for our opinion.

Responsibilities of management and Those Charged with Governance of the Financial Statements

Management is responsible for the preparation of these financial statements in accordance with the International Financial Reporting Standards (IFRSs), and for such internal control as management determines necessary to enable the preparation of financial statements that are free from material misstatements whether due to fraud or error.

In preparing the financial statements, management is responsible for assessing the company's ability to continue as a going concern, disclosing as applicable, the matters related to going concern and using the going concern basis of accounting unless management either intends to liquidate the Company or to cease operations, or has no realistic alternative but to do so.

Those charged with governance are responsible for overseeing the Company's financial reporting process.

Auditor's Responsibility

Our objectives are to obtain reasonable assurance about whether the financial statements as a whole are free from material misstatements, whether due to fraud or error. Our responsibility is to express an opinion on these financial statements based on our audit. We conducted our audit in accordance with International Standards on Auditing. Those standards require that we comply with ethical requirements and plan and perform the audit to obtain reasonable assurance whether the financial statements are free from material misstatement.

An audit involves performing procedures to obtain audit evidence about the amounts and disclosures in the financial statements. The procedures selected depend on the auditor's judgement, including the assessment of the risks of material misstatement of the financial statements, whether due to fraud or error. In making those risk assessments, the auditor considers internal control relevant to the entity's preparation and fair presentation of the financial statements in order to design audit procedures that are appropriate in the circumstances, but not for the purpose of expressing an opinion on the effectiveness of the entity's internal control. An audit also includes evaluating the appropriateness of accounting policies used and the reasonableness of accounting estimates made by the directors, as well as evaluating the overall presentation of the financial statements.

We believe that the audit evidence we have obtained is sufficient and appropriate to provide a basis for our audit opinion.

F MORATHI INC
F MORATHI CHARTERED ACCOUNTANTS
Chartered Accountants (SA)
Registered Auditors
Polokwane
15 March 2024

DIRECTORS' REPORT
for the year ended 28 February 2024

1. Nature of business

The company's is a multidisciplinary organisation providing construction services, project management and transportation services to private sector and local government authorities including district municipalities and councils.

2. Business activities

	2024 R	2023 R
Revenue	45,253,623	49,125,365
Operating profit/(loss)	7,225,752	7,114,895
Profit/(loss) for the year	5,202,542	5,122,724
Total assets	48,611,063	44,902,906
Total liabilities	4,023,207	5,517,592

Directors Contribution

There were no changes to the directors contribution of the company's during the year.

3. Financial objectives and performance against profit forecasts

Financial performance for the current year is in line with the business plan and management's expectations.

4. Directors Interest

In view of the need to retain working capital for an increased in anticipated future revenue and resulting levels of accounts receivable, no directors interest has been declared nor is any recommended.

5. Events subsequent to balance sheet date

The directors' are not aware of any matter or circumstance arising since the end of the financial year not otherwise dealt with in the annual financial statements, that would affect the operations of the company or the results of those operations.

6. Directors and secretary

The following is the sole director of the company:
MV LUKHELE

The company has not appointed a secretary.

7. Accountants

F Morathi Chartered Accountants were the company's accountants during the year and will continue in office in accordance with Section 62 of the Company's Act 2008, as amended.

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD
INCOME STATEMENT
for the year ended 28 February 2024

	NOTES	2024 R	2023 R
Revenue		45,253,623	49,125,365
Less: Depreciation expense	5	1,516,443	1,517,065
Employee benefits expense	1	5,357,106	5,582,800
Other operating expenses		31,154,322	34,910,605
Operating profit/(loss)		7,225,752	7,114,895
Investment revenues	2	-	-
Interest on finance cost	2	-	-
Profit/(loss) before tax		7,225,752	7,114,895
Income tax expense	3	(2,023,211)	(1,992,171)
Profit/(loss) for the year	4	5,202,542	5,122,724

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

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BALANCE SHEET at 28 February 2024

	NOTES	2024 R	2023 R
ASSETS			
<i>Non-current assets</i>			
Land and Building		5,200,000	-
Loan to director		5,003,677	10,223,724
Property, plant and equipment	5	2,581,654	4,098,098
		<u>12,785,331</u>	<u>14,321,822</u>
<i>Current assets</i>			
Trade and other receivables	7	35,625,478	30,215,232
Inventory		-	-
Cash and cash equivalents	8	200,254	365,852
Current tax assets	9	-	-
		<u>35,825,732</u>	<u>30,581,084</u>
Total assets		<u>48,611,063</u>	<u>44,902,906</u>
EQUITY AND LIABILITIES			
<i>Capital and reserves</i>			
Shareholders Contribution	10	100	100
Retained earnings		44,587,756	39,385,214
		<u>44,587,856</u>	<u>39,385,314</u>
<i>Non Current liabilities</i>			
Long term borrowings	14	474,571	1,999,996
		<u>474,571</u>	<u>1,999,996</u>
<i>Current liabilities</i>			
Trade and other payables	11	-	-
Income tax payable		2,023,211	1,992,171
Bank Overdraft	8	-	-
Current portion of long term borrowings		1,525,425	1,525,425
Loan from Director		-	-
		<u>3,548,636</u>	<u>3,517,596</u>
Total equity and liabilities		<u>48,611,063</u>	<u>44,902,906</u>

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

STATEMENT OF CHANGES IN EQUITY for the year ended 28 February 2024

	Shareholders Contribution R	Retained earnings R	Total R
Balance at 1 March 2021	100	34,262,490	34,262,590
Net profit	-	5,122,724	5,122,724
Balance at 28 February 2022	100	39,385,214	39,385,314
Balance at 1 March 2022	100	39,385,214	39,385,314
Net profit/(loss)	-	5,202,542	5,202,542
Balance at 29 February 2024	100	44,587,756	44,587,856

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

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CASH FLOW STATEMENT for the year ended 28 February 2024

	NOTES	2024 R	2023 R
Operating activities			
Profit for the year		5,202,542	5,122,724
Adjustments for:			
Depreciation of property, plant and equipment	5	1,516,443	1,517,065
Income tax expense	3	2,023,211	1,992,171
Interest expenses	2	-	-
Investment revenues	2	-	-
Operating cash flows before movements in working capital		8,742,196	8,631,960
(Increase)/Decrease in inventory		-	-
(Increase)/Decrease in receivables		(5,410,246)	(10,091,607)
Increase/(decrease) in payables		-	-
Cash generated from operations		3,331,950	(1,459,647)
Income taxes paid		(1,992,171)	(2,400,702)
Net cash from operating activities		1,339,779	(3,860,349)
Investing activities			
Interest received	2	-	-
Investments disposed of	6	-	-
Additions on property, plant and equipment		-	-
Net cash used in investing activities		-	-
Financing activities			
Loans from shareholder		20,048	(284,962)
Directors contribution		-	-
Proceeds from long term borrowings		(1,525,425)	3,525,421
Net cash used in financing activities		(1,505,377)	3,240,459
Net increase in cash and cash equivalents		(165,598)	(619,890)
Cash and cash equivalents at the beginning of the year	8	365,852	985,742
Cash and cash equivalents at the end of the year	8	200,254	365,852

SUMMARY OF ACCOUNTING POLICIES
for the year ended 28 February 2024

1. ADOPTION OF NEW AND REVISED INTERNATIONAL FINANCIAL REPORTING STANDARDS

In the current year, the Company's has adopted all of the new and revised Standards and Interpretations issued by the International Accounting Standards Board (IASB) and the International Financial Reporting Interpretations Committee (IFRIC) of the IASB that are relevant to its operations and effective from accounting periods beginning on 1 March 2004.

2. BASIS OF PREPARATION

The financial statements have been prepared in accordance with International Financial Reporting Standards. The financial statements have been prepared on the historical cost basis, except for the revaluation of certain financial instruments. The principal accounting policies are set out below.

3. REVENUE RECOGNITION

Revenue is measured at the fair value of the consideration received or receivable and comprises the invoiced value of fees rendered in respect of management, financial and technical services, net of value-added tax and discounts.

Interest income is accrued on a time basis, by reference to the principal outstanding and at the effective interest rate applicable, which is the rate that exactly discounts estimated future cash receipts through the expected life of the financial asset to the asset's net carrying amount.

4. BORROWING COSTS

Borrowing costs are recognised in profit or loss in the period in which they are incurred.

5. EMPLOYEE BENEFITS

Termination benefits

Termination benefits are payable whenever an employee's employment is terminated before the normal retirement date or whenever an employee accepts voluntary redundancy in exchange for these benefits. The Company's recognises termination benefits when it is demonstrably committed to terminate the employment of current employees according to a detailed formal plan without the possibility of withdrawal.

6. TAXATION

Income tax expense represents the sum of the tax currently payable and deferred tax.

The tax currently payable is based on the taxable profit for the year. Taxable profit differs from profit as reported in the income statement because it excludes items of income or expense that are taxable or deductible in other years and it further excludes items that are never taxable or deductible. The Company's 's liability for current tax is calculated using tax rates that have been enacted or substantively enacted by the balance sheet date.

SUMMARY OF ACCOUNTING POLICIES (Continued)
for the year ended 28 February 2024

6. TAXATION (Continued)

Deferred tax is recognised on differences between the carrying amounts of assets and liabilities in the financial statements and the corresponding tax bases used in the computation of taxable profit, and is accounted for using the balance sheet liability method. Deferred tax liabilities are generally recognised for all taxable temporary differences and deferred tax assets are recognised to the extent that it is probable that the taxable profit will be available against which deductible temporary differences can be utilised. Such assets and liabilities are not recognised if the temporary difference arises from goodwill or from initial recognition (other than in a business combination) of assets and liabilities in a transaction that affects neither the taxable profit nor the accounting profit.

The carrying amount of deferred tax assets is reviewed at each balance sheet date and reduced to the extent that it is no longer probable that sufficient taxable profits will be available to allow all or part of the asset to be recovered.

Deferred tax is calculated at the tax rates that are expected to apply in the period when the liability is settled or the asset realised. Deferred tax is charged or credited to profit or loss, except when it relates to items charged or credited directly to equity, in which case the deferred tax is also dealt with in equity.

Deferred tax assets and liabilities are offset when there is a legally enforceable right to set off current tax assets against current tax liabilities and when they relate to income taxes levied by the same taxation authority and the Company's intends to settle its current tax assets and liabilities on a net basis.

7. PROPERTY, PLANT AND EQUIPMENT

Computer equipment are stated at cost less accumulated depreciation and any accumulated impairment losses.

Depreciation is charged so as to write off the cost or valuation of assets over their estimated useful lives, using the straight-line method.

The gain or loss arising on the disposal or retirement of an item of property, plant and equipment is determined as the difference between the sales proceeds and the carrying amount of the asset and is recognised in profit or loss.

Repairs and maintenance are charged to the income statement during the financial period in which they incurred. The cost of major renovations is included in the carrying amount of the assets when it is probable that further economic benefits in excess of the originally assessed standard of performance of the existing assets will flow to the Company's. Major renovations are depreciated over the remaining useful life of the related assets.

8. FINANCIAL INSTRUMENTS

Financial assets and financial liabilities are recognised on the Company's balance sheet when the Company's becomes a party to the contractual provisions of the instrument.

Trade receivables

Trade receivables are measured at initial recognition at fair value, and are subsequently measured at amortised cost using the effective interest rate method. Appropriate allowances for estimated irrecoverable amounts are recognised in profit or loss when there is objective evidence that the asset is impaired. The allowance recognised is measured as the difference between the assets's carrying amount and present value of estimated future cash flows discounted at the effective interest rate computed at the initial recognition.

Investments

Investments are recognised and derecognised on a trade date basis where the purchase or sale of an investment is under a contract whose terms require delivery of the investment within the timeframe established by the market concerned, and are initially measured at fair value, plus directly attributable transaction costs.

SUMMARY OF ACCOUNTING POLICIES (Continued)
for the year ended 28 February 2024

8. FINANCIAL INSTRUMENTS (Continued)Investments (Continued)

At subsequent reporting dates, debt securities that the Company's has the expressed intention and ability to hold to maturity (held-to-maturity debt securities) are measured at amortised cost using the effective interest rate method, less any impairment loss recognised to reflect irrecoverable amounts. An impairment loss is recognised to reflect irrecoverable amounts. An impairment loss is recognised in profit or loss when there is objective evidence that the asset is impaired, and is measured as the difference between the investment carrying amount and the present value of estimated future cash flows discounted at the effective interest rate computed at initial recognition. Impairment losses are reversed in subsequent periods when an increase in the investment's recoverable amount can be related objectively to an event occurring after the impairment was recognised, subject to the restriction that the carrying amount of the investment at the date the impairment is reversed shall not exceed what amortised cost would have been had the impairment not been.

Non-current investments excluding marketable securities are shown at fair value and adjustments are made only where, in the opinion of the Directors', the investment is impaired. Where an investment has been impaired, it is recognised as an expense in the period in which the impairment is identified.

On disposal of an investment, the difference between the net disposal proceeds and the carrying amount is charged or credited to the income statement.

Cash and cash equivalents

Cash and cash equivalents comprise cash on hand and deposits held at call with banks.

Financial liabilities and equity

Financial liabilities and equity instruments issued by the Company's are classified according to the substance of the contractual arrangements entered into and the definitions of a financial liability and an equity instrument. An equity instrument is any contract that evidences a residual interest in the assets of the Company's after deducting all of its liabilities. The accounting policies adopted for a specific financial liabilities and equity instruments are set out below.

Bank borrowings

Interest-bearing bank overdrafts are initially measured at fair value, and are subsequently measured at amortised cost, using the effective interest rate method. Any difference between the proceeds (net of transaction costs) and the settlement or redemption of borrowings is recognised over the term of the borrowings in accordance with the Company's's accounting policy for borrowing costs (See above).

Trade payables

Trade payables are initially measured at fair value, and are subsequently measured at amortised cost, using the effective interest rate method.

Equity instruments

Equity instruments issued by the Company's are recorded at the proceeds received, net of direct issue costs.

Derivative financial instruments

The Company's activities expose it primarily to the financial risks of changes in interest rates.

The significant interest rate risk arises from bank loans.

SUMMARY OF ACCOUNTING POLICIES (Continued)
for the year ended 28 February 2024

9. PROVISIONS

Provisions are recognised when the Company's has a present legal or constructive obligation as a result of a past event, when it is probable that an outflow of resources embodying economic benefits will be required to settle the obligation, and when a reliable estimate of the amount of the obligation can be made.

Provisions are measured at the Directors' best estimate of the expenditure required to settle the obligation at the balance sheet date, and are discounted to present value where the effect is material.

10. COMPARATIVES

Where necessary, comparative figures have been adjusted to conform with changes in presentation in the current year.

FINANCIAL RISK MANAGEMENT
for the year ended 28 February 2024

1. FINANCIAL RISK FACTORS

The company's activities expose it to a variety of financial risks, including the effects of changes in foreign currency exchange rates and interest rates. The Company's overall risk management programme focuses on the unpredictability of financial markets and seeks to minimise potential adverse effects of the financial performance of the company.

Interest rate risk

The company's income and operating cash flows are substantially independent of changes in market interest rates. The Company's has no significant interest-bearing assets. The Company's borrows at variable rates. The Company's does not hedge against future interest rate fluctuations.

Credit risk

The company's has no significant concentrations of credit risk. The company has policies in place to ensure that sales of services are made to customers with an appropriate credit history. Cash transactions are limited to high quality financial institutions.

Liquidity risk

Prudent liquidity risk management implies maintaining sufficient cash, the availability of funding through an adequate amount of committed credit facilities. Due to the dynamic nature of underlying businesses, the Company's aims at maintaining flexibility in funding by keeping committed credit lines available.

NOTES TO THE ANNUAL FINANCIAL STATEMENTS
for the year ended 28 February 2024

	2024 R	2023 R
1. EMPLOYEE BENEFITS		
Group scheme - risk benefits	-	-
Non-contributory retirement fund costs - defined contribution plan	-	-
Salaries	5,357,106	5,582,800
Skills development levies	-	-
Social security costs	-	-
	<u>5,357,106</u>	<u>5,582,800</u>
Average monthly number of persons employed by the Company's during the year:		
Full time	<u>8</u>	<u>8</u>
2. INVESTMENT REVENUES		
Interest on bank deposits	<u>-</u>	<u>-</u>
Interest expense		
Interest on bank overdrafts and loans	<u>-</u>	<u>-</u>
	<u>-</u>	<u>-</u>
Net finance costs	<u>-</u>	<u>-</u>
3. INCOME TAX EXPENSE		
Current tax	<u>2,023,211</u>	<u>1,992,171</u>
Domestic income tax is calculated at 28% (2022: 28%) of the estimated assessable profit for the year.		
The total charge for the year can be reconciled to the accounting profit as follows:		
Profit/(loss) before tax	<u>7,225,752</u>	<u>7,114,895</u>
Tax at the domestic income tax rate of 28% (2022: 28%)	<u>2,023,211</u>	<u>1,992,171</u>
Tax effect of loss subject to assessment	<u>-</u>	<u>-</u>
Tax expense for the year	<u>2,023,211</u>	<u>1,992,171</u>
Effective tax rate for the year	<u>28.0%</u>	<u>28.0%</u>
4. PROFIT/(LOSS) FOR THE YEAR		
Profit/(loss) for the year has been arrived at after charging/(crediting):		
Accountant's Fees	<u>250,032</u>	<u>270,500</u>
Depreciation of property, plant and equipment (see note 5)	<u>1,516,443</u>	<u>1,517,065</u>

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD
NOTES TO THE ANNUAL FINANCIAL STATEMENTS (Continued)
for the year ended 28 February 2024

			2024 R	2023 R
4. PROFIT/(LOSS) FOR THE YEAR (Continued)				
Employee benefits expense (see note 1)			5,357,106	5,582,800
Operating lease rentals Office Space			-	-
5. PROPERTY, PLANT AND EQUIPMENT				
	Vehicles R	Equipment & Furniture R	Computer equipment R	Total R
Cost or valuation				
At 28 February 2022	7,230,207	2,100,000	22,778	9,352,985
Additions for 2024 year				
At cost	-	-	-	-
Disposals	-	-	-	-
	7,230,207	2,100,000	22,778	9,352,985
Accumulated depreciation and impairment				
At 1 March 2022	5,092,512	140,000	22,376	5,254,888
Depreciation charge for the year	1,446,041	70,000	402	1,516,443
At 28 February 2024	6,538,553	210,000	22,778	6,771,331
Carrying amount				
At 28 February 2022	2,137,696	1,960,000	402	4,098,098
At 28 February 2024	691,654	1,890,000	0	2,581,654
The following rates are used for the depreciation of property, plant and equipment:				
Office Furniture	5 Years			
Vehicles	5 Years			
Computer equipment	10 Years			
6. OTHER INVESTMENTS			2024 R	2023 R
Unlisted				
Shares at cost			-	-

NOTES TO THE ANNUAL FINANCIAL STATEMENTS (Continued)
for the year ended 28 February 2024

	2024 R	2023 R
7. TRADE AND OTHER RECEIVABLES		
Trade receivables	35,625,478	30,215,232
The directors' consider that the carrying amount of trade and other receivables approximates their fair value.		
Interest is charged on trade receivables at the discretion of the Directors'. Where interest is charged, it is levied at rates linked to the company's borrowing rates.		
Credit risk		
The company's principal financial assets are bank balances and cash, trade and other receivables and investments.		
The credit risk on liquid funds is limited because the counterparties are banks with high credit-ratings assigned by international credit-rating agencies.		
The company's credit risk is primarily attributable to its trade and other receivables. The amounts presented in the balance sheet are net of allowances for doubtful receivables. An allowance for impairment is made where there is an identified loss event		
The company has no significant concentration of credit risk, with exposure spread over a large number of clients.		
8. CASH AND CASH EQUIVALENTS		
Cash at bank and in hand	200,254	365,852
	200,254	365,852
Bank balances and cash comprise cash held by the company and short-term bank deposits with an original maturity of 3 months or less. The carrying amounts of these assets approximate their fair value.		
For the purposes of the cash flow statement, the year-end cash and cash equivalents comprise the following:		
Cash and bank balances	200,254	365,852
Bank overdrafts	-	-
	200,254	365,852
9. CURRENT TAX ASSETS		
South African Revenue Service - VAT	-	-
	-	-

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

NOTES TO THE ANNUAL FINANCIAL STATEMENTS (Continued)
for the year ended 28 February 2024

	2024 R	2023 R
10. Shareholders Contribution		
<i>Issued</i>		
Shareholders' Interest	100	100
11. TRADE AND OTHER PAYABLES		
Trade payables	-	-
Accrued expenses and other payables	-	-
	-	-
Trade creditors and accruals principally comprise amounts outstanding for project purchases, paycosts and ongoing costs.		
The Directors' consider that the carrying amount of trade payables approximates their fair value.		
12. Loan from Director		
Director's loan is unsecured and no interest is charged.		
<i>Long term</i>		
Loans from Director	-	-
<i>Current</i>		
Less: Instalments payable	-	-
	-	-
13. Loan to Director		
Director's loan is unsecured and no interest is charged.		
<i>Long term</i>		
Loans to Director	5,003,677	10,223,724
<i>Current</i>		
Unsecured loans during the year.	-	-
	5,003,677	10,223,724
14. LONG TERM LIABILITY		
Long term liability	1,999,996	3,525,421
Less: Instalments payable within one year transferred to current liabilities	1,525,425	1,525,425
	474,571	1,999,996

NOTES TO THE ANNUAL FINANCIAL STATEMENTS (Continued)
for the year ended 28 February 2024

	2024 R	2023 R
15 DIRECTORS REMUNERATION		
<i>Directors' remuneration</i>		
Fringe benefits	-	-
Retirement fund contributions - defined benefit plan	-	-
Salaries	2,758,543	2,996,958
	2,758,543	2,996,958

**ANNEXURES TO THE ANNUAL FINANCIAL STATEMENTS
for the year ended 28 February 2024**

THESE ANNEXURES DO NOT FORM PART OF THE FINANCIAL STATEMENTS AND THUS WERE NOT AUDITED

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SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

DETAILED INCOME STATEMENT for the year ended 28 February 2024

	2024 R	2023 R
INCOME		
Revenue (excluding VAT)	45,253,623	49,125,365
	45,253,623	49,125,365
EXPENSES		
Depreciation of property, plant and equipment	1,516,443	1,517,065
Employee benefits	5,357,106	5,582,800
Cost of staff	2,598,563	2,585,842
Directors' remuneration	2,758,543	2,996,958
Other operating expenses	31,154,322	34,910,605
Accounting Fees	250,032	270,500
Advertisements	152,362	-
Bank Charges	64,525	65,251
Cleaning & Hygiene	25,425	-
Levies	-	-
Consumable Materials	13,625,453	14,758,423
Gardening and Landscaping Costs	4,523,625	5,442,514
Interest on Overdraft	-	-
Insurance	75,253	72,514
Management Fees	-	-
Motor Vehicle Expenses	-	-
Postage and Packaging	45,636	36,254
Printing & Stationery	40,251	41,254
Plant Hire	5,563,625	6,636,254
Rent, Water and Lights Paid	329,654	299,685
Repair and Maintenance	125,362	-
Staff Training	-	-
Stipends	-	-
Sub Contractors Fees	4,236,251	4,525,142
Subscriptions & Directorship	-	-
Telephone, Cell phone and Fax	70,253	78,558
Transport Costs	1,526,362	1,999,005
Professional Consultation Fees	500,253	685,251
Workman's Compensation	-	-
	38,027,871	40,493,405
Operating profit/(loss)	7,225,752	7,114,895
Investment revenues	-	-
Interest on finance charges	-	-
Profit/(loss) before tax	7,225,752	7,114,895
Income tax expense	(2,023,211)	(1,992,171)
Profit/(loss) for the year	5,202,542	5,122,724

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD
(Registration number : 2013/029173/07)

MEMORANDUM OF TAXABLE INCOME
for the year ended 28 February 2024

	2024 R
Profit before tax	7,225,752
Less: Loss subject to assessment brought forward	-
Loss subject to assessment carried forward	7,225,752
Tax thereon @ 28%	2,023,210.64
Less: Provisional tax payments	-
First provisional payment	-
Second provisional payment	-
Tax payable to the South African Revenue Service as at 28 February 2024	2,023,210.64

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD
Incorporated in the Republic of South Africa
(Registration number : 2013/029173/07)

FINANCIAL STATEMENTS
for the year ended 28 February 2023

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

FINANCIAL STATEMENTS for the year ended 28 February 2023

Company's INFORMATION

Registration number:	(Registration number : 2013/029173/07)
Registered address:	3138B CRANE STREET THATCHFIELD HILLS CENTURION 00157
Postal address:	3138B CRANE STREET THATCHFIELD HILLS CENTURION 0157
Directors':	MV LUKHELE
Accountants	F MORATHI CHARTERED ACCOUNTANTS
Bankers:	FNB

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SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

STATEMENT OF DIRECTORS' RESPONSIBILITIES for the year ended 28 February 2022

The directors are responsible for the preparation, integrity and fair presentation of the financial statements of SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD. The financial statements presented on pages 3 to 20 have been prepared in accordance with International Financial Reporting Standards (IFRS's).

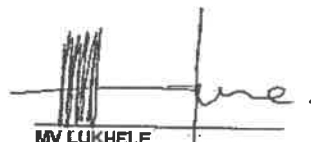
The directors are also responsible for the company's system of internal financial control. These are designed to provide reasonable, but not absolute, assurance as to the reliability of the financial statements.

The going concern basis has been adopted in preparing the financial statements. The directors have no reason to believe that the company will not be a going concern in the foreseeable future based on forecasts and available cash resources.

The financial statements have been prepared by the independent accountants, F Morathi Chartered Accountants, which was given unrestricted access to all financial records and related data, including minutes of all meetings of directors and the board of directors.

The independent accounting report of F Morathi Chartered Accountants is presented on page 2.

The financial statements were approved by the Directors on 23 March 2022 and are signed on its behalf.



MV LUKHELE
Director

**INDEPENDENT AUDITOR'S REPORT TO THE DIRECTORS OF SITHEMBE
TRANSPORTATION AND PROJECTS (PTY) LTD**

Report on the Audit of the Financial Statements

Opinion

We have audited the financial statements of **SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD** which comprise the statement of financial position as at 28 February 2023, the statements of financial performance, statement of changes in equity, the statements of cash flows for the year then ended and notes to the financial statements, including a summary of significant accounting policies.

In our opinion, the accompanying financial statements present fairly, in all material respects the financial position of **SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD** as at 28 February 2023 and of its financial performance and its cash flows for the year then ended in accordance with international Financial Reporting Standards (IFRSs)

Basic Opinion

We conducted our audit in accordance with International Standards on Auditing (ISAs). Our responsibilities under those standards are further described in the Auditor's Responsibilities for the Audit of the Financial Statements section of our report. We are independent of the company in accordance with the ethical requirements that are relevant to our audit of the financial statements and we have fulfilled our other ethical responsibilities in accordance with these requirements. We believe that the audit evidence we have obtained is sufficient and appropriate to provide a basis for our opinion.

Responsibilities of management and Those Charged with Governance of the Financial Statements

Management is responsible for the preparation of these financial statements in accordance with the International Financial Reporting Standards (IFRSs), and for such internal control as management determines necessary to enable the preparation of financial statements that are free from material misstatements whether due to fraud or error.

In preparing the financial statements, management is responsible for assessing the company's ability to continue as a going concern, disclosing as applicable, the matters related to going concern and using the going concern basis of accounting unless management either intends to liquidate the Company or to cease operations, or has no realistic alternative but to do so.

Those charged with governance are responsible for overseeing the Company's financial reporting process.

Auditor's Responsibility

Our objectives are to obtain reasonable assurance about whether the financial statements as a whole are free from material misstatements, whether due to fraud or error. Our responsibility is to express an opinion on these financial statements based on our audit. We conducted our audit in accordance with International Standards on Auditing. Those standards require that we comply with ethical requirements and plan and perform the audit to obtain reasonable assurance whether the financial statements are free from material misstatement.

An audit involves performing procedures to obtain audit evidence about the amounts and disclosures in the financial statements. The procedures selected depend on the auditor's judgement, including the assessment of the risks of material misstatement of the financial statements, whether due to fraud or error. In making those risk assessments, the auditor considers internal control relevant to the entity's preparation and fair presentation of the financial statements in order to design audit procedures that are appropriate in the circumstances, but not for the purpose of expressing an opinion on the effectiveness of the entity's internal control. An audit also includes evaluating the appropriateness of accounting policies used and the reasonableness of accounting estimates made by the directors, as well as evaluating the overall presentation of the financial statements.

We believe that the audit evidence we have obtained is sufficient and appropriate to provide a basis for our audit opinion.

F MORATHI INC WDS
F MORATHI CHARTERED ACCOUNTANTS
Chartered Accountants (SA)
Registered Auditors
Polokwane
15 March 2023

DIRECTORS' REPORT

for the year ended 28 February 2023

1. Nature of business

The company's is a multidisciplinary organisation providing construction services, project management and transportation services to private sector and local government authorities including district municipalities and councils.

2. Business activities

	2023 R	2022 R
Revenue	49,125,365	48,958,745
Operating profit/(loss)	7,114,895	8,573,936
Profit/(loss) for the year	5,122,724	6,173,234
Total assets	44,902,906	36,663,292
Total liabilities	5,517,592	2,400,702

Directors Contribution

There were no changes to the directors contribution of the company's during the year.

3. Financial objectives and performance against profit forecasts

Financial performance for the current year is in line with the business plan and management's expectations.

4. Directors Interest

In view of the need to retain working capital for an increased in anticipated future revenue and resulting levels of accounts receivable, no directors interest has been declared nor is any recommended.

5. Events subsequent to balance sheet date

The directors' are not aware of any matter or circumstance arising since the end of the financial year not otherwise dealt with in the annual financial statements, that would affect the operations of the company or the results of those operations.

6. Directors and secretary

The following is the sole director of the company:
MV LUKHELE

The company has not appointed a secretary.

7. Accountants

F Morathi Chartered Accountants were the company's accountants during the year and will continue in office in accordance with Section 62 of the Company's Act 2008, as amended.

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD
INCOME STATEMENT
for the year ended 28 February 2023

	NOTES	2023 R	2022 R
Revenue		49,125,365	48,958,745
Less: Depreciation expense	5	1,517,065	1,518,319
Employee benefits expense	1	5,582,800	5,533,062
Other operating expenses		34,910,605	33,333,428
Operating profit/(loss)		7,114,895	8,573,936
Investment revenues	2	-	-
Interest on finance cost	2	-	-
Profit/(loss) before tax		7,114,895	8,573,936
Income tax expense	3	(1,992,171)	(2,400,702)
Profit/(loss) for the year	4	5,122,724	6,173,234

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD
BALANCE SHEET
at 28 February 2023

	NOTES	2023 R	2022 R
ASSETS			
<i>Non-current assets</i>			
Land and Building		-	-
Loan to director		10,223,725	9,938,762
Property, plant and equipment	5	4,098,097	5,615,163
		<u>14,321,822</u>	<u>15,553,925</u>
<i>Current assets</i>			
Trade and other receivables	7	30,215,232	20,123,625
Inventory		-	-
Cash and cash equivalents	8	365,852	985,742
Current tax assets	9	-	-
		<u>30,581,084</u>	<u>21,109,367</u>
Total assets		<u>44,902,906</u>	<u>36,663,292</u>
EQUITY AND LIABILITIES			
<i>Capital and reserves</i>			
Shareholders Contribution	10	100	100
Retained earnings		39,385,214	34,262,490
		<u>39,385,314</u>	<u>34,262,590</u>
<i>Non Current liabilities</i>			
Long term borrowings	14	1,999,996	-
		<u>1,999,996</u>	<u>-</u>
<i>Current liabilities</i>			
Trade and other payables	11	-	-
Income tax payable		1,992,171	2,400,702
Bank Overdraft	8	-	-
Current portion of long term borrowings		1,525,425	-
Loan from Director		-	-
		<u>3,517,596</u>	<u>2,400,702</u>
Total equity and liabilities		<u>44,902,906</u>	<u>36,663,292</u>

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

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STATEMENT OF CHANGES IN EQUITY for the year ended 28 February 2023

	Shareholders Contribution R	Retained earnings R	Total R
Balance at 1 March 2021	100	28,089,256	28,089,356
Net profit	-	6,173,234	6,173,234
Balance at 28 February 2022	100	34,262,490	34,262,590
Balance at 1 March 2022	100	34,262,490	34,262,590
Net profit/(loss)	-	5,122,724	5,122,724
Balance at 29 February 2023	100	39,385,214	39,385,314

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

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CASH FLOW STATEMENT
for the year ended 28 February 2023

	NOTES	2023 R	2022 R
Operating activities			
Profit for the year		5,122,724	6,173,234
Adjustments for:			
Depreciation of property, plant and equipment	5	1,517,065	1,518,319
Income tax expense	3	1,992,171	2,400,702
Interest expenses	2	-	-
Investment revenues	2	-	-
Operating cash flows before movements in working capital		8,631,960	10,092,255
(Increase)/Decrease in inventory		-	-
(Increase)/Decrease in receivables		(10,091,607)	2,553,941
Increase/(decrease) in payables		-	-
Cash generated from operations		(1,459,647)	12,646,196
Income taxes paid		(2,400,702)	(2,157,946)
Net cash from operating activities		(3,860,349)	10,488,250
Investing activities			
Interest received	2	-	-
Investments disposed of	6	-	-
Additions on property, plant and equipment		-	(2,100,000)
Net cash used in investing activities		-	(2,100,000)
Financing activities			
Loans from shareholder		(284,962)	(9,938,762)
Directors contribution		-	-
Proceeds from long term borrowings		3,525,421	-
Net cash used in financing activities		3,240,459	(9,938,762)
Net increase in cash and cash equivalents		(619,890)	(1,550,512)
Cash and cash equivalents at the beginning of the year	8	985,742	2,536,254
Cash and cash equivalents at the end of the year	8	365,852	985,742

SUMMARY OF ACCOUNTING POLICIES
for the year ended 28 February 2023

1. ADOPTION OF NEW AND REVISED INTERNATIONAL FINANCIAL REPORTING STANDARDS

In the current year, the Company's has adopted all of the new and revised Standards and Interpretations issued by the International Accounting Standards Board (IASB) and the International Financial Reporting Interpretations Committee (IFRIC) of the IASB that are relevant to its operations and effective from accounting periods beginning on 1 March 2004.

2. BASIS OF PREPARATION

The financial statements have been prepared in accordance with International Financial Reporting Standards. The financial statements have been prepared on the historical cost basis, except for the revaluation of certain financial instruments. The principal accounting policies are set out below.

3. REVENUE RECOGNITION

Revenue is measured at the fair value of the consideration received or receivable and comprises the invoiced value of fees rendered in respect of management, financial and technical services, net of value-added tax and discounts.

Interest income is accrued on a time basis, by reference to the principal outstanding and at the effective interest rate applicable, which is the rate that exactly discounts estimated future cash receipts through the expected life of the financial asset to the asset's net carrying amount.

4. BORROWING COSTS

Borrowing costs are recognised in profit or loss in the period in which they are incurred.

5. EMPLOYEE BENEFITS

Termination benefits

Termination benefits are payable whenever an employee's employment is terminated before the normal retirement date or whenever an employee accepts voluntary redundancy in exchange for these benefits. The Company's recognises termination benefits when it is demonstrably committed to terminate the employment of current employees according to a detailed formal plan without the possibility of withdrawal.

6. TAXATION

Income tax expense represents the sum of the tax currently payable and deferred tax.

The tax currently payable is based on the taxable profit for the year. Taxable profit differs from profit as reported in the income statement because it excludes items of income or expense that are taxable or deductible in other years and it further excludes items that are never taxable or deductible. The Company's 's liability for current tax is calculated using tax rates that have been enacted or substantively enacted by the balance sheet date.

SUMMARY OF ACCOUNTING POLICIES (Continued)
for the year ended 28 February 2023

6. TAXATION (Continued)

Deferred tax is recognised on differences between the carrying amounts of assets and liabilities in the financial statements and the corresponding tax bases used in the computation of taxable profit, and is accounted for using the balance sheet liability method. Deferred tax liabilities are generally recognised for all taxable temporary differences and deferred tax assets are recognised to the extent that it is probable that the taxable profit will be available against which deductible temporary differences can be utilised. Such assets and liabilities are not recognised if the temporary difference arises from goodwill or from initial recognition (other than in a business combination) of assets and liabilities in a transaction that affects neither the taxable profit nor the accounting profit.

The carrying amount of deferred tax assets is reviewed at each balance sheet date and reduced to the extent that it is no longer probable that sufficient taxable profits will be available to allow all or part of the asset to be recovered.

Deferred tax is calculated at the tax rates that are expected to apply in the period when the liability is settled or the asset realised. Deferred tax is charged or credited to profit or loss, except when it relates to items charged or credited directly to equity, in which case the deferred tax is also dealt with in equity.

Deferred tax assets and liabilities are offset when there is a legally enforceable right to set off current tax assets against current tax liabilities and when they relate to income taxes levied by the same taxation authority and the Company's intends to settle its current tax assets and liabilities on a net basis.

7. PROPERTY, PLANT AND EQUIPMENT

Computer equipment are stated at cost less accumulated depreciation and any accumulated impairment losses.

Depreciation is charged so as to write off the cost or valuation of assets over their estimated useful lives, using the straight-line method.

The gain or loss arising on the disposal or retirement of an item of property, plant and equipment is determined as the difference between the sales proceeds and the carrying amount of the asset and is recognised in profit or loss.

Repairs and maintenance are charged to the income statement during the financial period in which they incurred. The cost of major renovations is included in the carrying amount of the assets when it is probable that further economic benefits in excess of the originally assessed standard of performance of the existing assets will flow to the Company's. Major renovations are depreciated over the remaining useful life of the related assets.

8. FINANCIAL INSTRUMENTS

Financial assets and financial liabilities are recognised on the Company's balance sheet when the Company's becomes a party to the contractual provisions of the instrument.

Trade receivables

Trade receivables are measured at initial recognition at fair value, and are subsequently measured at amortised cost using the effective interest rate method. Appropriate allowances for estimated irrecoverable amounts are recognised in profit or loss when there is objective evidence that the asset is impaired. The allowance recognised is measured as the difference between the assets's carrying amount and present value of estimated future cash flows discounted at the effective interest rate computed at the initial recognition.

Investments

Investments are recognised and derecognised on a trade date basis where the purchase or sale of an investment is under a contract whose terms require delivery of the investment within the timeframe established by the market concerned, and are initially measured at fair value, plus directly attributable transaction costs.

SUMMARY OF ACCOUNTING POLICIES (Continued)
for the year ended 28 February 2023

8. FINANCIAL INSTRUMENTS (Continued)Investments (Continued)

At subsequent reporting dates, debt securities that the Company's has the expressed intention and ability to hold to maturity (held-to-maturity debt securities) are measured at amortised cost using the effective interest rate method, less any impairment loss recognised to reflect irrecoverable amounts. An impairment loss is recognised to reflect irrecoverable amounts. An impairment loss is recognised in profit or loss when there is objective evidence that the asset is impaired, and is measured as the difference between the investment carrying amount and the present value of estimated future cash flows discounted at the effective interest rate computed at initial recognition. Impairment losses are reversed in subsequent periods when an increase in the investment's recoverable amount can be related objectively to an event occurring after the impairment was recognised, subject to the restriction that the carrying amount of the investment at the date the impairment is reversed shall not exceed what amortised cost would have been had the impairment not been

Non-current investments excluding marketable securities are shown at fair value and adjustments are made only where, in the opinion of the Directors', the investment is impaired. Where an investment has been impaired, it is recognised as an expense in the period in which the impairment is identified.

On disposal of an investment, the difference between the net disposal proceeds and the carrying amount is charged or credited to the income statement.

Cash and cash equivalents

Cash and cash equivalents comprise cash on hand and deposits held at call with banks.

Financial liabilities and equity

Financial liabilities and equity instruments issued by the Company's are classified according to the substance of the contractual arrangements entered into and the definitions of a financial liability and an equity instrument. An equity instrument is any contract that evidences a residual interest in the assets of the Company's after deducting all of its liabilities. The accounting policies adopted for a specific financial liabilities and equity instruments are set out below.

Bank borrowings

Interest-bearing bank overdrafts are initially measured at fair value, and are subsequently measured at amortised cost, using the effective interest rate method. Any difference between the proceeds (net of transaction costs) and the settlement or redemption of borrowings is recognised over the term of the borrowings in accordance with the Company's's accounting policy for borrowing costs (See above).

Trade payables

Trade payables are initially measured at fair value, and are subsequently measured at amortised cost, using the effective interest rate method.

Equity instruments

Equity instruments issued by the Company's are recorded at the proceeds received, net of direct issue costs.

Derivative financial instruments

The Company's activities expose it primarily to the financial risks of changes in interest rates.

The significant interest rate risk arises from bank loans.

FINANCIAL RISK MANAGEMENT
for the year ended 28 February 2023

1. FINANCIAL RISK FACTORS

The company's activities expose it to a variety of financial risks, including the effects of changes in foreign currency exchange rates and interest rates. The Company's overall risk management programme focuses on the unpredictability of financial markets and seeks to minimise potential adverse effects of the financial performance of the company.

Interest rate risk

The company's income and operating cash flows are substantially independent of changes in market interest rates. The Company's has no significant interest-bearing assets. The Company's borrows at variable rates. The Company's does not hedge against future interest rate fluctuations.

Credit risk

The company's has no significant concentrations of credit risk. The company has policies in place to ensure that sales of services are made to customers with an appropriate credit history. Cash transactions are limited to high quality financial institutions.

Liquidity risk

Prudent liquidity risk management implies maintaining sufficient cash, the availability of funding through an adequate amount of committed credit facilities. Due to the dynamic nature of underlying businesses, the Company's aims at maintaining flexibility in funding by keeping committed credit lines available.

NOTES TO THE ANNUAL FINANCIAL STATEMENTS
for the year ended 28 February 2023

	2023 R	2022 R
1. EMPLOYEE BENEFITS		
Group scheme - risk benefits	-	-
Non-contributory retirement fund costs - defined contribution plan	-	-
Salaries	5,582,800	5,533,062
Skills development levies	-	-
Social security costs	-	-
	<u>5,582,800</u>	<u>5,533,062</u>
Average monthly number of persons employed by the Company's during the year:		
Full time	<u>8</u>	<u>8</u>
2. INVESTMENT REVENUES		
Interest on bank deposits	<u>-</u>	<u>-</u>
Interest expense		
Interest on bank overdrafts and loans	<u>-</u>	<u>-</u>
	<u>-</u>	<u>-</u>
Net finance costs	<u>-</u>	<u>-</u>
3. INCOME TAX EXPENSE		
Current tax	<u>1,992,171</u>	<u>2,400,702</u>
Domestic income tax is calculated at 28% (2022: 28%) of the estimated assessable profit for the year.		
The total charge for the year can be reconciled to the accounting profit as follows:		
Profit/(loss) before tax	<u>7,114,895</u>	<u>8,573,936</u>
Tax at the domestic income tax rate of 28% (2022: 28%)	<u>1,992,171</u>	<u>2,400,702</u>
Tax effect of loss subject to assessment	<u>-</u>	<u>-</u>
Tax expense for the year	<u>1,992,171</u>	<u>2,400,702</u>
Effective tax rate for the year	<u>28.0%</u>	<u>28.0%</u>
4. PROFIT/(LOSS) FOR THE YEAR		
Profit/(loss) for the year has been arrived at after charging/(crediting):		
Accountant's Fees	<u>270,500</u>	<u>260,321</u>
Depreciation of property, plant and equipment (see note 5)	<u>1,517,065</u>	<u>1,518,319</u>

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD
NOTES TO THE ANNUAL FINANCIAL STATEMENTS (Continued)
for the year ended 28 February 2023

			2023 R	2022 R	
4.	PROFIT/(LOSS) FOR THE YEAR (Continued)				
	Employee benefits expense (see note 1)		5,582,800	5,533,062	
	Operating lease rentals				
	Office Space		-	-	
5.	PROPERTY, PLANT AND EQUIPMENT				
		Vehicles R	Equipment & Furniture R	Computer equipment R	Total R
	Cost or valuation				
	At 28 February 2022	7,230,207	2,100,000	22,778	9,352,985
	Additions for 2023 year				
	At cost	-	-	-	-
	Disposals	-	-	-	-
		7,230,207	2,100,000	22,778	9,352,985
	Accumulated depreciation and impairment	-	-	-	-
	At 1 March 2022	3,646,471	70,000	21,352	3,737,823
	Depreciation charge for the year	1,446,041	70,000	1,024	1,517,065
	At 28 February 2023	5,092,512	140,000	22,376	5,254,888
	Carrying amount				
	At 28 February 2022	3,583,737	2,030,000	1,426	5,615,163
	At 28 February 2023	2,137,695	1,960,000	402	4,098,097
	The following rates are used for the depreciation of property, plant and equipment:				
	Office Furniture	5 Years			
	Vehicles	5 Years			
	Computer equipment	10 Years			
6.	OTHER INVESTMENTS		2023 R	2022 R	
	Unlisted				
	Shares at cost		-	-	

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

NOTES TO THE ANNUAL FINANCIAL STATEMENTS (Continued)
for the year ended 28 February 2023

	2023 R	2022 R
7. TRADE AND OTHER RECEIVABLES		
Trade receivables	30,215,232	20,123,625
The directors' consider that the carrying amount of trade and other receivables approximates their fair value. Interest is charged on trade receivables at the discretion of the Directors'. Where interest is charged, it is levied at rates linked to the company's borrowing rates. Credit risk The company's principal financial assets are bank balances and cash, trade and other receivables and investments. The credit risk on liquid funds is limited because the counterparties are banks with high credit-ratings assigned by international credit-rating agencies. The company's credit risk is primarily attributable to its trade and other receivables. The amounts presented in the balance sheet are net of allowances for doubtful receivables. An allowance for impairment is made where there is an identified loss event. The company has no significant concentration of credit risk, with exposure spread over a large number of clients.		
8. CASH AND CASH EQUIVALENTS		
Cash at bank and in hand	365,852	985,742
	365,852	985,742
Bank balances and cash comprise cash held by the company and short-term bank deposits with an original maturity of 3 months or less. The carrying amounts of these assets approximate their fair value. For the purposes of the cash flow statement, the year-end cash and cash equivalents comprise the following:		
Cash and bank balances	365,852	985,742
Bank overdrafts	-	-
	365,852	985,742
9. CURRENT TAX ASSETS		
South African Revenue Service - VAT	-	-
	-	-

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

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NOTES TO THE ANNUAL FINANCIAL STATEMENTS (Continued)
for the year ended 28 February 2023

	2023 R	2022 R
10. Shareholders Contribution		
<i>Issued</i>		
Shareholders' Interest	100	100
11. TRADE AND OTHER PAYABLES		
Trade payables	-	-
Accrued expenses and other payables	-	-
	-	-
Trade creditors and accruals principally comprise amounts outstanding for project purchases, paycosts and ongoing costs.		
The Directors' consider that the carrying amount of trade payables approximates their fair value.		
12. Loan from Director		
Director's loan is unsecured and no interest is charged.		
<i>Long term</i>		
Loans from Director	-	-
<i>Current</i>		
Less: Instalments payable	-	-
	-	-
13. Loan to Director		
Director's loan is unsecured and no interest is charged.		
<i>Long term</i>		
Loans to Director	10,223,725	9,938,762
<i>Current</i>		
Unsecured loans during the year.	-	-
	10,223,725	9,938,762
14. LONG TERM LIABILITY		
Long term liability	3,525,421	-
Less: Instalments payable within one year transferred to current liabilities	1,525,425	-
	1,999,996	-

NOTES TO THE ANNUAL FINANCIAL STATEMENTS (Continued)
for the year ended 28 February 2023

	2023	2022
	R	R
15 DIRECTORS REMUNERATION		
<i>Directors' remuneration</i>		
Fringe benefits	-	-
Retirement fund contributions - defined benefit plan	-	-
Salaries	2,996,958	2,978,541
	<u>2,996,958</u>	<u>2,978,541</u>

**ANNEXURES TO THE ANNUAL FINANCIAL STATEMENTS
for the year ended 28 February 2023**

THESE ANNEXURES DO NOT FORM PART OF THE FINANCIAL STATEMENTS AND THUS WERE NOT AUDITED

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Detailed income statement	19
Memorandum of taxable income	20

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

DETAILED INCOME STATEMENT
for the year ended 28 February 2023

	2023 R	2022 R
INCOME		
Revenue (excluding VAT)	49,125,365	48,958,745
	49,125,365	48,958,745
EXPENSES		
Depreciation of property, plant and equipment	1,517,065	1,518,319
Employee benefits	5,582,800	5,533,062
Cost of staff	2,585,842	2,554,521
Directors' remuneration	2,996,958	2,978,541
Other operating expenses	34,910,605	33,333,428
Accounting Fees	270,500	260,321
Advertisements	-	-
Bank Charges	65,251	55,632
Cleaning & Hygiene	-	-
Levies	-	-
Consumable Materials	14,758,423	13,562,541
Gardening and Landscaping Costs	5,442,514	5,221,412
Interest on Overdraft	-	-
Insurance	72,514	70,325
Management Fees	-	-
Motor Vehicle Expenses	-	-
Postage and Packaging	36,254	35,261
Printing & Stationery	41,254	39,996
Plant Hire	6,636,254	6,598,741
Rent, Water and Lights Paid	299,685	295,000
Repair and Maintenance	-	-
Staff Training	-	-
Stipends	-	-
Sub Contractors Fees	4,525,142	4,452,145
Subscriptions & Directorship	-	-
Telephone, Cell phone and Fax	78,558	75,216
Transport Costs	1,999,005	1,996,587
Professional Consultation Fees	685,251	670,251
Workman's Compensation	-	-
	42,010,470	38,866,490
Operating profit/(loss)	7,114,895	8,573,936
Investment revenues	-	-
Interest on finance charges	-	-
Profit/(loss) before tax	7,114,895	8,573,936
Income tax expense	(1,992,171)	(2,400,702)
Profit/(loss) for the year	5,122,724	6,173,234

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD
(Registration number : 2013/029173/07)

MEMORANDUM OF TAXABLE INCOME
for the year ended 28 February 2023

	2023 R
Profit before tax	7,114,895
Less: Loss subject to assessment brought forward	-
Loss subject to assessment carried forward	7,114,895
Tax thereon @ 28%	1,992,170.54
Less: Provisional tax payments	-
First provisional payment	-
Second provisional payment	-
Tax payable to the South African Revenue Service as at 28 February 2023	1,992,170.54

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD
Incorporated in the Republic of South Africa
(Registration number : 2013/029173/07)

FINANCIAL STATEMENTS
for the year ended 28 February 2022

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

FINANCIAL STATEMENTS for the year ended 28 February 2022

Company's INFORMATION

Registration number:	(Registration number : 2013/029173/07)
Registered address:	3138B CRANE STREET THATCHFIELD HILLS CENTURION 00157
Postal address:	3138B CRANE STREET THATCHFIELD HILLS CENTURION 0157
Directors*:	MV LUKHELE
Accountants	F MORATHI CHARTERED ACCOUNTANTS
Bankers:	FNB

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SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

STATEMENT OF DIRECTORS' RESPONSIBILITIES for the year ended 28 February 2022

The directors are responsible for the preparation, integrity and fair presentation of the financial statements of SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD. The financial statements presented on pages 3 to 20 have been prepared in accordance with International Financial Reporting Standards (IFRS's).

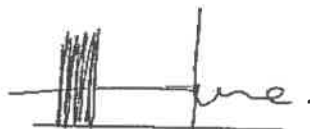
The directors are also responsible for the company's system of internal financial control. These are designed to provide reasonable, but not absolute, assurance as to the reliability of the financial statements.

The going concern basis has been adopted in preparing the financial statements. The directors have no reason to believe that the company will not be a going concern in the foreseeable future based on forecasts and available cash resources.

The financial statements have been prepared by the independent accountants, F Morathi Chartered Accountants, which was given unrestricted access to all financial records and related data, including minutes of all meetings of directors and the board of directors.

The independent accounting report of F Morathi Chartered Accountants is presented on page 2.

The financial statements were approved by the Directors on 23 March 2022 and are signed on its behalf.


MV LUKHELE
Director

INDEPENDENT AUDITOR'S REPORT TO THE DIRECTORS OF SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

Report on the Audit of the Financial Statements

Opinion

We have audited the financial statements of **SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD** which comprise the statement of financial position as at 28 February 2022, the statements of financial performance, statement of changes in equity, the statements of cash flows for the year then ended and notes to the financial statements, including a summary of significant accounting policies.

In our opinion, the accompanying financial statements present fairly, in all material respects the financial position of **SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD** as at 28 February 2022 and of its financial performance and its cash flows for the year then ended in accordance with international Financial Reporting Standards (IFRSs)

Basic Opinion

We conducted our audit in accordance with International Standards on Auditing (ISAs). Our responsibilities under those standards are further described in the Auditor's Responsibilities for the Audit of the Financial Statements section of our report. We are independent of the company in accordance with the ethical requirements that are relevant to our audit of the financial statements and we have fulfilled our other ethical responsibilities in accordance with these requirements. We believe that the audit evidence we have obtained is sufficient and appropriate to provide a basis for our opinion.

Responsibilities of management and Those Charged with Governance of the Financial Statements

Management is responsible for the preparation of these financial statements in accordance with the International Financial Reporting Standards (IFRSs), and for such internal control as management determines necessary to enable the preparation of financial statements that are free from material misstatements whether due to fraud or error.

In preparing the financial statements, management is responsible for assessing the company's ability to continue as a going concern, disclosing as applicable, the matters related to going concern and using the going concern basis of accounting unless management either intends to liquidate the Company or to cease operations, or has no realistic alternative but to do so.

Those charged with governance are responsible for overseeing the Company's financial reporting process.

Auditor's Responsibility

Our objectives are to obtain reasonable assurance about whether the financial statements as a whole are free from material misstatements, whether due responsibility is to express an opinion on these financial statements based on our audit. We conducted our audit in accordance with International Standards on Auditing. Those standards require that we comply with ethical requirements and plan and perform the audit to obtain reasonable assurance whether the financial statements are free from material misstatement.

An audit involves performing procedures to obtain audit evidence about the amounts and disclosures in the financial statements. The procedures selected depend on the auditor's judgement, including the assessment of the risks of material misstatement of the financial statements, whether due to fraud or error. In making those risk assessments, the auditor considers internal control relevant to the entity's preparation and fair presentation of the financial statements in order to design audit procedures that are appropriate in the circumstances, but not for the purpose of expressing an opinion on the effectiveness of the entity's internal control. An audit also includes evaluating the appropriateness of accounting policies used and the reasonableness of accounting estimates made by the directors, as well as evaluating the overall presentation of the financial statements.

We believe that the audit evidence we have obtained is sufficient and appropriate to provide a basis for our audit opinion.

F MORATHI INC
F MORATHI CHARTERED ACCOUNTANTS
Chartered Accountants (SA)
Registered Auditors
Polokwane
22 April 2022

DIRECTORS' REPORT

for the year ended 28 February 2022

1. Nature of business

The company's is a multidisciplinary organisation providing construction services, project management and transportation services to private sector and local government authorities including district municipalities and councils.

2. Business activities

	2022	2021
	R	R
Revenue	48,958,745	48,574,852
Operating profit/(loss)	8,573,936	7,706,951
Profit/(loss) for the year	6,173,234	5,549,005
Total assets	36,663,292	30,247,302
Total liabilities	2,400,702	2,157,946

Directors Contribution

There were no changes to the directors contribution of the company's during the year.

3. Financial objectives and performance against profit forecasts

Financial performance for the current year is in line with the business plan and management's expectations.

4. Directors Interest

In view of the need to retain working capital for an increased in anticipated future revenue and resulting levels of accounts receivable, no directors interest has been declared nor is any recommended.

5. Events subsequent to balance sheet date

The directors' are not aware of any matter or circumstance arising since the end of the financial year not otherwise dealt with in the annual financial statements, that would affect the operations of the company or the results of those operations.

6. Directors and secretary

The following is the sole director of the company:
MV LUKHELE

The company has not appointed a secretary.

7. Accountants

F Morathi Chartered Accountants were the company's accountants during the year and will continue in office in accordance with Section 62 of the Company's Act 2008, as amended.

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

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INCOME STATEMENT for the year ended 28 February 2022

	NOTES	2022 R	2021 R
Revenue		48,958,745	48,574,852
Less: Depreciation expense	5	1,518,319	1,378,345
Employee benefits expense	1	5,533,062	5,507,128
Other operating expenses		33,333,428	33,982,428
Operating profit/(loss)		8,573,936	7,706,951
Investment revenues	2	-	-
Interest on finance cost	2	-	-
Profit/(loss) before tax		8,573,936	7,706,951
Income tax expense	3	(2,400,702)	(2,157,946)
Profit/(loss) for the year	4	6,173,234	5,549,005

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

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BALANCE SHEET
at 28 February 2022

	NOTES	2022 R	2021 R
ASSETS			
<i>Non-current assets</i>			
Land and Building		-	-
Loan to director		9,938,762	(0)
Property, plant and equipment	5	5,615,162	5,033,482
		15,553,925	5,033,482
<i>Current assets</i>			
Trade and other receivables	7	20,123,625	22,677,566
Inventory		-	-
Cash and cash equivalents	8	985,742	2,536,254
Current tax assets	9	-	-
		21,109,367	25,213,820
Total assets		36,663,292	30,247,302
EQUITY AND LIABILITIES			
<i>Capital and reserves</i>			
Shareholders Contribution	10	100	100
Retained earnings		34,262,489	28,089,256
		34,262,589	28,089,356
<i>Non Current liabilities</i>			
Long term borrowings	14	-	-
<i>Current liabilities</i>			
Trade and other payables	11	-	-
Income tax payable		2,400,702	2,157,946
Bank Overdraft	8	-	-
Current portion of long term borrowings		-	-
Loan from Director		-	-
		2,400,702	2,157,946
Total equity and liabilities		36,663,292	30,247,302

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

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STATEMENT OF CHANGES IN EQUITY for the year ended 28 February 2022

	Shareholders Contribution R	Retained earnings R	Total R
Balance at 1 March 2020	100	22,540,251	22,540,351
Net profit	-	5,549,005	5,549,005
Balance at 28 February 2021	100	28,089,256	28,089,356
Balance at 1 March 2021	100	28,089,256	28,089,356
Net profit/(loss)	-	6,173,234	6,173,234
Balance at 29 February 2022	100	34,262,489	34,262,589

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

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CASH FLOW STATEMENT
for the year ended 28 February 2022

	NOTES	2022 R	2021 R
Operating activities			
Profit for the year		6,173,234	5,549,005
Adjustments for:			
Depreciation of property, plant and equipment	5	1,518,319	1,378,345
Income tax expense	3	2,400,702	2,157,946
Interest expenses	2	-	-
Investment revenues	2	-	-
Operating cash flows before movements in working capital		10,092,255	9,085,296
(Increase)/Decrease in inventory		-	-
(Increase)/Decrease in receivables		2,553,941	9,424,177
Increase/(decrease) in payables		-	-
Cash generated from operations		12,646,196	18,509,473
Income taxes paid		(2,157,946)	(3,927,526)
Net cash from operating activities		10,488,250	14,581,947
Investing activities			
Interest received	2	-	-
Investments disposed of	6	-	-
Additions on property, plant and equipment		(2,100,000)	(5,874,586)
Net cash used in investing activities		(2,100,000)	(5,874,586)
Financing activities			
Loans from shareholder		(9,938,762)	-
Directors contribution		-	-
Proceeds from long term borrowings		-	(7,927,354)
Net cash used in financing activities		(9,938,762)	(7,927,354)
Net increase in cash and cash equivalents		(1,550,512)	780,007
Cash and cash equivalents at the beginning of the year	8	2,536,254	1,756,247
Cash and cash equivalents at the end of the year	8	985,742	2,536,254

SUMMARY OF ACCOUNTING POLICIES for the year ended 28 February 2022

1. ADOPTION OF NEW AND REVISED INTERNATIONAL FINANCIAL REPORTING STANDARDS

In the current year, the Company's has adopted all of the new and revised Standards and Interpretations issued by the International Accounting Standards Board (IASB) and the International Financial Reporting Interpretations Committee (IFRIC) of the IASB that are relevant to its operations and effective from accounting periods beginning on 1 March 2004.

2. BASIS OF PREPARATION

The financial statements have been prepared in accordance with International Financial Reporting Standards. The financial statements have been prepared on the historical cost basis, except for the revaluation of certain financial instruments. The principal accounting policies are set out below.

3. REVENUE RECOGNITION

Revenue is measured at the fair value of the consideration received or receivable and comprises the invoiced value of fees rendered in respect of management, financial and technical services, net of value-added tax and discounts.

Interest income is accrued on a time basis, by reference to the principal outstanding and at the effective interest rate applicable, which is the rate that exactly discounts estimated future cash receipts through the expected life of the financial asset to the asset's net carrying amount.

4. BORROWING COSTS

Borrowing costs are recognised in profit or loss in the period in which they are incurred.

5. EMPLOYEE BENEFITS

Termination benefits

Termination benefits are payable whenever an employee's employment is terminated before the normal retirement date or whenever an employee accepts voluntary redundancy in exchange for these benefits. The Company's recognises termination benefits when it is demonstrably committed to terminate the employment of current employees according to a detailed formal plan without the possibility of withdrawal.

6. TAXATION

Income tax expense represents the sum of the tax currently payable and deferred tax.

The tax currently payable is based on the taxable profit for the year. Taxable profit differs from profit as reported in the income statement because it excludes items of income or expense that are taxable or deductible in other years and it further excludes items that are never taxable or deductible. The Company's 's liability for current tax is calculated using tax rates that have been enacted or substantively enacted by the balance sheet date.

SUMMARY OF ACCOUNTING POLICIES (Continued)
for the year ended 28 February 2022

6. TAXATION (Continued)

Deferred tax is recognised on differences between the carrying amounts of assets and liabilities in the financial statements and the corresponding tax bases used in the computation of taxable profit, and is accounted for using the balance sheet liability method. Deferred tax liabilities are generally recognised for all taxable temporary differences and deferred tax assets are recognised to the extent that it is probable that the taxable profit will be available against which deductible temporary differences can be utilised. Such assets and liabilities are not recognised if the temporary difference arises from goodwill or from initial recognition (other than in a business combination) of assets and liabilities in a transaction that affects neither the taxable profit nor the accounting profit.

The carrying amount of deferred tax assets is reviewed at each balance sheet date and reduced to the extent that it is no longer probable that sufficient taxable profits will be available to allow all or part of the asset to be recovered.

Deferred tax is calculated at the tax rates that are expected to apply in the period when the liability is settled or the asset realised. Deferred tax is charged or credited to profit or loss, except when it relates to items charged or credited directly to equity, in which case the deferred tax is also dealt with in equity.

Deferred tax assets and liabilities are offset when there is a legally enforceable right to set off current tax assets against current tax liabilities and when they relate to income taxes levied by the same taxation authority and the Company intends to settle its current tax assets and liabilities on a net basis.

7. PROPERTY, PLANT AND EQUIPMENT

Computer equipment are stated at cost less accumulated depreciation and any accumulated impairment losses.

Depreciation is charged so as to write off the cost or valuation of assets over their estimated useful lives, using the straight-line method.

The gain or loss arising on the disposal or retirement of an item of property, plant and equipment is determined as the difference between the sales proceeds and the carrying amount of the asset and is recognised in profit or loss.

Repairs and maintenance are charged to the income statement during the financial period in which they incurred. The cost of major renovations is included in the carrying amount of the assets when it is probable that further economic benefits in excess of the originally assessed standard of performance of the existing assets will flow to the Company. Major renovations are depreciated over the remaining useful life of the related assets.

8. FINANCIAL INSTRUMENTS

Financial assets and financial liabilities are recognised on the Company's balance sheet when the Company becomes a party to the contractual provisions of the instrument.

Trade receivables

Trade receivables are measured at initial recognition at fair value, and are subsequently measured at amortised cost using the effective interest rate method. Appropriate allowances for estimated irrecoverable amounts are recognised in profit or loss when there is objective evidence that the asset is impaired. The allowance recognised is measured as the difference between the asset's carrying amount and present value of estimated future cash flows discounted at the effective interest rate computed at the initial recognition.

Investments

Investments are recognised and derecognised on a trade date basis where the purchase or sale of an investment is under a contract whose terms require delivery of the investment within the timeframe established by the market concerned, and are initially measured at fair value, plus directly attributable transaction costs.

SUMMARY OF ACCOUNTING POLICIES (Continued)
for the year ended 28 February 2022

8. FINANCIAL INSTRUMENTS (Continued)Investments (Continued)

At subsequent reporting dates, debt securities that the Company's has the expressed intention and ability to hold to maturity (held-to-maturity debt securities) are measured at amortised cost using the effective interest rate method, less any impairment loss recognised to reflect irrecoverable amounts. An impairment loss is recognised to reflect irrecoverable amounts. An impairment loss is recognised in profit or loss when there is objective evidence that the asset is impaired, and is measured as the difference between the investment carrying amount and the present value of estimated future cash flows discounted at the effective interest rate computed at initial recognition. Impairment losses are reversed in subsequent periods when an increase in the investment's recoverable amount can be related objectively to an event occurring after the impairment was recognised, subject to the restriction that the carrying amount of the investment at the date the impairment is reversed shall not exceed what amortised cost would have been had the impairment not been recognised.

Non-current investments excluding marketable securities are shown at fair value and adjustments are made only where, in the opinion of the Directors, the investment is impaired. Where an investment has been impaired, it is recognised as an expense in the period in which the impairment is identified.

On disposal of an investment, the difference between the net disposal proceeds and the carrying amount is charged or credited to the income statement.

Cash and cash equivalents

Cash and cash equivalents comprise cash on hand and deposits held at call with banks.

Financial liabilities and equity

Financial liabilities and equity instruments issued by the Company's are classified according to the substance of the contractual arrangements entered into and the definitions of a financial liability and an equity instrument. An equity instrument is any contract that evidences a residual interest in the assets of the Company's after deducting all of its liabilities. The accounting policies adopted for a specific financial liabilities and equity instruments are set out below.

Bank borrowings

Interest-bearing bank overdrafts are initially measured at fair value, and are subsequently measured at amortised cost, using the effective interest rate method. Any difference between the proceeds (net of transaction costs) and the settlement or redemption of borrowings is recognised over the term of the borrowings in accordance with the Company's accounting policy for borrowing costs (See above).

Trade payables

Trade payables are initially measured at fair value, and are subsequently measured at amortised cost, using the effective interest rate method.

Equity instruments

Equity instruments issued by the Company's are recorded at the proceeds received, net of direct issue costs.

Derivative financial instruments

The Company's activities expose it primarily to the financial risks of changes in interest rates.

The significant interest rate risk arises from bank loans.

SUMMARY OF ACCOUNTING POLICIES (Continued)
for the year ended 28 February 2022

9. PROVISIONS

Provisions are recognised when the Company's has a present legal or constructive obligation as a result of a past event, when it is probable that an outflow of resources embodying economic benefits will be required to settle the obligation, and when a reliable estimate of the amount of the obligation can be made.

Provisions are measured at the Directors' best estimate of the expenditure required to settle the obligation at the balance sheet date, and are discounted to present value where the effect is material.

10. COMPARATIVES

Where necessary, comparative figures have been adjusted to conform with changes in presentation in the current year.

FINANCIAL RISK MANAGEMENT
for the year ended 28 February 2022

1. FINANCIAL RISK FACTORS

The company's activities expose it to a variety of financial risks, including the effects of changes in foreign currency exchange rates and interest rates. The Company's overall risk management programme focuses on the unpredictability of financial markets and seeks to minimise potential adverse effects of the financial performance of the company.

Interest rate risk

The company's income and operating cash flows are substantially independent of changes in market interest rates. The Company's has no significant interest-bearing assets. The Company's borrows at variable rates. The Company's does not hedge against future interest rate fluctuations.

Credit risk

The company's has no significant concentrations of credit risk. The company has policies in place to ensure that sales of services are made to customers with an appropriate credit history. Cash transactions are limited to high quality financial institutions.

Liquidity risk

Prudent liquidity risk management implies maintaining sufficient cash, the availability of funding through an adequate amount of committed credit facilities. Due to the dynamic nature of underlying businesses, the Company's aims at maintaining flexibility in funding by keeping committed credit lines available.

NOTES TO THE ANNUAL FINANCIAL STATEMENTS

for the year ended 28 February 2022

	2022 R	2021 R
1. EMPLOYEE BENEFITS		
Group scheme - risk benefits	-	-
Non-contributory retirement fund costs - defined contribution plan	-	-
Salaries	5,533,062	5,507,128
Skills development levies	-	-
Social security costs	-	-
	<u>5,533,062</u>	<u>5,507,128</u>
Average monthly number of persons employed by the Company's during the year:		
Full time	<u>8</u>	<u>8</u>
2. INVESTMENT REVENUES		
Interest on bank deposits	-	-
Interest expense		
Interest on bank overdrafts and loans	-	-
	<u>-</u>	<u>-</u>
Net finance costs	-	-
	<u>-</u>	<u>-</u>
3. INCOME TAX EXPENSE		
Current tax	<u>2,400,702</u>	<u>2,157,946</u>
Domestic income tax is calculated at 28% (2021: 28%) of the estimated assessable profit for the year.		
The total charge for the year can be reconciled to the accounting profit as follows:		
Profit/(loss) before tax	<u>8,573,936</u>	<u>7,706,951</u>
Tax at the domestic income tax rate of 28% (2021: 28%)	<u>2,400,702</u>	<u>2,157,946</u>
Tax effect of loss subject to assessment	<u>-</u>	<u>-</u>
Tax expense for the year	<u>2,400,702</u>	<u>2,157,946</u>
Effective tax rate for the year	<u>28.0%</u>	<u>28.0%</u>
4. PROFIT/(LOSS) FOR THE YEAR		
Profit/(loss) for the year has been arrived at after charging/(crediting):		
Accountant's Fees	<u>260,321</u>	<u>250,362</u>
Depreciation of property, plant and equipment (see note 5)	<u>1,518,319</u>	<u>1,378,345</u>

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD
NOTES TO THE ANNUAL FINANCIAL STATEMENTS (Continued)
for the year ended 28 February 2022

			2022 R	2021 R
4. PROFIT/(LOSS) FOR THE YEAR (Continued)				
Employee benefits expense (see note 1)			5,533,062	5,507,128
Operating lease rentals			-	-
Office Space			-	-
5. PROPERTY, PLANT AND EQUIPMENT				
	Vehicles	Equipment & Furniture	Computer equipment	Total
	R	R	R	R
<i>Cost or valuation</i>				
At 28 February 2021	7,230,207	-	22,778	7,252,985
Additions for 2022 year				
At cost	-	2,100,000	-	2,100,000
Disposals	-	-	-	-
	7,230,207	2,100,000	22,778	9,352,985
<i>Accumulated depreciation and impairment</i>				
At 1 March 2021	2,200,430	-	19,074	2,219,504
Depreciation charge for the year	1,446,041	70,000	2,278	1,518,319
At 28 February 2022	3,646,471	70,000	21,352	3,737,823
<i>Carrying amount</i>				
At 28 February 2021	5,029,778	-	3,704	5,033,482
At 28 February 2022	3,583,736	2,030,000	1,426	5,615,162
The following rates are used for the depreciation of property, plant and equipment:				
Office Furniture	5 Years			
Vehicles	5 Years			
Computer equipment	10 Years			
6. OTHER INVESTMENTS			2022 R	2021 R
Unlisted				
Shares at cost			-	-

NOTES TO THE ANNUAL FINANCIAL STATEMENTS (Continued)
for the year ended 28 February 2022

	2022 R	2021 R
7. TRADE AND OTHER RECEIVABLES		
Trade receivables	20,123,625	22,677,566
The directors' consider that the carrying amount of trade and other receivables approximates their fair value. Interest is charged on trade receivables at the discretion of the Directors'. Where interest is charged, it is levied at rates linked to the company's borrowing rates. Credit risk The company's principal financial assets are bank balances and cash, trade and other receivables and investments. The credit risk on liquid funds is limited because the counterparties are banks with high credit-ratings assigned by international credit-rating agencies. The company's credit risk is primarily attributable to its trade and other receivables. The amounts presented in the balance sheet are net of allowances for doubtful receivables. An allowance for impairment is made where there is an identified loss event The company has no significant concentration of credit risk, with exposure spread over a large number of clients.		
8. CASH AND CASH EQUIVALENTS		
Cash at bank and in hand	985,742	2,536,254
	985,742	2,536,254
Bank balances and cash comprise cash held by the company and short-term bank deposits with an original maturity of 3 months or less. The carrying amounts of these assets approximate their fair value. For the purposes of the cash flow statement, the year-end cash and cash equivalents comprise the following:		
Cash and bank balances	985,742	2,536,254
Bank overdrafts	-	-
	985,742	2,536,254
9. CURRENT TAX ASSETS		
South African Revenue Service - VAT	-	-
	-	-

NOTES TO THE ANNUAL FINANCIAL STATEMENTS (Continued)
for the year ended 28 February 2022

	2022 R	2021 R
10. Shareholders Contribution		
<i>Issued</i>		
Shareholders' Interest	100	100
11. TRADE AND OTHER PAYABLES		
Trade payables	-	-
Accrued expenses and other payables	-	-
	-	-
Trade creditors and accruals principally comprise amounts outstanding for project purchases, paycosts and ongoing costs.		
The Directors' consider that the carrying amount of trade payables approximates their fair value.		
12. Loan from Director		
Director's loan is unsecured and no interest is charged.		
<i>Long term</i>		
Loans from Director	-	-
<i>Current</i>		
Less: Instalments payable	-	-
	-	-
13. Loan to Director		
Director's loan is unsecured and no interest is charged.		
<i>Long term</i>		
Loans to Director	9,938,762	(0)
<i>Current</i>		
Unsecured loans during the year.	-	-
	9,938,762	(0)
14. LONG TERM LIABILITY		
Long term liability	-	-
Less: Instalments payable within one year transferred to current liabilities	-	-
	-	-

NOTES TO THE ANNUAL FINANCIAL STATEMENTS (Continued)
for the year ended 28 February 2022

	2022	2021
	R	R
15 DIRECTORS REMUNERATION		
<i>Directors' remuneration</i>		
Fringe benefits	-	-
Retirement fund contributions - defined benefit plan	-	-
Salaries	2,978,541	2,965,874
	<u>2,978,541</u>	<u>2,965,874</u>

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD

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**ANNEXURES TO THE ANNUAL FINANCIAL STATEMENTS
for the year ended 28 February 2022**

THESE ANNEXURES DO NOT FORM PART OF THE FINANCIAL STATEMENTS AND THUS WERE NOT AUDITED

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Detailed Income statement	19
Memorandum of taxable income	20

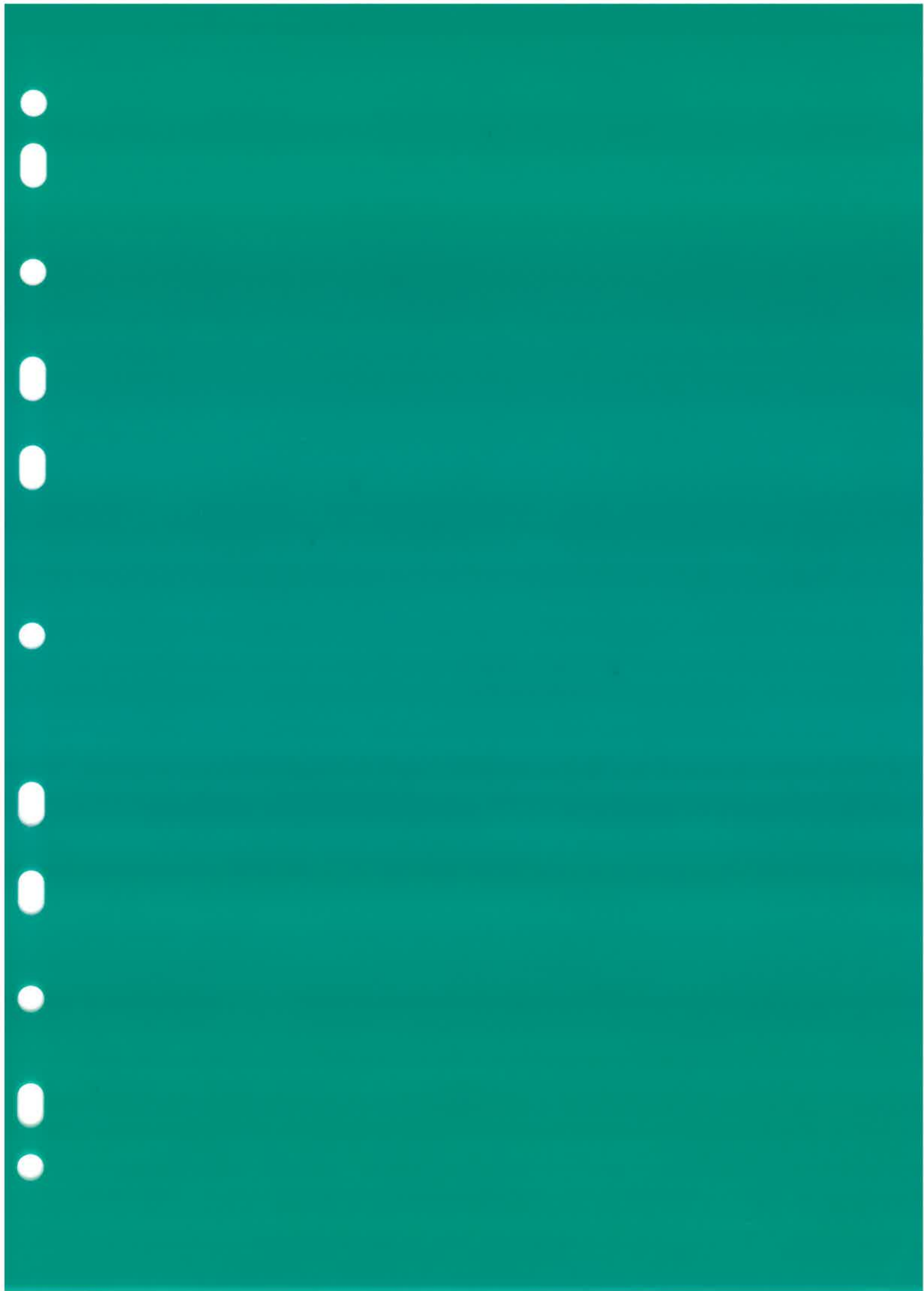
SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD
**DETAILED INCOME STATEMENT
for the year ended 28 February 2022**

	2022 R	2021 R
INCOME		
Revenue (excluding VAT)	48,958,745	48,574,852
	<u>48,958,745</u>	<u>48,574,852</u>
EXPENSES		
Depreciation of property, plant and equipment	1,518,319	1,378,345
Employee benefits	5,533,062	5,507,128
Cost of staff	2,554,521	2,541,254
Directors' remuneration	2,978,541	2,965,874
Other operating expenses	33,333,428	33,982,428
Accounting Fees	260,321	250,362
Advertisements	-	-
Bank Charges	55,632	42,535
Cleaning & Hygiene	-	-
Levies	-	-
Consumable Materials	13,562,541	14,245,872
Gardening and Landscaping Costs	5,221,412	5,215,425
Interest on Overdraft	-	-
Insurance	70,325	65,251
Management Fees	-	-
Motor Vehicle Expenses	-	-
Postage and Packaging	35,261	31,254
Printing & Stationery	39,996	38,547
Plant Hire	6,598,741	6,584,752
Rent, Water and Lights Paid	295,000	294,000
Repair and Maintenance	-	-
Staff Training	-	-
Stipends	-	-
Sub Contractors Fees	4,452,145	4,526,354
Subscriptions & Directorship	-	-
Telephone, Cell phone and Fax	75,216	71,988
Transport Costs	1,996,587	1,965,874
Professional Consultation Fees	670,251	650,214
Workman's Compensation	-	-
	<u>40,384,809</u>	<u>39,489,556</u>
Operating profit/(loss)	8,573,936	7,706,951
Investment revenues	-	-
Interest on finance charges	-	-
	<u>8,573,936</u>	<u>7,706,951</u>
Profit/(loss) before tax	8,573,936	7,706,951
Income tax expense	(2,400,702)	(2,157,946)
	<u>6,173,234</u>	<u>5,549,005</u>
Profit/(loss) for the year	6,173,234	5,549,005

SITHEMBE TRANSPORTATION AND PROJECTS (PTY) LTD
(Registration number : 2013/029173/07)

MEMORANDUM OF TAXABLE INCOME
for the year ended 28 February 2022

	2022 R
Profit before tax	8,573,936
Less: Loss subject to assessment brought forward	-
Loss subject to assessment carried forward	8,573,936
Tax thereon @ 28%	2,400,702.02
Less: Provisional tax payments	-
First provisional payment	-
Second provisional payment	-
Tax payable to the South African Revenue Service as at 28 February 2022	2,400,702.02





Postal: PO Box 45, Mbombela, 1200
Physical: 1 Nel Street, Mbombela Civic Centre, Mbombela, 1200
Tel; **013 759 9111**
Fax: **013 759 2070**
Web: www.mbombela.gov.za

21 March 2021

Appointment Letter

Project : Tender for the Supply, Delivery, and Installation of Cable Spiking Equipment for LV/MV Networks.

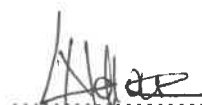
Client : City of Mbombela
Consultant : BVi Consulting Engineers
Contractor : Sithembe Transportation and Projects (Pty) Ltd
Contract No : 209/2021
Commencement date : 03 April 2021
Contract Value : R 12,322,361.00 Inc. VAT

It is with pleasure to inform that Sithembe Transportation and Projects has been appointed for the above-mentioned contract in accordance with clause 5.14 of general condition of contract (first edition) 2010 this appointment letter is issued in terms of clause 5.14.1. of the above-mentioned general conditions of contracts.

Sincerely,


.....
Client Representative
City of Mbombela Municipal Manager
Mr. W. Khumalo

21 / 03 / 21
.....
Date


.....
Consultant
Bvi Consulting Engineers Representative
Mrs. L.N. Ndlovu

21-03-2021
.....
Date



Postal: PO Box 45, Mbombela, 1200
Physical: 1 Nel Street, Mbombela Civic Centre, Mbombela, 1200
Tel; 013 759 9111
Fax: 013 759 2070
Web: www.mbombela.gov.za

27 September 2024

Reference Letter

To Whom it may concern

RE: Tender for the Supply, Delivery, and Installation of Cable Spiking Equipment for LV/MV Networks.

We am writing to highly recommend Sithembe Transportation and Projects for their expertise in Supply, Delivery, and Installation of Cable Spiking Equipment for LV/MV Networks. We had the pleasure of collaborating with them on the above-mentioned project.

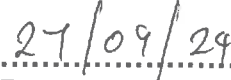
Sithembe Transportation and Projects demonstrated professionalism, knowledge, and efficiency throughout the project. Their exceptional project management skills, compliance with regulations, and commitment to quality resulted in a successful and timely completion.

I highly recommend Sithembe Transportation and Projects for any similar projects, as they are a reliable and capable partner.

Please feel free to contact me if you require any further information.

Sincerely,


.....
Municipal Manager
Mr. W. Khumalo


.....
Date



Postal: PO Box 45, Mbombela, 1200
Physical: 1 Nel Street, Mbombela Civic Centre, Mbombela, 1200
Tel; 013 759 9111
Fax: 013 759 2070
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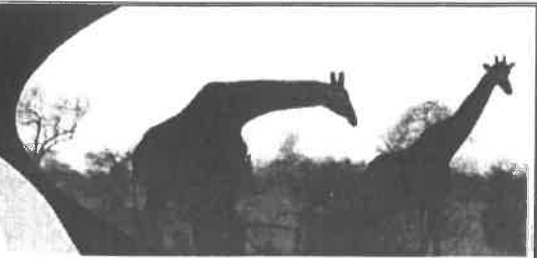
Sincerely,


.....
Client Representative
City of Mbombela Municipal Manager
Mr. W. Khumalo

21 / 03 / 21
.....
Date


.....
Consultant
Bvi Consulting Engineers Representative
Mrs. L.N. Ndlovu

21.03.2021
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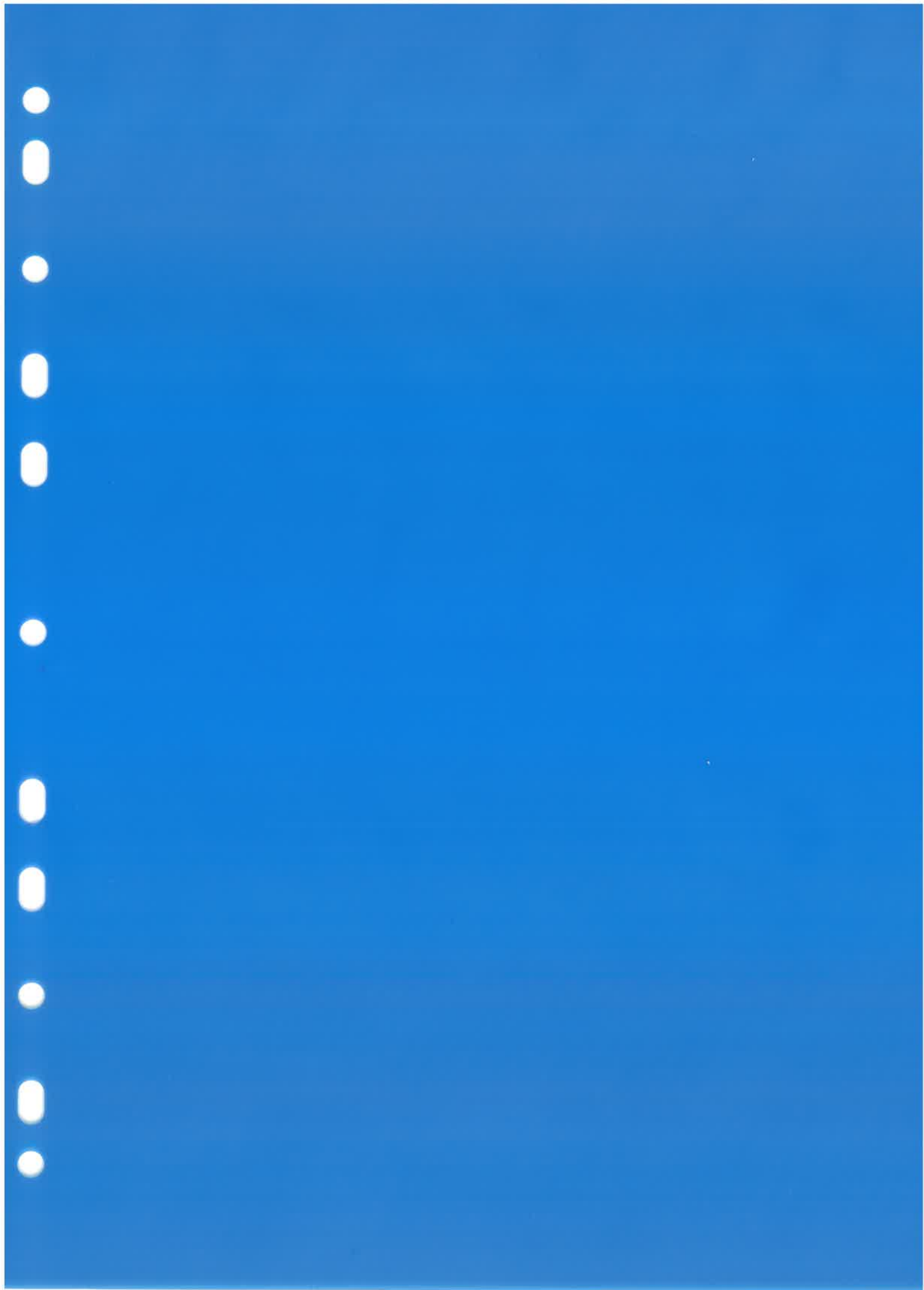
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Please feel free to contact me if you require any further information.

Sincerely,


.....
Municipal Manager
Mr. W. Khumalo

27/09/24
.....
Date





To Whom It May Concern

21 February 2025

Re: Confirmation of Bank Code

This letter serves to confirm that we have a current account for the below-mentioned client in our books.

Account Name	SITHEMBE TRANSPORTATION AND PROJECTS PTY LTD
Account Number:	411437577
Account type:	Business Current Account
Amount:	R5 000 000.00
Period:	36 Months
Code:	C

Kindly be advised that this report is given at your request and is confidential between you and us. Neither the bank nor its agents warrant the correctness of any information given to you; nor are they liable for any direct or indirect loss or damages, which you may suffer as a result of relying on any information given to you.

We trust the above meets with your requirements.

Yours faithfully

Jerry Tau
Transactional Banker

The Standard Bank of South Africa Limited
Reg.No: 1962/000738/06
Business Banking Service Unit
2025-02-21

The Standard Bank of South Africa Limited (Reg. No. 1962/000738/06)
Authorised financial services and registered credit provider (NCRCP15)

Directors: N Nyembezi (Chairman) AKL Fihla* (Chief Executive Officer) LL Bam
PLH Cook A Daehnke* OA David-Borha¹ GJ Fraser-Moleketi GMB Kennealy BJ Kruger
Li Li² JH Maree NNA Matyumza ML Oduor-Otieno³ Fenglin Tian² SK Tshabalala*

Company Secretary: K Froneman – 2024/09/02

* Executive Director ¹ Nigerian ² Chinese ³ Kenyan



σ Empoweryst

Independent Verification

Sithembe Transportation And Projects (Proprietary) Limited

Registration: 2013/029173/07 | VAT: 4070272101
Address: No: ERF: 3138 B Crane Street | Centurion | 0157

APPLICABLE SCORECARD				QSE Scorecard	
STANDARD OF VERIFICATION				2017 Construction Sector Code	
NATURE OF ENTERPRISE				Black Owned Entity	100%
Skills Development	20	20		Certificate Number	ERC19110070
Comply with QSE Skills Development	YES	YES		Date of Issue	13 October 2024
				Expiry Date	12 October 2025
OVERALL SCORE			—	BB BEE STATUS	Level 1


Authorised Signature

13 October 2024

Date of Signature
Certificate #ERC 19110070



BVA064

Telephone: +27 11 836 0536 | Facsimile: +27 86 554 5573 | e-Mail: info@empoweryst.co.za

125 Makhaya Street| Protea North | Soweto | 1818 | www.empoweryst.co.za



CITY OF
TSHWANE
IGNITING EXCELLENCE

Copy of TAX invoice : 962506934420

Issued : 31/12/24
LUKHELE, M V
285 ERASMUS AVE
RASLOUW AH
0157

Tel: 012 358 9999
Fax: 012 359 6111
E-Mail: customercare@tshwane.gov.za
Address: P O Box 408 | Pretoria 0001

Account No.
5019037043
8702125373087 /

Page: 1 of 2

Account for P19	Stand no 00088	Township RASLOUW AH	Days 36
Address ; 285 ERASMUS AVENUE		Sectional title scheme	Unit no. 00000
Meter reading unit 1963301A	Group account	Deposit date	Deposit 0.00
		Guarantee date	Guarantee 0.00
GISKEY: 056900088/2		BP: 2059584	

DATE	DETAILS	(R) AMOUNT (excl. VAT)	(R) VAT	(R) AMOUNT (incl. VAT)
31/12/24	Balance Brought Forward	0.00	0.00	0.00
31/12/24	Sub Total (A)	0.00	0.00	0.00
19/12/24	Miscellaneous Charges	1713.00	0.00	1713.00
31/12/24	Property Rates	4524.17	0.00	4524.17
31/12/24	Waste Management	371.65	55.75	427.40
31/12/24	Electricity	14067.43	2110.11	16177.54
31/12/24	Water	6696.00	1004.40	7700.40
31/12/24	Sanitation	519.82	77.97	597.79
19/12/24	VAT 14% on services of R 0.00	0.00	0.00	0.00
19/12/24	VAT 15% on services of R 21654.90	0.00	3248.23	0.00
	Total Current Levy (B)	27892.07	3248.23	31140.30

TOTAL AMOUNT PAYABLE (A+B)	27892.07	3248.23	31140.00
----------------------------	----------	---------	----------

30-90 Days	90+ Days	Total charge (excluding VAT)	Total VAT	Total charge (including VAT)
		27892.07	3248.23	31140.00

THIS STUB MUST ACCOMPANY PAYMENT

OVERDUE AMOUNT	DUE DATE	IMMEDIATELY	0.00
CURRENT ACCOUNT	DUE DATE	21/01/25	AMOUNT PAYABLE 31140.3

Name LUKHELE, M V	Final date for payment 21/01/25	Account no 5019037043	31140.00
----------------------	------------------------------------	--------------------------	----------

Please use this Ref. no. when making Bank
Payments Ref. no. 5019037043

TAX invoice: 962506934420

CITY OF TSHWANE VAT REG NO 4000142267



>>>>>

9 1945 5019037043 7

First National Bank

ABSA

NEDBANK

Tel: 012 358 9999

Fax: 012 359 6111

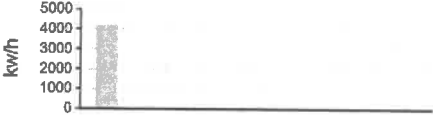
E-Mail: customercare@tshwane.gov.za

Address: P O Box 408 | Pretoria 0001

Account No.

5019037043

Page: 2 of 3

DATE	ICONS	DETAILS	(R) AMOUNT (excl. VAT)	(R) VAT	(R) AMOUNT (Incl. VAT)
31/12/24		Balance Brought Forward	0.00	0.00	0.00
31/12/24		Sub Total (A)	0.00	0.00	0.00
19/12/24		Security deposit request 060001780673	1090.00	0.00	1090.00
19/12/24		Security deposit request 060001780674	623.00	0.00	623.00
31/12/24		Property Rates Residential Market Value: 4600000.00 Tariff: 0.0122000 Imperm. Value: 15000.00 Valuation Rebate: 135000.00 2024/12 Market Value x Tariff ÷ 12 Less 15000.00 X 0.0122000 ÷ 12 Less: Valuation Rebate X Tariff ÷ 12	4676.67 -15.25 -137.25	0.00 0.00 0.00	4676.67 -15.25 -137.25
31/12/24		Waste Management Waste Removal Charge: No of bins 1 @ R371.65	371.65	55.75	427.40
31/12/24		Electricity Reading dates: Curr 30/12/24 Prev 25/11/24 (36 days) Meter: 02612-83(Estimate) Curr 0 Prev 0 Cons 0 KWH Meter: 05542-83(Estimate) Curr 14635 Prev 14635 Cons 0 KWH Meter: 88-02654(Estimate) Curr 60270 Prev 56074 Cons 4195 KWH TOTAL CONSUMPTION 4195 KWH Energy charge farms  Month ■ Actual □ Estimated □ Undefined	14067.43	2110.11	16177.54
31/12/24		Water Reading dates: Curr 30/12/24 Prev 25/11/24 (36 days) Meter: 40342816(Estimate) Curr 8669 Prev 8521 Cons 148 KL Water charge Scale B: Domestic Water Network Access Charge  Month ■ Actual □ Estimated □ Undefined	6499.28 196.72	974.89 29.51	7474.17 226.23
31/12/24		Sanitation Reading dates: Curr 30/12/24 Prev 25/11/24 (36 days) Meter: 40342816(Estimate) Curr 8669 Prev 8521 Cons 148 KL Sanitation: Wastewater Domestic Sanitation Network Access Charge	403.42 116.40	60.51 17.46	463.93 133.86
31/12/24		VAT Total Current Levy (B)	27892.07	3248.23	31140.30
Total Amount Payable (A+B)			27892.07	3248.23	31140.00

1

Agreement of Lease
Muzi V Lukhele
&
Sithembe Transportation &
Projects

AGREEMENT OF LEASE

1. PARTIES

The parties to this lease agreement are:

Name: Muzi V Lukhele

Address: 285 Erasmus Ave, Raslouw AH, 0157

(Hereinafter referred to as "the Landlord")

Name: Sithembe Transportation and Projects

Address: 285 Erasmus Ave, Raslouw AH, 0157

(Hereinafter referred to as "the Tenant")

2. PROPERTY

The Landlord lets to the Tenant the following property:

285 Erasmus Ave, Raslouw AH, 0157

MV

3. PERIOD

The lease will commence on 1st October 2023 and will remain in force for a period of Seven (7) Years until it is registered into the name of Sithembe Transportation and Projects.

4. RENT

4.1 The rent will be R15 000 per month and shall be subject to an annual escalation of 10% per annum.

4.2 The Tenant shall pay the rent:

4.2.1 in cash, without deduction or set-off.

4.2.2 in advance on the 1st day of each month, commencing on 1st October 2023.

4.2.3 to the Landlord Via Bank Deposit Nedbank Trust Account, or at such other place as the Landlord may nominate in writing from time to time.

5. DEPOSIT

5.1 The Tenant shall pay a cash deposit of R15 000

prior to receiving occupation of the property.

5.2 The Landlord shall invest the deposit in an interest-bearing account with a financial institution.

5.3 The Landlord shall pay to the Tenant interest on the deposit at the rate applicable to such account which may not be less than the rate applicable to a savings account with a financial institution and the Tenant may, during the period of the lease, request the Landlord to provide him/her with written proof in respect of interest accrued on such deposit and the Landlord must provide such proof on request/s.

6. PRE-OCCUPATION INSPECTION

6.1 The Tenant and the Landlord must jointly, before the Tenant moves into the property, inspect the property to ascertain the existence, or not, of any defects or damage therein with a view to determining the Landlord's responsibility for rectifying any defects or damage, if any.

6.2 A copy of the list of defects must be attached to this lease.

MV

- 6.3 The Landlord shall take all reasonable steps to repair the defects within a reasonable time.

7. USE OF PROPERTY

- 7.1 The Tenant shall use the property for residential purposes only. The Tenant shall not, except with the prior written permission of the Landlord, use the property for any other purpose.
- 7.2 The Tenant is not permitted to have more than 20 people residing on the property at any given time.
- 7.3 While the lease is in force, the Tenant shall:
- 7.3.1 comply with all laws affecting the occupation of the property.
- 7.3.2 not contravene or permit the contravention of any condition of title under which the Landlord owns the property, or any laws, rules or regulations affecting the owners, tenants, or occupiers of the property.
- 7.3.3 not create any nuisance from the property.
- 7.3.4 not do or keep on the property anything which may not be done or kept in terms of any policy of insurance in respect of the property or which shall enhance any of the risks against which the property is insured.
- 7.3.5 comply with any House Rules that are applicable to the property.

8. MAINTENANCE OF THE PROPERTY

- 8.1 The Tenant shall use the property for no purpose other than that for which the property is let and shall maintain the whole of the property throughout the period of the lease, in good order and condition.
- 8.2 The Tenant shall maintain the whole of the property in good order and condition and keep the property clean, habitable and tidy and care for and maintain the garden and swimming pool, if any, and be responsible for the maintenance, repair, upkeep and/or decoration, as the case may be, of the interior of the property including all ceilings, all wall and floor coverings, all doors and windows, all cooking, heating, cooling, lighting, plumbing and air-conditioning installations (and any part of any such doors, windows and installations) and gas installations or any systems serving the property, as well as all other fixtures, fittings, furnishings and any machinery and equipment in or on the property.
- 8.3 The Landlord or its agent will be entitled, at all reasonable times and upon reasonable notice, to enter and inspect the premises.

Mr

9. IMPROVEMENTS

- 9.1 The tenant shall not make any structural alterations or additions to any of the buildings that form part of the property or any part thereof, without the Landlord's prior written consent, which shall not be unreasonably withheld.
- 9.2 Any alterations or additions made with the Landlord's consent shall be carried out by the Tenant at his/her own cost by persons having the necessary skill, expertise and experience, which persons shall be approved by the Landlord in writing prior to the commencement of any work.
- 9.3 The tenant will not be entitled to remove any alterations or additions that he/she has made. On termination of the lease, they will remain the property of the Landlord, either with or without compensation, as agreed upon in advance between parties in writing.

10. RATES AND OTHER CHARGES

- 10.1 The Landlord shall pay all rates and taxes and/or Body Corporate levies (if applicable) levied by the local authority or any other competent body on the property.
- 10.2 The Tenant will be liable for all other charges in respect of the property, including charges for electricity, refuse removal, sanitation, sewerage, and water.
- 10.3 The Tenant shall not sub-let the whole or any party of the property without the written consent of the Landlord.
- 10.4 The Tenant shall not cede or assign this lease.

11. DESTRUCTION OF THE PROPERTY

- 11.1 Should the property be destroyed or be so damaged as to render the property entirely uninhabitable, then the Landlord shall be entitled to declare the lease cancelled within 30 (Thirty) days after the destruction or damage to the property on written notice to the Tenant.
- 11.2 Should no such notice be given by the Landlord, this lease shall not be cancelled, but shall continue the following terms and conditions:
- 11.2.1 If such destruction of the property was due to the fault of the Tenant or his family or servants or any person allowed onto the property by the Tenant, the Landlord shall be entitled to claim payment of such damages as he / she may have suffered.

MV

11.2.2 If the property is only partially uninhabitable, the Tenant shall remain in occupation of the undamaged portion of the property and the Tenant shall be entitled to a proportionate abatement of the rent to the extent to which the Tenant is deprived of beneficial occupation of the property.

11.2.3 The Landlord undertakes to complete the repairs to the property within a reasonable time of the damage occurring and upon completion of the repairs the full rental shall immediately again become payable by the Tenant, with effect from the date upon which the Tenant resumes full occupation of the property.

12. CONDITION OF PROPERTY TO BE RETURNED TO LANDLORD

12.1 On termination of this lease, for whatever reason, the Tenant shall immediately return the property to the Landlord in the same good condition and order as it was at the commencement of this lease, fair wear and tear excepted, together with all keys and other items provided to the Tenant by the Landlord during the lease period.

13. DUTIES OF LANDLORD

13.1 The Landlord must, upon request from the Tenant, furnish the Tenant with a written receipt of all payments received by the Landlord from the Tenant.

13.2 Such receipt must be dated and clearly indicate the address, including the street number and further description, if necessary, of the property in respect of which payment is made and whether payment has been made for rental, arrears, deposit or otherwise, and to specify the period for which payment is made.

13.3 The Landlord must attach a copy of the House Rules as an annexure to this lease agreement.

14. INSPECTION AND RETURN OF PROPERTY ON EXPIRY OF LEASE

14.1 At the expiration of the lease the Landlord and the Tenant must arrange a joint inspection of the premises, at a mutually convenient time to take place within a period of three days prior to such expiration, with a view to ascertaining if there was any damage caused to the property during the Tenant's occupation thereof.

14.2 Failure by the Landlord to inspect the property in the presence of the Tenant is deemed to be an acknowledgement by the Landlord that the property is in good and proper state of repair and the Landlord will have no further claim against the Tenant.

15. RETURN OF DEPOSIT

15.1 On the expiration of the lease, the Landlord may apply the deposit and interest towards the payment of all amounts for which the Tenant is liable under the said lease, including the reasonable cost of repairing damage to the property during the lease period and the cost of replacing lost keys and the balance of the

MV

deposit and interest, if any, must then be refunded to the Tenant, by the Landlord, not later than 14 days of restoration of the property to the Landlord;

- 15.2 The relevant receipts which indicate the costs which the Landlord incurred, must be available to the Tenant for inspection as proof of such costs incurred by the Landlord.
- 15.3 Should no amounts be due to the Landlord in terms of the lease, the deposit together with the accrued interest in respect thereof must be refunded by the Landlord to the Lessee, without any deduction or set-off.
- 15.4 Failure by the Landlord to inspect the property in the presence of the Tenant is deemed to be an acknowledgement by the Landlord that the dwelling is in good and proper state of repair and the Landlord will have no further claim against the Tenant, whom must then be refunded, in terms of this subsection, the full deposit plus interest by the Landlord.
- 15.5 Should the Tenant fail to respond to the Landlord's request for an inspection, the Landlord must, on expiration of the lease, inspect the dwelling within seven days from such expiration to assess any damages or loss which occurred during the tenancy.
- 15.6 The Landlord may in the circumstances indicated above, without detracting from any other right or remedy of the Landlord, deduct from the Tenant's deposit and interest the reasonable cost of repairing damage to the property and the cost of replacing lost keys.
- 15.7 The balance of the deposit and interest, if any, after deduction of the amounts contemplated, must be refunded to the Tenant by the Landlord
- 15.8 The relevant receipt which indicates the cost which the Landlord incurred, as contemplated above, must be available to the Tenant for inspection as proof of such cost incurred by the Landlord.
- 15.9 Should the Tenant vacate the property before expiration of the lease, without proper notice to the Landlord, the Landlord will be entitled but not obliged to cancel the lease as from the date of the Tenant's vacating the property, without any prejudice to any right that the Landlord has arising from the Tenant's breach of the lease.

16 TENANT REMAINING IN OCCUPATION ON EXPIRATION OF LEASE

If on the expiration of the lease, the Tenant remains in the property with the express or tacit consent of the Landlord, the parties are deemed, in the absence of a further written lease, to have entered into a periodic lease on the same terms and conditions as the expired lease, except that at least one month's written notice must be given on the intention, by either party, to terminate the lease.

17. BREACH

- 17.1 Without prejudice to any other rights of the Landlord, the Landlord is entitled to cancel this lease immediately should the Tenant:
- 17.1.1 fail to make payment in terms of this lease on due date and remain in default for 7 (seven) days after receiving written notices from the Landlord to make payment.
 - 17.1.2 commits any other breach of this lease and fails to remedy the breach within 14 (fourteen) days after receiving written notice from the Landlord to do so.
- 17.2 Should the Landlord fail to make payment any third party as required by this lease or fail to perform any other obligation due in terms of this lease and remain in default for 7 (seven) days after receiving written notice from the Tenant to remedy the default, the Landlord may without prejudice to its rights, make the payment or carry out the obligation and recover the amount paid or the cost of carrying out the obligation (as the case may be) from the Tenant on demand;
- 17.3 Should the Landlord institute any action against the Tenant for relief arising out of the Tenant committing a breach or default of any of his / her obligations under this lease, the Landlord shall be entitled to claim any legal costs incurred on the scale as between Attorney and Own Client.
- 17.4 Should the Landlord cancel this lease and the Tenant disputes the Landlord's right to do so, remain in occupation of the property, then, pending the determination of the dispute:
- 17.4.1 The Tenant shall continue to make all payments in terms of this lease on due date.
 - 17.4.2 the Landlord's acceptance of those payments will not in any manner affect its right to cancel this lease or any other remedy it may have.
 - 17.4.3 Should the dispute between the Landlord and the Tenant be determined in favor of the Landlord, the payments made in terms of 17.4.2 will be regarded as amounts paid by the Tenant on account of the loss sustained by the Landlord because of the holding over of the property, by the Tenant.
 - 17.4.4 The Landlord will be entitled to cancel this lease by written notice to the Tenant if the Tenant commits any breach of this lease and fails to remedy same within 14 (fourteen) days after receiving written notice from the Landlord to do so.

18. GENERAL

- 18.1 No latitude, extension of time or other indulgence which may be given or allowed by the Landlord to the Tenant or vice versa in respect of the performance of any obligation in terms of or arising from this lease shall be a waiver or otherwise affect any of the rights of the Landlord against the Tenant or vice versa.

- 18.2 This is the whole agreement between the parties and no warranties, undertakings, cancellation, variation, alteration, amendment, or representations shall be of any force or effect, unless reduced to writing and signed by both parties.
- 18.3 The parties agree to the authority of the Magistrates Court for the purposes of all legal proceedings resulting from this agreement.
- 18.4 Unless a contrary intention clearly appears, words importing:
 18.4.1. Anyone gender includes the other two genders, and *vice versa*.
 18.4.2. The singular includes the plural and *vice versa*.

19. NOTICES

- 19.1 The parties respectively choose as their service address for all purposes of and in connection with this agreement as follows:

19.1.1 The Landlord:

285 Erasmus Ave, Raslouw AH, 0157

19.1.2 The Tenant:

285 Erasmus Ave, Raslouw AH, 0157

Signed at Raslouw this day of 01 October 2023.

AS WITNESSES:

1. 

2. 



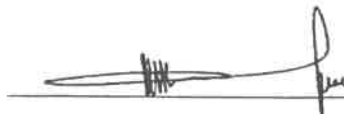
Landlord (Signature)

Accepted at Centurion this day of 01 October 2023

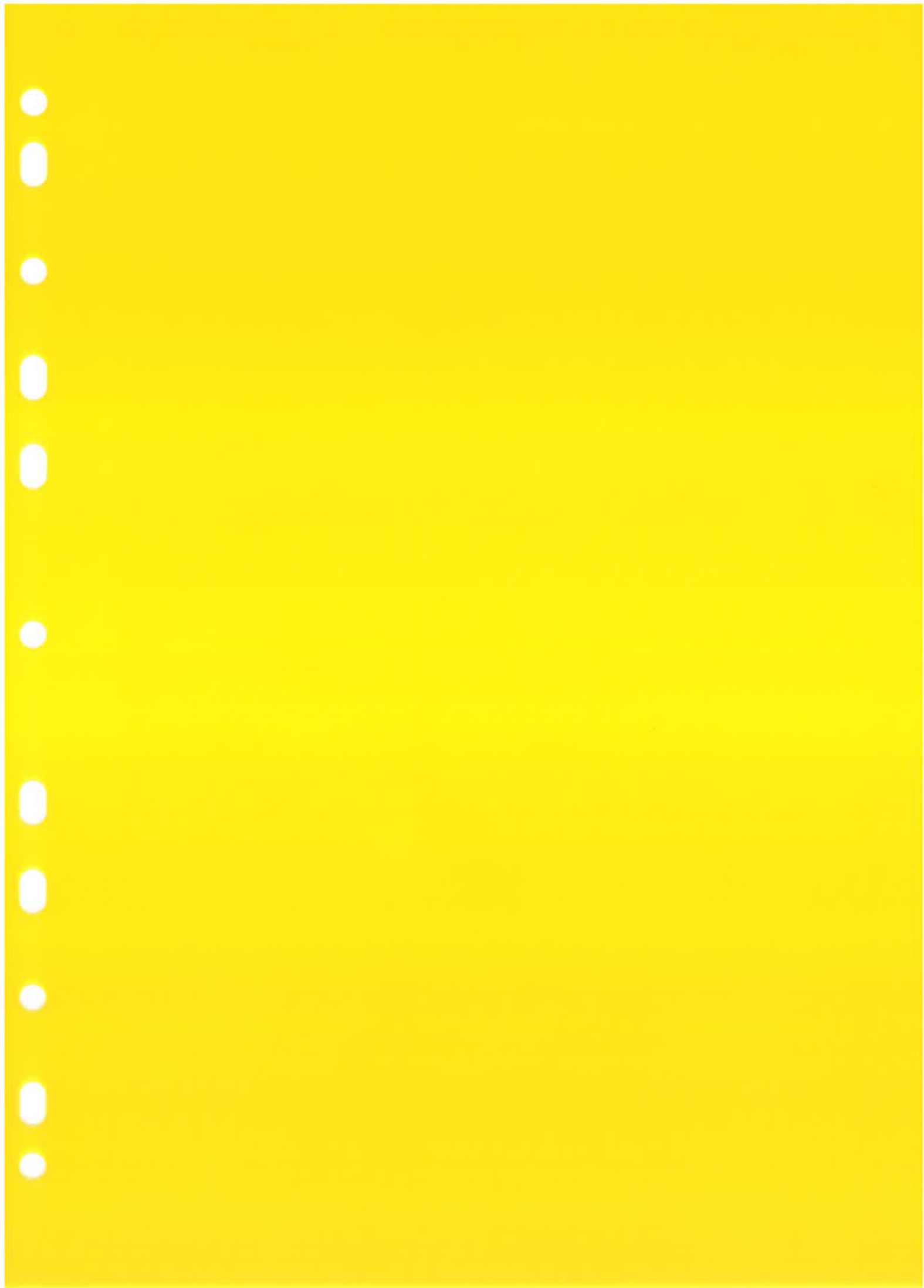
AS WITNESSES:

1. 

2. 



Tenant (Signature)





COR14.3: Registration Certificate

Companies and Intellectual
Property Commission

a member of the dti group

Registration Number: 2013 / 029173 / 07

Enterprise Name: SITHEMBE TRANSPORTATION AND PROJECTS

ENTERPRISE INFORMATION

Registration Number 2013 / 029173 / 07
Enterprise Name SITHEMBE TRANSPORTATION AND PROJECTS
Registration Date 20/02/2013
Business Start Date 20/02/2013
Enterprise Type Private Company
Enterprise Status In Business
Financial Year End February
TAX Number 9745624156
Addresses

POSTAL ADDRESS

3138B CRANE STREET
THATCHFIELD HILLS RAU-VISTA EXT 13
CENTURION
GAUTENG
0152

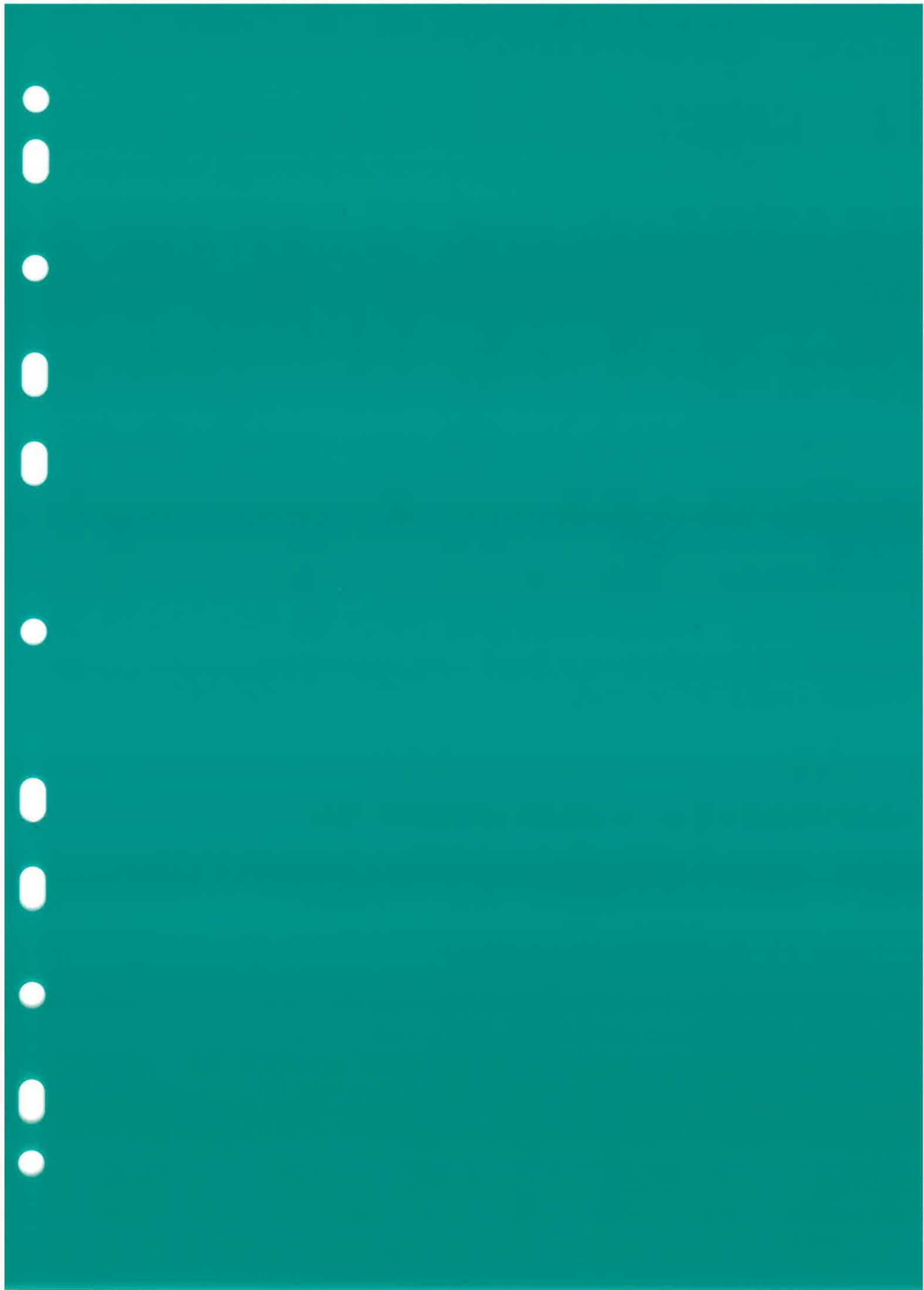
ADDRESS OF REGISTERED OFFICE

3138B CRANE STREET
THATCHFIELD HILLS RAU-VISTA EXT 13
CENTURION
GAUTENG
0152

ACTIVE MEMBERS / DIRECTORS

Surname and First Names	Type	ID Number / Date of Birth	Appointment Date	Addresses
LUKHELE, MUZI VINCENT	Director	8702125373087	20/02/2013	Postal: 3138B CRANE STREET, THATCHFIELD HILLS RAU-VISTA EXT 13, CENTURION, GAUTENG, 0152 Residential: 3138B CRANE STREET, THATCHFIELD HILLS RAU-VISTA EXT 13, CENTURION, GAUTENG, 0152





REPUBLIC OF SOUTH AFRICA
NATIONAL IDENTITY CARD

Surname:
LUKHELE
 Names:
MUZI VINCENT
 Sex:
M
 Nationality:
RSA
 Identity Number:
6702126373087
 Date of Birth:
12 FEB 1987
 Country of Birth:
RSA
 Status:
CITIZEN

ID

Signature

Conditions: Date of Issue:
13 JUN 2017

This card has been issued by the
 Department of Home Affairs in terms of the
 Identification Act, Act 68 of 1997.
 If found please return to the Department of Home Affairs.
 For enquiry or verification purposes contact 0800 60 11 98

RSA

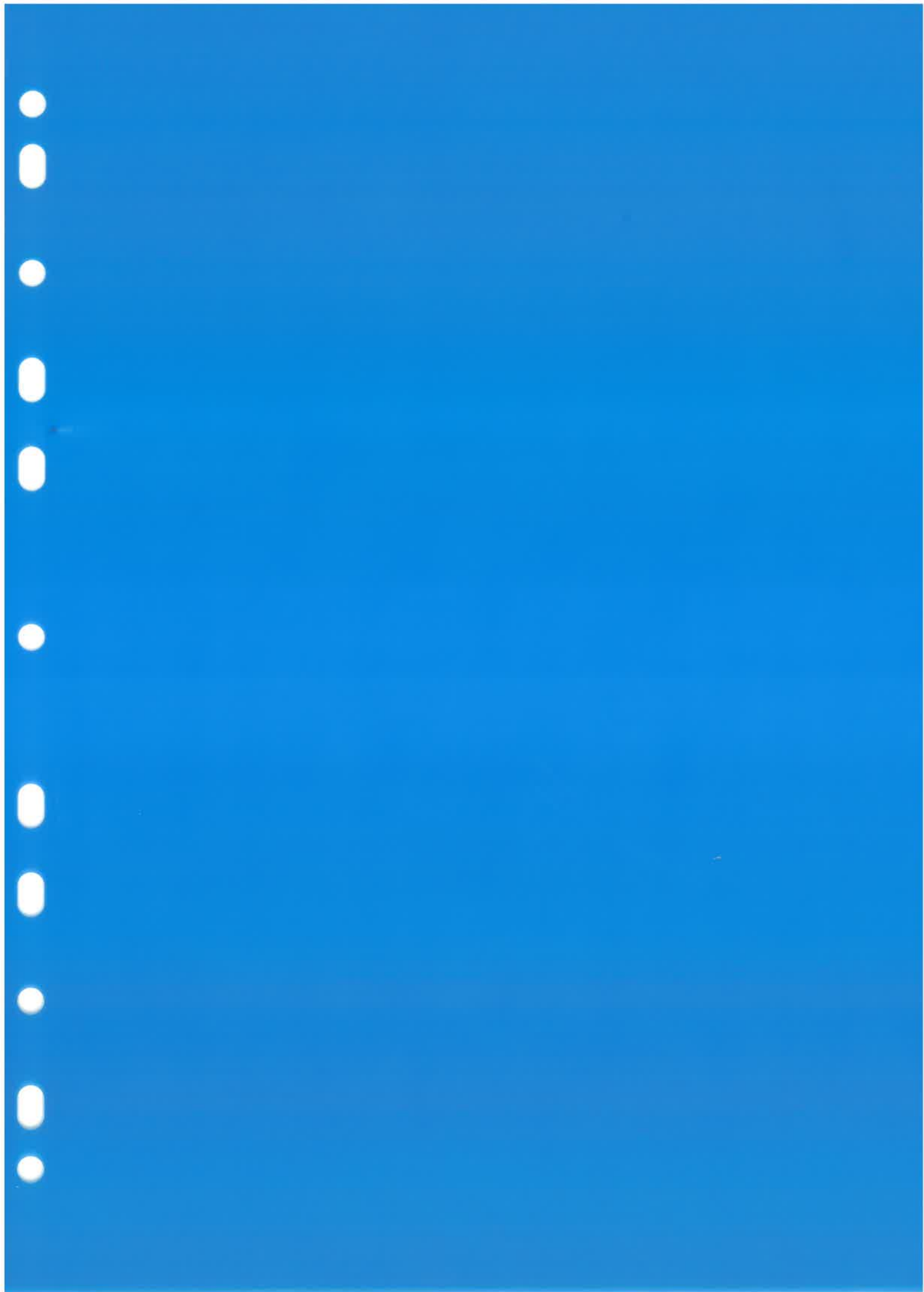
104852184

104852184

GESERTIFISEERDE KOPIE AFSKRIF
 VAN OORSENE
 CERTIFIED COPY OF ORIGINAL

[Signature] 20/08/20

NIC... JESTRIA
 OATHS... OATHS
 OATHS... 1/1 8/2 PRETORIA



SHARE CERTIFICATE

No. OF CERTIFICATE 1

No. OF SHARES 1000

this certificate is issued in terms of the companies act 2008 and company regulations 2011

SITHEMBE TRANSPORTATION AND PROJECTS

Reg No 2013/029139/ 07

This is to certify

That MUZI VINCENT LUKHELE ID No 8702125373087 of 3138B CRANE STREET THATCHFIELD HILLS RAU-VISTA EXT 13 CENTURION GAUTENG 0152 is the registered

Proprietor of ordinary no par value fully paid shares each numbered as per margin inclusive in the above

Named company subject to the Memorandum of Incorporation and rules and Regulations of the

Company

Distinctive Numbers From To	Number of Shares Holding	Percentage
1-1000	1000	100%

Signed at:

Pretoria on 11-07-2018

GESEKERTIFISEER IN WARE AFSKRIF
VAN DIE OORSPRONKLIKE

GESEKERTIFIEERTE KOPIE VAN DIE OORSPRONKLIKE

[Signature]

25/02/25

NICO CRAILL - POSTNET EQUESTRIA
COMMISSIONER OF OATHS
OATHS NUMBER 9/1/8/2 PRETORIA

Secretary

Director



TO WHOM IT MAY CONCERN

20 February 2025

Dear Sir / Madam

SITHEMBE TRANSPORT & PROJECTS (PTY) LTD

We herewith confirm that the abovementioned client has a Public Liability Insurance Policy :

Insurer	:	Santam Insurance Co (Pty) Ltd	
Policy	:	1733643	
Type	:	Comprehensive Insurance	
Period	:	1 March 2024 – 28 February 2025	
Cover	:	Public Liability	R 5 000 000
	:	Defective Workmanship	R 5 000 000
	:	Work Away included	
	:	Umbrella Liability	R20 000 000

We trust this to be in order. Should you have any queries or need any further information, please contact us.

Yours faithfully

Elize Armstrong

ELIZE ARMSTRONG
EXTERNAL COMMERCIAL BROKER

Contact no: 087 736 6021

Or

072 375 0813



employment & labour

Department:
Employment and Labour
REPUBLIC OF SOUTH AFRICA



2022105609

CALL CENTER NO: 0860 105 350

CF REG NO : 990001069109

REG NO : 2013/029173/07

ISSUE DATE : 2024-05-20

CERTIFICATE NO : 2023105609

SITHEMBE TRANSPORTATION AND PROJECTS

285 ERASMUS AVENUE

Centurion

0157

A LETTER OF GOOD STANDING

COMPENSATION FOR OCCUPATIONAL INJURIES AND DISEASES ACT 130 of 1993 (AS AMENDED).

With reference to sections 80, 82, 86 and 89 of Compensation for Occupational Injuries and Diseases Act 130 of 1993 (As amended), I hereby certify that:

SITHEMBE TRANSPORTATION AND PROJECTS

has complied with the requirement of the above Act and is at present in good standing with the Compensation Fund.

Nature of business :GOODS TRANSPORT BLDG RENOVATE GARDEN CLEAN EQUIP

Expiry date :2025-04-30

IMPORTANT NOTICE:

Any fraudulently obtained Letter of Good Standing shall constitute a criminal offence.

The Compensation Commissioner shall institute criminal proceedings against any perpetrators who unlawfully alter or deface this letter with intend to defraud or misrepresent facts contained therein.

PLEASE, use the Below link (Website Address) to check if the Letter of Good Standing is valid:

<https://cfonline.labour.gov.za/VerifyLOGS>

Yours faithfully

COMPENSATION COMMISSIONER

W.As. 48

Compensation House, Cnr Hamilton and Soutpansberg Road, PO Box 955, Pretoria, 0001 Website:<http://www.labour.gov.za>



Compensation Fund
WORKING FOR YOU

